

YOUR VOTE

and How to Use It

Mrs. Raymond Brown

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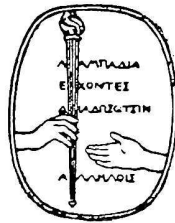
MRS. RAYMOND BROWN

*Chairman of Organization of the New York State
Woman Suffrage Party*

With a Foreword by

MRS. CARRIE CHAPMAN CATT

*President of the National American
Woman Suffrage Association*



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YOUR VOTE AND HOW TO USE IT



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To
the Many Good Citizens
who have helped and advised
in the preparation of this book
it is gratefully dedicated

THIS BOOK IS OFFICIALLY
ENDORSED BY THE NEW
YORK STATE WOMAN
SUFFRAGE PARTY

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FOREWORD

It is one thing for women to win the vote and a totally different one for them to know how to use that vote so that it will count to the greatest good of the state. The keynote of woman's long struggle for the ballot has been her ardent desire for service. Now that she has been given the vote, she is eager to learn how she can best render that service.

Citizenship has been very lightly regarded by our country in the past. It has been given to the immigrant without any ceremony, in the midst of the sordid surroundings of a local court-room; it has come to the boy of twenty-one without any special preparation on his part; it has often been bought and sold. It remains now for women to treat it with a new dignity and to give it the importance it deserves.

Civics should be taught in every school in the land. The ballot should be regarded as a sacred trust. Every man and woman who grows up under the protection of our flag should feel the obligation to give of his and her best to make our democracy a better expression of our ideals.

I hope that this book will help to start some new citizens in the right way.

CARRIE CHAPMAN CATT.

PREFACE

There never seems to be just the right book on a topic that one has very much at heart.

When the vote for New York women was an accomplished fact there came a sudden and pressing need for a book on government that would give the busy housewife or the overworked woman in the factory the simple outline of her government and the officials for whom she was going to vote, with the duties and requirements of their positions; but that was not all. There are certain problems of government to-day and certain departments of politics which have to do with things which are of special interest to women. The protection and care of human life has always been woman's great business in life. So a book on civics for women must include an outline of what the state is doing for its children, for its poor, for working-women, for public health and recreation; in short, for the same things in government with which she is concerned in her individual capacity as a woman. These are also the departments of government which seem to need her attention the most. It is natural that men should have given the greater care in government to business and material affairs. To counterbalance this, woman's work and votes are needed for the human side.

To be an intelligent voter some knowledge of the structure of government is needed. Also one must know the duties of an office in order to judge of the qualifications of would-be candidates, so Chapters II to VII give an outline of the different divisions of government, beginning with the local offices, for which women will cast their first votes, and going through the State to the National Government. Chapters VII to X, inclusive, deal with the actual casting of the ballot in the elections, the organization of political parties, and the management of elections. The major part of the book is then given to those departments of political affairs in which women are undoubtedly most deeply concerned.

The substance of some of these chapters has been used as a correspondence course in citizenship by the New York State Woman

Suffrage Party, and is published by special arrangement with them. Through four years of continuous intensive educational work in the State the Woman Suffrage Party has come closely in touch with many thousands of women; it has learned to know their idealism, their fervent belief in democracy, and their desire to make democracy more effective. It knows also that there are many other women who have never thought about voting, but who are equally conscientious and are now eager to learn. It knows the problems of women as does probably no other organization of women.

It also has a deep feeling of responsibility. It feels its obligation to furnish all the help possible to the new women voters to meet their new duties wisely. It hopes to bring home to women the human side of government, to arouse a desire for further study, and especially to encourage them to regard their vote as a trust to be used not to advance partisan politics, but to further human welfare.

This is a book for amateur citizens written by an amateur citizen. It may be found to differ from the others in that it deals with the subject of civics from the standpoint of the woman voter.

GERTRUDE FOSTER BROWN.

YOUR VOTE AND HOW TO USE IT

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I

POLITICS AND WOMAN'S INTERESTS

The average woman has never thought of politics as having an intimate relation to her daily life. She has not realized that government has a direct effect on the comfort and happiness of the family in the home, on the successful upbringing of children, and on the health and safety of men and women workers.

She has known vaguely that government controls the fundamental question of war or peace; that it has to do with taxation; that it handles the mail, but that it also plays a large part in domestic and social life is a fact that she has only recently been learning.

With the rapid extension of the vote to women, especially the recent granting of suffrage to the women of New York State, there is a new and wide-spread interest in how government works, and a realization of the importance of good government and the dire peril of bad government. Women are conscientious; they are accepting their new responsibilities with much seriousness. They are eager to learn how to be good citizens. The war also has made everybody think. It has made government seem a more personal affair.

WHAT IS GOVERNMENT?

Government is the management of those common affairs of a people which can be handled in a more effective and more economical way by a community acting together than by each individual acting for himself.

In a sparsely settled community government is less apparent than in a city. Its functions are simple. Sometimes it does not seem very important. But as people congregate closer together it becomes more complicated and comes in closer and closer touch with the individual and family life.

For example, a man living in the country may rely on himself to protect his home and property; but in the city life and property are better protected by a police force than if each individual citizen had to provide his own protection. A woman in a pioneer country may bring up her child as she pleases. She may teach him when and how she chooses. But as population increases and government is established, a large part of the child's training is dictated by it. He must go to school at a certain age; he must stay there so many hours a day; he must study certain things in a certain way. He cannot be put to work until he has reached a certain age. If he contracts a contagious disease the city takes control of the case.

Directly and indirectly the government in a city affects a woman's life and interests in innumerable ways.

She is dependent on it for the light and sunshine that comes into her home. Laws concerning housing and building and tenement departments of government are very important to the health, comfort, and even decency of the family. She is dependent on government for the safety of the milk she has to feed her baby. The health of the family depends as much on the city department of health as on the mother's care. It is of the utmost importance to the city mother that the streets be kept clean, because they are usually the only place that her children have in which to play. The street cleaning department, therefore, touches her closely. It is of vital moment to her that the streets be kept free of criminal influence, therefore the management of the police department is of great importance to her. If the town is run "wide open" it may mean that her husband's wages may be dissipated. The way in which the excise law and the laws against gambling are enforced is a matter which deeply concerns her.

If she lives in the country the relation of government to her life is not so varied, but she is still dependent on it for the education of her child, for the socializing influences of the community, and for much of the business prosperity of the farm. Are telephone connections cheap, are the roads passable at all seasons, are good market facilities provided? These are all questions that greatly affect her welfare, and they depend largely on the government.

It is the business of government to maintain peace and to provide for the common defense.

This is a function of government so fundamental as to need little comment. It is the first essential to the safe existence of the home.

It is the business of government to assure justice and equality of treatment to all citizens.

This becomes more difficult as population increases and life grows more complicated. Nearly every human being to-day is dependent on the work of other people for most of the necessities, as well as the comforts and conveniences, of life. The food that we eat, the cotton and wool in the garments we wear, the coal that heats our houses, we owe to the toil of other people who in return may be dependent on us for something that they use. It is a matter that concerns every one of us that in producing these things that we use human life shall be safeguarded, that living wages shall be paid, and that standards of civilization shall be maintained and advanced.

As individuals we cannot control conditions even for ourselves, as individuals we cannot control them for other people; but all of us working together in government can secure these fundamental necessities for every one of us.

Since government in a democracy is made by the people themselves, it is a responsibility that every one should share to help secure these common needs.

It is also a function of modern government to raise the standard of health, education, and living.

Plato said, "Only that state is healthy and can thrive which unceasingly endeavors to improve the individuals who constitute it."

Society must be protected from vicious and destructive influence; the intelligence and knowledge of all the people are needed for the common good.

As human beings have become dependent on one another, the well-being or the degradation of one individual or family does not stop there. It strongly influences the welfare of other individuals and families. For their own protection people have not only the right, but the obligation to make a government that shall foster and advance the common welfare.

The basis of good government is the golden rule. To help secure for others the protection that you demand for yourself is part of the obligation of good citizenship. The honesty and efficiency of government in a republic like the United States depend on the voters; on their sense of responsibility, and on the intelligence with which they use their power. The feeling of responsibility of each individual, for the public welfare, cannot be too highly developed.

Democracy can only be a success in the degree that the people who make that democracy are determined that it shall deal with justice, and that it shall offer opportunity to every one within its borders. They must also be vigilant to see that it shall deal wisely with their common problems as they develop.

To be a citizen of such a democracy and to have the power to help it grow along these lines, to be able to serve one's country loyally in the full efficiency of citizenship, are great privileges.

II

TOWN AND COUNTY GOVERNMENT

The United States is both a Democracy and a Republic.

A Democracy means, literally, a government by the people.

A Republic is a democracy in which the people elect representatives to carry on the government for them.

The United States is a federation of forty-eight States. For convenience of government each State is subdivided into smaller units.

In every political division of the State there are three distinct departments:

The Legislative, the part that makes the law.

The Administrative, the part that administers the law.

The Judicial, the part that interprets the law.

Even in a sparsely settled community people have certain interests in common. Roads have to be made, schools established, the poor cared for, and taxes levied. Who does these things? If a cow breaks into a neighbor's cornfield, or if there is an epidemic, whose business is it to look after it?

THE TOWN GOVERNMENT

With the exception of the school district, which has to do only with the public schools, the town^{[\[1\]](#)} or township is the smallest division of the State for purposes of government. The government of the town is the nearest approach we have to a direct government by the people themselves.

The Town Meeting brings people together to discuss their local affairs, to elect officers, and to appropriate the money necessary to carry out their plans. It is held in New York State every other year, some time between February 1st and May 1st.

The business of the town meeting includes the disposal of town property, the care of bridges and roads, the care of the poor, the number of constables, matters concerning public health, and the care of stray animals.

Any citizen has a right to bring up any suggestion he pleases for the people to consider and debate in open meeting, and then to take whatever action they choose. In a matter of taxation or incurring a town debt, only taxpaying citizens can vote.

Where it exists at its best, the town meeting has an admirable effect in stimulating interest in local affairs and in developing public spirit. A special town meeting can be called by a petition of twenty-five taxpayers, or at the request of certain officials.

The town meeting is a form of government particularly adapted to a small community. With the increase in population it has been given up in many counties, and the election of town officers now usually takes place at the regular fall election.

Town Officers: The Supervisor is the chief executive officer of the town, and is elected for two years. He receives and pays out all money except that raised for public roads and the care of the town poor. If the town roads are in bad condition or if the poor are not properly cared for, he is responsible. The honesty and efficiency of the administration of town affairs are in his hands. He represents the town on the county board of supervisors.

The Town Board consists of the supervisor, town clerk, and at least two justices of the peace. It meets regularly twice a year. It is the business of the board to receive the accounts of the town officers and examine them, to hear and decide claims against the town. An appeal may be taken from their decision to the county board of supervisors. They may also frame propositions to be submitted to the voters, and may borrow money to meet appropriations made at the town meeting. They may appoint a physician to aid as health officer for the town.

The Town Clerk is the general secretary and bookkeeper for the town. He records births, marriages, and deaths, chattel mortgages and property notes. He keeps the records of the town meetings. He posts election notices. He issues marriage licenses, permissions for burial, hunting licenses, etc.

The Superintendent of Roads has charge of building and maintaining the town highways, bridges, and culverts outside of the incorporated villages. He is paid by the day, and may hire machines and horses or purchase tools and material for road making. The opportunities for dishonest money in this office have sometimes made it sought after. A contract may contain a “rake-off,” bills may be padded, and materials accepted which are different from specifications.

Three Assessors and a Collector: The assessors determine the value of taxable property in the town, and divide the amount of taxes to be raised among the owners of the property. If a property-owner is dissatisfied with his assessment he may appear in August before the assessors and “swear off” what he considers an exorbitant amount. Assessment rolls are made out, and it is the duty of the collector to collect the money. Town collectors are paid 1 per cent. on taxes collected within thirty days after due, with increasing fees for collecting taxes after that time. This is an encouragement to the collector to be dilatory in his collections, and is a disadvantage to the town. It has been suggested that penalties for delinquent taxes should go to the town and not to the collector.

The Town Constables have the duty of keeping the peace and carrying out the orders of the justice of the peace. They may arrest people accused or suspected of crime. There may not be more than five in a town.

The Overseers of the Poor are charged with the duty of looking after persons who are destitute and have no relative to support them. They may assist such persons in their own homes or send them to the county poorhouse. This office often conflicts with that of county superintendent of the poor, and it has been recommended that it be abolished.

The Justice of the Peace is the judicial officer of the town. Each town has four such officers, each elected for four years. The justice of the peace may hear civil cases where the sum involved is not over two hundred dollars. He may try petty offenses of all kinds, breaches of the peace, drunkenness, and petty larceny. He may issue warrants and may hold persons suspected of serious crime to await action by the grand jury.

Terms of Town Officials: Each official is elected for two years, except the justices of the peace and sometimes one or two assessors, who are elected for four years.

Pay of Town Officials: Most of these officers are paid from two to four dollars for every day of actual service. The town clerk, justices of the peace, and constables are paid certain fees.

THE COUNTY

The county comprises a number of townships. It is a political division created by the State to administer certain local affairs, to act as agent for the State, to collect State taxes, and to enforce State law. The county owns the court-house and jail; it can sue or be sued.

In most of New York State the county has become more important in administering local affairs than the town. New York State has sixty-two counties, of which five are in Greater New York. They vary in size from Richmond County (Staten Island), which has only 59 square miles, to St. Lawrence County, which has 2,880 square miles. They vary also in population from Hamilton County, with 2,000 people, to New York County with two million.

Elected Officials: The Board of Supervisors is the legislative body of the county. This board is composed of the supervisors elected by each township, and also one member from each ward of a city in the county. They elect their own chairman.

The board of supervisors have the custody and control of the court-house, jail, poorhouse, and all county property; they receive and decide claims against the county; they direct the raising of money by taxation to meet the expenses of the county and the county's share in State taxes; they fix salaries for county officials; borrow money for county needs; they regulate laws for the protection of fish and game; they open county highways, erect bridges, and may provide hospitals for tuberculosis. They also act as a board of canvassers to canvass the returns after an election.

The Sheriff, the executive officer of the county, is elected to enforce the law. On him rests the security of life and property. He must preserve the peace, arrest offenders against the law, and hold them in custody. He must not allow fear or sympathy to interfere with his enforcement of the law. He summons jurors and witnesses for county lawsuits and executes the orders of the court. Until recently the fees which he received made the sheriff's

office one much sought after. These now go to the treasurer in many counties, and the sheriff is paid a salary. He cannot serve two consecutive terms. He may appoint an under-sheriff and deputy sheriffs.

The District Attorney is the public prosecutor for the county, and brings suit “in the name of the people of the State.” He is also the legal adviser for county affairs. It is his business to protect the public against crime of all kinds. If corruption exists in any department, it is his duty to bring it to light. The good order of the community and the efficiency of government in the county depend much on him. He determines what cases shall come before the grand jury.

The County Clerk keeps all the important records for the county, including deeds, mortgages, and maps, and makes out the election certificates. Public documents must always be open for public inspection. In some counties there is a recorder of deeds. The clerk also acts as clerk of the county court. His office has an income from fees which used to go to the clerk and made this office very lucrative. In most counties the fees now go to the county treasurer, and the clerk is paid a salary.

The County Treasurer receives and disburses all public moneys for the county. He receives money from the town supervisor, collected for county and State taxes, the latter of which he pays to the State treasurer. He receives from the State money for the public schools, which he in turn passes on to the towns. He must give a bond for the safe-keeping of these public funds. He also chooses the bank in which public funds are kept, and ought to give a careful accounting of the interest which must go into the county treasury.

The Superintendent of the Poor disburses the money raised to care for the poor of the county. The superintendents of all the public charities in the county make their reports to him, and he is responsible for them to the board of supervisors. He also makes an annual report to the State Board of Charities.

Coroners: From one to four coroners may be elected in each county, except those in Greater New York. Their duty is to investigate sudden and suspicious deaths, and sometimes the cause of a suspicious fire. They are often practising physicians or they may employ physicians to conduct inquests or autopsies.

The County Superintendent of Highways is appointed by the board of supervisors for four years.

The County Judge presides over the county court. His salary varies and is fixed by State law, although paid by the county. This office should be most carefully filled. The county judge is not only important because of his decisions, but he is one of the most powerful men politically in the county. Only a man of strict probity should be elected to this office.

The Surrogate administers estates of persons deceased, controls the probate of wills, and appoints guardians for the property of minors. His term is six years. In counties with small populations the county judge acts as surrogate.

The term of office for county officials is three years, except that of the supervisors elected by the towns for two years, and the judges elected for six years.

Political Honesty: The question is often asked, are these local offices honestly managed? Are there possible loopholes for corruption? The following answer to these questions was given recently by one in a position to know:

“The impelling motive of most politicians is the enjoyment of a sense of power and influence. The day laborer who loafs through his political job and the salaried higher officer who neglects his work and engages in private business are examples of the most usual and formidable class of political grafters. The heads of departments and higher elected officers are apt to do their work as well as they can, in order to qualify themselves for re-election. The days when a man could dishonestly make a fortune in one political term are past in this country, and waste, favoritism, and stupidity are the only dangerous elements which we must look for.

“The greatest waste in expenditure of moneys by boards of supervisors is usually on county roads and highways, where in some years hundreds of thousands of dollars are lost by unscientific building and upkeep. This also is an easy way for a dishonest supervisor to reward political supporters by paying them for work on the road which they do not do. The same things obtain in the matter of purchase of supplies and the county printing. The

cure for this is to have all expenditures beyond a nominal amount made on public bids.

“Another opportunity of abuse is the payment of supervisors in fees. Many counties still adhere to the old rule of fees: \$4 per day for attending board meetings; 8 cents per mile for going and returning; \$4 per day while actually engaged in any investigation or any other lawful duty. For copying the assessment roll and extending taxes on the tax roll supervisors receive commissions which, in some counties, run into thousands of dollars. The remedy for the numberless evils which accompany the fee system is to put the supervisors on a salary basis.

“The sheriff has charge of the prisoners in the jail. Therein lies his opportunity for dishonesty and extortion. Sheriffs should receive salaries and not fees, and every county should have a well-organized board of women visitors to inspect the jails and lockups at least every two weeks.

“The district attorney has an opportunity for dishonesty in the expenditure of the contingent fund, which is always provided for him, and which he can pay out with little or no check. Fortunately, however, most men elected to the office of district attorney are of high enough caliber to make the percentage of dishonesty almost *nil*.

“If the county clerk is paid by fees it is difficult to expect an absolute, ethical fulfilment of his duty, and probable that he will be working for himself rather than the county.

“The duties of the county superintendent of the poor are in continual conflict with those of the overseers of the poor. The opportunity to waste and misappropriate county funds without detection is not as great as it used to be, because of the close supervision of the State Board of Charities; but the county superintendent has wide discretion in giving alms and caring for the county poor, and the office is, therefore, usually sought by a minor political leader, who, by virtue of his office, can provide for his dependent supporters, which he usually does in the sincere belief that he is properly dispensing charity. In no case, however, is any great amount wasted, and on the whole the work is fairly well done.

“Justices of the peace and constables and town clerks usually receive fees. They should be put on a salary basis.

“Overseers of the poor have opportunities for fees and misappropriation of small amounts because they are allowed liberal discretion in selecting objects of the town’s bounty. The office should be wiped out, the distinction between town and county poor abolished; all the work should be done through the county superintendent of the poor, who should be responsible to the State Board of Charities.”

The Relation of Country to City, State, and Nation: While the problems of government in rural districts are simple and few, the close relations of city and country have made the wise management of country affairs of great importance to those who live in cities. On the other hand, the handling of the more complex and difficult city problems are of equally grave importance to country dwellers. Comfortable, prosperous life in a rural community is dependent not only on local conditions, but also on State and National government.

Good roads are equally important to city and country, and they depend largely on the State. The kind of education that the village or country school gives will determine the intelligence and earning capacity of many of the coming generations of city dwellers, and this instruction is determined both by the State and by the local school boards.

Low telephone rates and good interurban car lines will put the woman on the farm in close touch with her neighbors, and so will stimulate her interest in outside affairs. Healthy community life and rural amusements will keep the young people content at home and help prevent the drift toward the city. The farmer’s produce is handled by city shops and markets, and the manufactured articles of city factories go into the homes of every rural district.

Not only are city and country dependent on each other, but also one part of the country is dependent on some other part, far distant, for some of the necessities of life. Our cotton comes from the South, wheat comes from the West, sugar may come from Colorado or Cuba. The whole country is linked together in trade relationship, and freight rates and interstate commerce are controlled by the Federal government.

The good citizen, then, has a vital interest not only in his supervisor and local affairs, but in both State and National government. When he realizes that the size of his income, the comfort of his family life, the welfare of his

children, and their getting on in life, depend to an appreciable degree on government, he and she will begin to take a livelier interest in politics. The discussion of these affairs in the home will serve to stimulate the interest of the entire family in what is, after all, an important part of their business.

A small community has one problem all its own. If there is some offense against the public welfare, no one wants to complain. It may be something merely disagreeable, or it may be a serious menace to public health; but every one is slow to make a fuss about it because he cannot hide his identity, and he is afraid he might become unpopular. This fear is usually groundless because it is likely that most of his neighbors agree with him in wanting to have the condition changed. A country community needs fearless, public-spirited citizens.

FOOTNOTES:

[\[1\]](#) The word town as used in New York does not mean a village or city, but a political division.

III

THE INCORPORATED VILLAGE AND CITY

GOVERNMENT

As population grows government needs increase. When people establish their homes close together and form a populous community within a limited area, it becomes necessary to have streets opened up, sidewalks made, the streets lighted, protection from fire, and other things that the township does not provide.

A territory of not over one square mile, having a population of at least two hundred people, may be incorporated as a village. On a petition of the taxpayers they may vote on the proposition, whether or not they shall become an incorporated village, and have a government of their own distinct from that of the town. Even if they incorporate they still remain a part of the town, and take the same part in town government as before.

There Are Four Classes of Villages: First class, those with a population of 5,000 or over; second class, with a population between 3,000 and 5,000; third class, with a population of between 1,000 and 3,000; fourth class, with a population of less than 1,000. In many Western States a village of one or two thousand inhabitants usually becomes a city. In New York State there are villages of more than 15,000 population.

The Village President, who serves one year, is the chief executive, and serves without pay. He is the head of the village board of trustees, and in small villages is the head of the police. Local order, peace, health, and sanitation depend on him.

The Board of Trustees consists of from two to four men in villages of the third and fourth class; from two to six men in villages of the second class, and from two to eight men in villages of the first class, elected for two years, half of them elected each year. They serve without pay. They make ordinances for the government of the village and administer its

affairs. They decide where sidewalks shall be built, whether streets shall be paved, how garbage shall be handled; they provide light and a water-supply; they provide for the raising of money by taxes; if a sewerage system is needed it must be done under the supervision of the State Board of Health. Propositions relating to the large expenditure of funds must be submitted to the taxpayers.

Questions of police, water-supply, fire protection, lights, sewers, are sometimes handled by the board of trustees, or if the village is large enough there may be separate boards or commissioners established for some of these things.

A Fire Department, with fire house, hose and wagon, exists in most villages, voluntary in small places, and a paid force in the larger villages. The fire company is a popular department of public service, because of the social pleasure involved and because firemen are exempt from jury duty.

A Treasurer, Assessors, a Collector, and a Village Clerk, are usually elected and sometimes **a Street Commissioner**. Not infrequently the latter office is considered a sinecure, and streets littered with waste paper and other refuse are common in the average village. The commissioner should be held up to his duty by all the voters.

A Board of Health of from three to seven members must be appointed by the trustees to work in connection with the State Board of Health. This board elects a health officer, who must be a physician. The business of the board is to watch over drains, cesspools, to prevent nuisances and contagion from disease. Health officers should be vigilant and morally courageous, otherwise the community will pay in illness.

A Police Justice, elected for four years, handles cases involving violations of village ordinances. The board of trustees may appoint a village attorney to represent them in case of lawsuits.

The Annual Village Election usually takes place the third Tuesday in March. A special village election, similar to a town meeting, may be called for taxpaying citizens to vote on special questions, such as the removal of garbage at public expense, or the purchase of water or lighting plants.

A water-supply is usually furnished by a village of any size. An abundant supply is necessary, not only for homes, but for fire protection and for any

sewerage system. New York villages and cities are very well lighted. Whether there should be public or private ownership of public utilities is a question which is much discussed. While the water-supply is usually owned by the municipality, the lighting system more often belongs to a private company.

Sewage disposal is a matter which has to be taken up sooner or later by a village as it grows in population. For too long our villages have polluted the convenient stream. They have been slow to study the question, and to dispose of sewage and garbage in a way that is both satisfactory and economical. Foreign cities often make a profit out of the disposal of their refuse, whereas it usually costs us money. These questions need more intelligent consideration than is usually given them.

As a community grows larger it outgrows the simple form of village government and needs one more adapted to its complex and growing needs.

The growth of cities in the past hundred years is phenomenal. In 1820, 83 per cent. of the people of the United States lived on farms; in 1910 only 32 per cent. The problems that a city government has to meet are many and difficult, especially in the cities of New York State, where a large proportion of the people are foreign-born, and where there is often a large floating population without civic pride or interest. In smaller communities, where every one is known, the fear of public opinion acts as a restraining influence which is not felt in a city where the individual identity is often submerged.

A CITY GOVERNMENT works under a charter granted by the State, which limits its powers. These charters used to be made out separately for each city, and the legislature interfered with the management of the local affairs of a city in a way that caused a demand for "Home rule" for cities. This has been partially granted, and cities in New York State now have large power to provide public works and to control public education, health, safety, recreation, and charities, although they are still occasionally interfered with by the State legislature.

The city is a direct agent of the State, and does not work as the village does, through the town and county.

Three Classes of Cities: First-class cities have a population of 175,000 or over. Second-class cities have a population of 50,000 to 175,000; third-class cities are all those with a population of less than 50,000. The object of this division is to enable the State to legislate for the needs of groups of cities instead of individual ones. The mayor of a city may veto a measure passed by the legislature, but if approved by the legislature and signed by the governor, it may become law in spite of his veto.

The needs of government in a city are those of the village multiplied in size; they include police protection, care of the public health, a pure water-supply, inspection of food-supplies, supervision of weights and measures, adequate housing inspection, economic and satisfactory garbage and sewage disposal, fire protection, gas and electric lighting, good paving, clean streets, the care of dependents, maintenance of hospitals and libraries, good educational facilities, transportation, and many other activities.

The general plan of government for cities is the same in all the classes. Cities of the first class are New York City, Buffalo, and Rochester (see Greater New York).

Cities of the Second Class: The Mayor, who is elected for two years, is the chief executive officer. He has as important and responsible a position as any man at the head of a big corporation. The management of the city is in his hands. The health and welfare of its dwellers depend on him. While the city council legislates for the city, it is his business to see that laws and ordinances are enforced. He may veto an ordinance passed by the city council, although they may pass it over his veto by a two-thirds vote. The mayor has the power of appointing the heads of most of the important departments of the city's business. Sometimes the city council has to confirm an appointment, and an official can only be removed for good cause, and he must be given a hearing and an opportunity to answer charges. To elect to the position of mayor and to put the entire responsibility of all the complex problems of city government on a man of no training or fitness for the position, is to invite extravagance, incompetence, and corruption.

For purposes of convenience in government a city is divided into subdivisions called *wards*, and for elections, into certain voting precincts called *election districts*.

The Board of Aldermen or The Common Council consists of one alderman chosen from each ward and a president of the board. They are elected for two years, and are to the city about the same that the board of trustees are to the village. Their powers are limited by the city charter. In general, they may pass ordinances relating to streets, sewers, parks, public buildings, amusements, grant franchises, regulate traffic, levy taxes, and borrow money under certain restrictions for the use of the city. An alderman has power over many local interests in his district. It is an important position which in the main has been disregarded; it should be filled by a man chosen for fitness as a local representative and not as a reward for party service. No man should be elected to this board whom you would not trust as the custodian of your own property or the guardian of your children, because in a public sense that is what he is.

The Board of Estimate and Apportionment is one of the most important departments of city government. It has large control over the city's finances, and determines its policies in all financial matters, franchises, privileges and permits, and makes the city budget. It consists of the mayor, comptroller, corporation counsel, president of the common council, and the city engineer.

The Department of Contract and Supply lets contracts for material and work required by the city. With the constant growth of city departments and city business, in which supplies and materials of many kinds are needed, this is also an important committee.

Other elected officers are comptroller, treasurer, president of the common council, and assessors.

The department of finance is managed by the comptroller and the treasurer.

The department of assessment and taxation, which makes the assessment rolls, consists of four assessors, elected two at a time, for four years each.

The department of law is presided over by a corporation counsel, appointed by the mayor. The mayor also appoints the city engineer and the

heads of the following departments:

The department of public works, which controls the water-supply, streets, sewers, buildings, and public markets; the department of public safety, which includes the bureaus of gas and electricity; departments of police, health, charities and correction, and the board of education.

Cities of the third class are not uniform in their government, but the general outline is the same as for cities of the second class.

City Elections are held in the odd-numbered years. State officials are elected in the even-numbered years. The purpose of setting a different time for these elections is to keep city politics independent of State political machines. Party issues have little to do with the problems of a city. It is evident that the government of a large city is a very important and complicated business. There are several offices which demand as great executive ability as would be required of a man at the head of a large business corporation. But city offices are usually given to men not for fitness, but because of party affiliation. Public sentiment is beginning to ask why high standards of competence and efficiency should not be as much demanded in public as in private business.

The Budget: The heads of the various departments decide how much money will be required to run each department for the ensuing year. The Board of Estimate and Apportionment considers these requests and fixes the tax-rate necessary to raise the money needed (see Chapters [IV](#) and [XI](#)).

Franchise Rights: A city has many sources of revenue of its own. Public utilities which furnish such necessities as transportation, water, gas, and electric light, earn enormous profits. In some places some of these things are owned by the city and the revenues go to the city. In others, the right to build and operate such a public business is given to a private corporation through a franchise. It is evident that these franchise rights are extremely valuable and should not be given away without adequate compensation to the city, as well as the insuring of good service. The rates that are charged, and the service rendered, are matters of vast importance to the people of a city. Municipal ownership of such utilities has never been as extensive in this country as abroad, but the sentiment in favor of it is growing. Franchise rights used to be given for long terms, even in perpetuity, but public sentiment now demands that they be subject to revision at reasonable

intervals. Most cities to-day own their own water-supply, and some of them have their own lighting plants.

Commission Form of Government: So many officials are needed to manage the complex affairs of a city that even if well qualified men are put up for office, with so many candidates to be elected, it is impossible for the voters to know the merit of them all. City government has been the weakest spot in our political life. In an effort to meet its defects, a number of cities have adopted the policy of doing away entirely with the form of government as outlined, and electing on a non-partisan ticket several commissioners (sometimes headed by a mayor), each one of whom is put in charge of a division of the city's administration, and made responsible for the work of this department.

The fact is being recognized that skill and expert training are needed in public officials; that the power should be given to a few men, and that they should be held responsible for the success of their work.

Buffalo now has a commission form of government.

The City Manager Plan gives the management of a city to one man, who is engaged by the city, and held responsible for the conduct of city affairs, in the same way that a large business enterprise would engage a manager. A city manager should be a man who has made a study and profession of city government.

IV

GREATER NEW YORK

The city of New York includes five counties: New York, Kings, Queens, Bronx, and Richmond. In one hundred years, the population of New York City grew from 50,000 to 4,000,000 people. It now has a population of nearly 6,000,000, which is about one-half the population of the State, and it is the second city in size in the world.

The government of the city is strictly prescribed by its charter; for any improvement that it desires outside of the provisions of that charter, the city must go for permission to the State Legislature.

For convenience in government the city is divided into five boroughs: Manhattan, Bronx, Brooklyn, Queens, and Richmond (Staten Island).

The Mayor is the chief executive of the city. He is elected for four years and has a salary of \$15,000. He has powers of appointment and removal over a vast number of important positions, including the heads of the big city departments. Like the Governor of the State and the President of the United States, he initiates legislation by sending once a year a message to the Board of Aldermen containing a general statement of the government and financial condition of the city, and recommending such measures as he deems advisable. He may ask for special legislation at any time.

All ordinances and by-laws passed by the Board of Aldermen go to the Mayor for approval. If he vetoes a measure, the Board of Aldermen may pass it over his veto by a two-thirds or three-fourths vote, with the exception of the granting of franchise rights, where his veto is absolute.

The Comptroller is at the head of the financial affairs of the city. His term of office is four years, and salary \$15,000. He may appoint three deputies at \$7,500 each, an assistant deputy at \$3,000, besides other heads of the various divisions of the finance department; but the minor positions are under the Civil Service.

The President of the Board of Aldermen is elected for the same term as the Mayor, and receives a salary of \$7,500. He takes the Mayor's place in case of absence or death.

The Presidents of Manhattan, Bronx, and Brooklyn Boroughs receive \$7,500 a year; of Queens and Richmond Boroughs, \$5,000. They are elected for four years, and each president has general oversight over streets, bridges, sewers, and buildings in his borough. He may appoint a commissioner of public works, and a superintendent of buildings for his borough, and local school boards. In Queens and Richmond the borough presidents have charge of street-cleaning.

The Board of Aldermen is the legislative body of the city. It consists of seventy-three men elected from Aldermanic districts. They serve for a term of two years, and receive a salary of \$2,000 each. This board makes the ordinances for the government of the city. It makes and enforces police, fire, building, health, and park regulations; it makes by-laws for the regulation of public markets, streets, public buildings, docks; for inspection of weights and measures; regulating places of amusement, height of buildings; licensing cabs, truckmen, and pawnbrokers, and regulations for the suppression of vice. A city clerk and a clerk of the board at a \$7,000 salary each, are appointed by the board.

The Board of Estimate and Apportionment is the most important of the city boards. It frames the city budget, which has to be adopted by the Board of Aldermen. It also passes on bills granting franchise rights. It represents the whole city, and consists of the Mayor, Comptroller, President of the Board of Aldermen, each with three votes; Presidents of Manhattan and Brooklyn Boroughs, with two votes each; and Presidents of Bronx, Richmond, and Queens Boroughs, with one vote each.

Among the important appointive positions of the city which are in the hands of the Mayor are the following:

The Corporation Counsel, with a salary of \$15,000 a year, is the head of the law department of the city, and is the city's legal adviser. He has over fifty assistant counsels to appoint, with salaries ranging from \$3,000 to \$10,000 a year, and a host of deputy and junior assistants.

The City Chamberlain receives and pays out all moneys for the city—salary \$12,000. He may appoint a deputy at \$5,000 a year. The abolishment of the office of Chamberlain as being unnecessary was recommended by a recent incumbent; but it is too large a plum to be lightly discarded.

The President of the Department of Taxes and Assessments receives \$8,000 a year. Six other tax commissioners are appointed with salaries of \$7,000 each, two of whom must be of the opposing party.

The Commissioners of Accounts, of Correction, of Docks and Ferries, and of Health, the Fire Commissioner, Police Commissioner, Commissioner of Licenses, of Plants and Structures, of Public Charities, the Street-cleaning and Tenement House Commissioners, Commissioner of Water Supply, Gas and Electricity, and the chairman of the Parole Commission, all receive \$7,500 a year; the Commissioner of Weights and Measures, \$5,000 a year.

There is a new Commissioner of Public Markets, and a Supervisor of the *City Record*, a city publication which must print all ordinances which involve the spending of city money, granting a franchise, or making a specific improvement, before they are passed by the Board of Aldermen.

There are many other less important offices to be filled, and the Borough Presidents have still further appointments.

The Board of Education has been reduced from forty-six to seven members, of whom two are now women. In addition there are forty-six local school boards in the various school districts, each consisting of five members appointed by the Borough President and the District Superintendent of the local school district. These have now been divided among the seven members of the new School Board.

The Board of Elections consists of four commissioners, two Republicans and two Democrats, appointed by the Board of Aldermen for two years, with a salary of \$5,000 each. This board determines the election-district boundaries, chooses about 2,000 polling-places, and appoints about 17,000 election officials. Since 1915 the city has allowed school-houses and other public buildings to be used as polling-places, and at the last election nearly 1,000 districts were supplied in this way.

Local Improvement Boards: The city is divided into twenty-five districts, in each of which there is a Local Improvement Board, consisting of the Borough President and the Aldermen of the Aldermanic districts included in the local improvement district.

County Government Within the City: Each county included in the city of New York has a separate county government, independent of the city, with its sheriff, county clerk, district attorney, and its county court in every county but New York. The office of Sheriff in New York County has been one of the highest paid offices in the State, because of its fees. These have amounted to from \$80,000 to \$100,000 or more a year, and the county and Sheriff have divided them. The county now receives all the fees, and the Sheriff a salary of \$12,000 a year; but he cannot be re-elected, and the term of office has been increased from two to four years.

Courts—Supreme Courts: The first judicial department, and the first judicial district of the State are formed by New York and Bronx Counties. Brooklyn, Queens, and Richmond form the second. The Special and Trial terms of the Supreme Court try both criminal and civil cases with and without a jury, as in other counties.

County Courts are held in Kings, Queens, Bronx, and Richmond Counties, and each of them except Richmond has a *Surrogate's Court*. New York County elects two Surrogates, for a term of fourteen years each, at a salary of \$15,000 a year. In place of the County Court, New York County has a *City Court*, which tries civil suits and is a naturalization court, and a *Court of General Sessions*, which tries criminal cases. The *Court of Special Sessions*, with a chief justice and fifteen assistant justices appointed by the Mayor, tries cases of misdemeanors, and offenders sent to them by the City Magistrates. One division of this court is the Children's Court, with one presiding justice and five associate justices, with a court in each borough. These justices hold office for a term of ten years.

Magistrates' Courts are held by a large number of magistrates, appointed by the Mayor, and a chief magistrate who has general supervision of them. *Municipal Courts* are held in various parts of the city to try small civil suits. There are forty-five Municipal Court districts, in each of which there is a judge elected by the people of the district for a term of ten years.

There are separate Night Courts for both men and women, a Domestic Relations Court, which deals with cases of non-support of wives and children, and poor relations, and a Traffic Court, which deals solely with violations of the traffic laws.

To even mention the various institutions in the city of New York which are engaged in improving the health and social welfare of the people would take many pages. There is great need among them of a more clean-cut division of activities, and less overlapping of authority.

The Commissioner of Public Charities, appointed by the Mayor, is responsible for the care of the city's dependents. In 1915, 350,362 free lodgings were given to dispossessed families and needy men and women. There are 329 institutions receiving money from the city for the care of dependent children, and 22,753 children were in their charge on January 1, 1916. The care which these children have received has been severely criticized. The conflicting authority of the State Board of Charities and the City Board of Inspection of Charitable Institutions, is said to be responsible for this. In the future, the city is to conduct its own inspections. Widows' pensions are administered for all of Greater New York by one *Child Welfare Board* of nine members appointed by the Mayor, of whom two must be women. They serve for a term of eight years without salary.

The Tenement House Department looks after the 103,882 tenement buildings of the city, and has a force of 193 inspectors, of whom eight are women. There are still about 9,000 dark rooms in the old tenements, built before the law was passed requiring a certain amount of light and air, which have not been made over to meet the new requirements.

The Street-cleaning Department employs regularly about 5,400 men at salaries ranging from \$720 to \$860 a year.

The Board of Inebriety was organized to take charge of persons who are chronic addicts to alcohol or drugs, to treat them as victims of disease, and send them to a farm where treatment looking toward a cure is combined with farm work, truck gardening, etc. The great needs of this work cannot be met until further accommodations are made for patients.

The Municipal Civil Service Commission, consisting of three members appointed by the Mayor, maintains a regular staff of examiners of applicants for city positions. The regular payroll of the city includes nearly 85,000 persons, of whom about 30,000 are not under the jurisdiction of the Civil Service. There are also about 20,000 others who are employed part of the time.

There is a free *public employment bureau* which is growing steadily and is placing over two thousand applicants a month, and a Commissioner of Weights and Measures.

The management of each one of the large departments of city government requires special and technical training. A corporation manager would search the country for the best man to be found for each particular department.

School-teachers and school superintendents are chosen because of their training and experience. Minor city employees are appointed from Civil Service lists; but the custom of American cities is to appoint men at the heads of city departments who have distinguished themselves for party service.

The Budget for Greater New York is made up, beginning in June, and being adopted November 1st. Estimates of the needs of each department for the coming year are submitted to the Board of Estimate and Apportionment, and are studied by sub-committees who conduct public hearings, when the representatives of each department and the official examiners report on their estimates and each item may be examined and discussed. A tentative budget is printed for public use and the last week in October public hearings are held. By November 1st the budget must be adopted by the Board of Estimate and Apportionment and sent to the Board of Aldermen for their approval.

“Pay as you go” was a financial policy adopted in 1914 to relieve the tremendous piling up of future indebtedness of the city for permanent improvements of the non-revenue producing class. During the years 1914-1918 an annually increasing proportion of the cost of these improvements was to be included in the tax budget, and by 1918 the entire cost was to be met by taxation, and thereafter no bonds were to be issued for this class of improvement. Every dollar borrowed at 4½ per cent. interest on a fifty-year

bond costs \$1.69 in interest charges. While taxes are higher for a time under the pay-as-you-go plan, the actual cost of improvements to the city is much less.

The Mayor of New York City is the head of a corporation whose budget of expenditure, in 1916, was \$212,000,000. Before the war the general expenses of the United States Steel Corporation were about \$34,000,000 a year. The salary of the president of the Steel Corporation, or of any one of the largest business corporations of the country, would be from \$50,000 to \$100,000 a year. The Mayor of New York City receives \$15,000 a year. But a business corporation would insist on having for president a man whose training and business experience had made him peculiarly fitted for the job, while our practice in choosing a man for mayor is to give little consideration to special training and experience in the work of city administration.

V

STATE GOVERNMENT

The State has such large powers over its people, and over all political divisions within it, that it is often called the “Sovereign State.” The State regulates the ownership and transfer of property; it punishes murder and other crimes; it regulates business relations; it prescribes the form of marriage and the reasons for divorce; it authorizes the levying of taxes; it makes its own election laws and provides for education; until recently it has controlled railroads operating within its borders.

The State Constitution, adopted by a majority of the voters of the State, is the fundamental law of the State. It can only be changed by a constitutional convention or by the adoption of a constitutional amendment, which is done with considerable difficulty.

A constitutional convention is an assemblage of men chosen by the voters to revise the constitution. The result of their deliberation is then submitted to the voters, who can accept or reject it. The last revision took place in 1915 and was overwhelmingly defeated at the polls. The law now provides for a revision every twenty years if the voters desire it.

An amendment to the constitution can be proposed in the Legislature. It has to pass both houses of the Legislature during two different but successive sessions (a new session of the Legislature comes only every other year, when a new Senate is elected), and must then be submitted to the voters of the State for their approval. A majority vote makes it a law.

The Legislature has authority under the State constitution to make laws for the State. It meets every year on the first Wednesday in January at the Capitol in Albany, and remains in session until its business is completed, usually about April 1st. It is composed of two divisions or “houses,” the Assembly and the Senate.

Every ten years, in a year ending with the figure five, a census is taken of the people of the State, and on this basis there is a new apportionment of

Senators and Assemblymen.

The Senate at present is composed of fifty-two members, elected from certain divisions of the State known as Senatorial Districts. In general, each fiftieth of the population of the State is entitled to one Senator. (This rule is not followed mathematically, for a county may not be divided except to form two or more districts within it; no one county may have more than one-third of all the Senators, and no two counties may have more than one-half of the total number. This is intended as a check to a congested district having an undue representation.)

If a county which already has three or more Senators shows a sufficient increase in population to entitle it to another one, the additional Senator adds one more to the fifty Senators already provided for.

The Assembly is composed of one hundred and fifty members, and, roughly speaking, every one hundred and fiftieth part of the population of the State is entitled to one Assemblyman. In practice the rural county of small or medium size which does not contain a large city is one Assembly District. Chautauqua, Dutchess, Schenectady, Niagara, Orange, Rensselaer, St. Lawrence, Steuben, Richmond, Suffolk, and Broome have each two Assembly Districts. Albany, Oneida, and Onondaga have three each; Queens has six; Westchester and Monroe, five; Bronx and Erie, eight; Kings and New York, twenty-three each; Hamilton and Fulton counties have only one between them. Nassau County has recently been divided into two Assembly Districts. This division is made by the County Board of Supervisors.

The presiding officer of the Senate is the *Lieutenant Governor*. The presiding officer of the Assembly is elected by its members, and is called the *Speaker*. He appoints the standing committees, and has much control over legislation. He usually belongs to the political party which is in the majority in the Assembly. This party also elects a majority leader to control legislation on the floor. The choice of the other party is called the *leader of the minority*, and he is recognized as the leader of this party in the Legislature. The Senate also has majority and minority leaders.

Assemblymen are elected for one year, and Senators for two years. Both receive \$1,500 salary and an allowance of ten cents a mile traveling expenses once during the session.

How to Get a Law Passed by the Legislature: A bill may be introduced by any member, beginning, “The People of the State of New York, represented in Senate and Assembly, do enact,” etc.

It may be introduced into either the Senate or the Assembly, or it can be introduced in both houses simultaneously. It has a first reading and is referred to a committee. The committee may pigeonhole it and never report, or it may report it too late in the session for action by the Legislature, or it may report it favorably, or with a recommendation that it be rejected. If it is reported favorably it is put on the calendar to await its turn for consideration. It then comes up for a second reading, when it may be amended and sent back to the committee; after a third reading a vote is taken. If it is passed in one house it then goes to the other house, where it goes through the same procedure. If it is passed by the second house, it then goes to the Governor for his signature. If it is a bill concerning the government of a city it goes to the mayor of the city for his approval.

If either house changes the bill it has to go back to the first house for action in its amended form. The Governor has the power to veto a bill, but it can be repassed over his veto by a two-thirds vote.

The Governor is the chief executive officer of the State. It is his business to enforce the laws, through his appointive officers. He has control of the military forces of the State, which must consist of not less than twenty thousand men, of whom two thousand must be a naval militia. He has the power to grant pardons. He is elected for two years, and receives a salary of \$10,000 and the use of the Executive Mansion. He may also initiate legislation. At every regular session of the Legislature his duty is to send a “message,” telling the Legislature about the condition of public affairs and recommending measures for their consideration. He may also, at any time, ask for special legislation, and may call the Legislature together in an extra session. He has the power of many important appointments to State positions, but subject to the approval of the Senate.

The Lieutenant Governor, with a salary of \$5,000 a year, takes the Governor’s place in case of need. He presides over the Senate.

The Secretary of State has charge of all public documents and records. He grants certificates of incorporation, and has charge of elections and the taking of the census. His salary is \$6,000 a year.

The Comptroller must sign every warrant for payment of State funds. He acts as auditor for the State, reports to the Legislature concerning State funds, and superintends the collection of State taxes. He designates the banks in which State money shall be deposited. His salary is \$8,000 a year.

The State Treasurer is the custodian of State funds, and pays them out only on order of the Comptroller. His salary is \$6,000 a year.

The Attorney-General is the general legal adviser of the State. He prosecutes and defends all actions in which the State is interested. His salary is \$10,000.

The State Engineer and Surveyor must be a practical engineer. He has charge of the canals, and the surveying and mapping of all the public lands of the State.

Appointive Offices: Among these are two *Public Service Commissions*, each with five members. The first has jurisdiction over Greater New York, and the second over the rest of the State. In general, they have power to regulate railroads and street-cars, to establish rates, and to compel adequate service. They also control express companies, gas and electrical companies, telephone and telegraph lines. No company can raise its rates without their consent. Their business is to see that the needs of the public are adequately served, and also to protect the companies from unjust treatment. These commissions are considered so important that the salary of each commissioner was made \$15,000 a year.

The State Tax Commissioners have general supervision of the methods of raising taxes throughout the State. There are three of them appointed for three years, and they must visit every county in the State at least once in two years. Their salary is \$6,000 a year each.

The State Board of Equalization, which consists of the tax commissioners and commissioners of the land office, has to equalize the assessments in each county, and fix the amount on which the State tax is to be levied.

The Superintendent of Banks controls the banks, trust companies, building and loan associations, which make reports to him quarterly, from which he in turn makes a report to the Legislature annually. His salary is \$10,000, and his term three years.

The Superintendent of Insurance has control over all the insurance companies and reports annually to the Legislature. His salary is \$10,000, and term three years.

The Commissioner of Health must be a physician. He has general oversight of the health of the State, and supervises the registration of births, marriages, and deaths in the towns and cities. His salary is \$8,000, and he has a four-year term.

The Commissioner of Excise issues tax certificates for the sale of liquor and collects the excise tax, of which the State gets one-half, and the city or town in which the liquor is sold gets one-half. His salary is \$7,000, term five years.

The Commissioner of Agriculture appoints the directors of farmers' institutes, watches over the sale of food products that might be injurious to health, and has general care of the agricultural needs of the State. His salary is \$8,000, term three years.

The Commissioner of Highways, who is in charge of State roads and improvements, serves for two years with a salary of \$12,000 a year.

The Department of Labor, which is a very important branch of the State government, works to improve the conditions of labor. There are five commissioners who serve six years, each with a salary of \$8,000. In this department are several bureaus: viz., Inspection, Employment, Workmen's Compensation, Mediation and Arbitration, Statistics and Information, Industries, and Immigration.

The Conservation Commissioner controls departments for preserving and propagating fish and game, for protecting lands and forests, and the control of inland waters. He appoints a head for each division. (Forests owned by the State must be kept wild. They may not be loaned, sold, or exchanged, and no wood may be cut.) He serves six years, with a salary of \$8,000 a year.

The Civil Service Commission consists of three commissioners who have the duty of determining the rules with which to test the fitness of applicants for employment under the civil service laws. The civil service is intended to prevent the appointment of men to government positions through partisan politics or personal "pull." Positions are classified,

competitive examinations are held, and appointments made in order of merit. The custom has usually been to have separate lists made out of men and women, and it has been complained that preference has been given to the men's lists.

There is a *Superintendent of Public Works*, with a salary of \$8,000; a *Superintendent of Prisons*, salary of \$6,000, and a *State Commission of Prisons* of seven members who get \$10 a day each for each day of service; a *State Board of Charities*; a *State Hospital Commission in Lunacy* of three members, the president of which is paid \$7,000, and other members \$5,000.

There is also a *State Food Commission* of three members who serve without pay, appointed only for the period of the war, and a recently created *Farms and Markets Council*.

While most of the heads of the administrative departments of the State government are appointed by the Governor, the terms of office of many of them are longer than the term of the Governor who appoints them. As a consequence, a Governor may be in office, and important departments like the Excise Commission, the Public Health and Public Service, and Industrial Commissions, may be in the hands of appointees of a preceding Governor. They can be removed from office only by preferring charges and after a hearing. Also certain other important State officials, including the Comptroller and the Secretary of State, are elected by the people, and may differ radically from the Governor on questions of public policy. They may even belong to a different political party.

It is by some considered a weakness in the management of the affairs of the State, that the conduct of some of the most important departments of an administration may be out of the control of the Governor who is responsible for them.

The business of the State requires about 17,500 regular employees, and the payroll is about \$22,250,000. It is probable that some of these public officials in the service of the State might be dispensed with if they were required to work as many hours a day and as many days a year as they would be obliged to do in any private business.

VI

NATIONAL GOVERNMENT

The sovereign power of the United States is vested in the National government, the federal union of all the States, each self-governing, but all uniting for certain purposes. The Constitution of the United States is the supreme law of the land.

The National government, like that of the State and municipality, has three distinct divisions: the legislative, the executive, and the judicial. The legislative power rests with Congress, which is composed of the House of Representatives and the Senate.

The House of Representatives is elected every two years by the voters of the States. After the census, which is taken every ten years, Congress determines what the total number of Representatives shall be. These are then apportioned among the States according to population. After the census of 1910 the House of Representatives was increased to 435 members, which gave one member for every 211,877 inhabitants. New York has 43 Representatives, the largest number from any State in the Union. Every State is entitled to at least one Representative, although it may not have the requisite population. *The Congressional District* from which a member is elected is determined by the State Legislature. Greater New York has 23 Congressmen.

Qualifications for Representatives to Congress: A man must be twenty-five years old and have been a citizen of the United States for at least seven years, and be a resident of the State from which he is chosen. The salary is \$7,500 a year, with an allowance for a clerk, for stationery, and for traveling expenses.

The Senate is composed of ninety-six members, two members from every State in the Union, elected for a term of six years. In order that there shall always be experienced men in the Senate, only one-third of that body

is elected at a time. The Senate is divided into three classes, and the men belonging to one of the three classes are elected every two years.

A Senator may be re-elected as many times as a State chooses, and many Senators have served twenty years or more. This makes the Upper House of Congress a very conservative, stable body of men. Senators, as well as Representatives, receive a salary of \$7,500 a year. The *Vice-President* of the United States is the presiding officer of the Senate.

The election of Senators was formerly a prerogative of the State Legislature. The Seventeenth Amendment to the National Constitution, passed in 1913, provides that they shall be elected by direct voice of the voters of the States.

Qualifications of Senators: A candidate for the Senate must be thirty years old and have been a citizen for at least nine years.

Sessions of Congress: A new Congress comes into existence on the fourth day of March every odd year, although it does not meet in regular session until the following winter. The long session begins the first Monday in December in the odd-numbered year, and usually lasts until spring or summer. The short session begins the same time in the even-numbered year and lasts until the following March 4th, when the new Congress, elected the previous November, comes into existence, although it does not meet until the following December, unless the President calls an extraordinary session. A Congressman, therefore, is elected more than a year before he takes his seat. The Sixty-fifth Congress will end March 4, 1919. The members of the Lower House of the Sixty-sixth Congress will be elected in November, 1918.

Congressional Committees: The work of Congress is largely done through committees. The House of Representatives, as constituted to-day, is an unwieldy body. It is obvious that four hundred and thirty-five men is too large a number to work effectively as a whole. Every bill, even a recommendation from the President, is referred to an appropriate committee. It is only because of these many committees that it is possible to transact the very large amount of business that comes before Congress every year.

How a Bill Is Passed: The procedure in Congress is similar to that in the State Legislature. A bill may be introduced by any member in either house, and must pass through both houses.

Powers of Congress: Congress has absolute power to levy and collect taxes. Revenue bills must originate in the House of Representatives. Congress has the exclusive power to declare war, to raise and support an army and navy, and to regulate commerce. It controls naturalization laws and immigration; it establishes post-offices; grants patents and copyrights. It has the power to coin and to borrow money. It also governs the District of Columbia and the Territories.

An Amendment to the Constitution of the United States must be passed by a majority of two-thirds of the votes cast in both houses of Congress. It is then submitted to the States for ratification by the State Legislatures. When the Legislatures of three-fourths of the forty-eight States have ratified such an amendment by a majority vote of their members it becomes law.

The Executive: The President of the United States has greater powers than have the heads of many other nations. He is the Commander-in-chief of the Army and Navy; he conducts official business with foreign nations and makes treaties with them, subject to the approval of the Senate; he appoints, with the consent of the Senate, ambassadors, ministers, high officials of Army and Navy, justices of the Supreme Court, and a vast number of other officers. He may veto measures passed by Congress, but they can be passed over his veto by a two-thirds vote.

The President has power to initiate legislation by sending a message to Congress, giving them information about important affairs and recommending legislative measures for their consideration. The degree to which he can force legislation through Congress depends both on the strength of the party in Congress to which he belongs, and on the personal power and prestige of the President himself. President Wilson is the first President, for more than a century, to appear in person before a joint session of Congress and read his message.

Election of the President: The President is chosen by presidential electors, elected by the voters of the various States, the number of electors for each State being the same as the total number of Representatives and

Senators in Congress from that State. The electors of a State meet at the State Capitol on the second Monday of January following the election, to cast their votes for President. The electors are merely machines to register the vote of the State, and usually the entire electoral vote of a State goes to one candidate, although the majority of the popular vote for him may have been small. This system makes the presidential election virtually an election by States. A State “goes” Republican or Democratic. The struggle is concentrated in a few doubtful States. To win or lose them may mean to win or lose the election. It has happened that one candidate has actually received a larger popular vote than his opponent, and yet has not been elected, because the number of votes in the electoral college from the States that gave him a majority was smaller than the number of electoral votes from the other States. There is a movement toward the abolition of the electoral college and direct nomination and direct election of the President by the voters.

The Vice-President must be eligible to the office of President. He is elected for the same term, and his salary is \$12,000 a year. His only duty is to preside over the Senate and to succeed the President in case of need.

The Cabinet consists of ten officials appointed by the President with the consent of the Senate to conduct for him certain departments of public business. The salary of a Cabinet member is \$12,000.

Cabinet members have no vote in either House of Congress, and are not responsible to it in any way. Like the President himself, they may belong to the party which is in the minority in Congress. The Cabinet is an advisory body to the President, but its members have no legal standing in that way, and he may ignore them if he chooses. Each Cabinet officer is the administrative head of his department.

The Secretary of State heads the Department of State, and is responsible for all official negotiations and relations with foreign governments. He is the medium of communication between the President and the Governors of the States.

The Secretary of the Treasury manages national finances, administers revenue, currency, and national banking laws.

The Secretary of War has charge of all matters of national defense, river and harbor improvements, and is responsible for the maintenance of the Army.

The Attorney-General is the legal adviser of the President and the National government.

The Postmaster-General conducts the affairs of the United States Post-Office Department and the transportation of the mail.

The Secretary of the Navy has charge of the Navy and its equipment, yards, and docks.

The Secretary of the Interior and his department have charge of public lands and Indian affairs. He has the granting of pensions and patents.

The Secretary of Agriculture has for his business the improvement of agriculture in the United States. He also has charge of the Weather Bureau, animal and plant industry, and the forest service.

The Secretary of Commerce must aid and develop the commercial interests of the country, including mining and transportation. He takes the census every ten years.

The Secretary of Labor and the Department of Labor are designed to protect the welfare of the wage earners. To this department belong the Bureau of Immigration and the Children's Bureau.

The tendency of the past few years has been to enlarge the powers of the National government. With the rapid increase of means of transportation distant parts of the country have been brought close together. Sectionalism is diminishing. To "States' rights" is being added a national pride. In the administration of the business of the nation, State boundaries can often no longer be considered without a distinct loss of economy and efficiency. To give one example: the State control of railroads resulted in obstructive and entirely different requirements being made by neighboring States, on the same railroad passing through several of them. The power of separate States to control, independent of each other, such things as marriage and divorce laws, has resulted in the deplorable situation that a couple may be legally married in one State and the marriage may not be recognized in another.

It is evident that with the growth in influence and importance of the United States, the National government is gradually assuming many functions which formerly were left to the separate States.

VII

WHO CAN VOTE

There is one way in which the government of a republic like the United States differs from other forms of government—viz., in a republic *the source of all power rests with the people*. They choose the men to whom they give the right to speak for them and to represent them.

The right to vote for the man who is to represent you, who is to make the law for you and to enforce that law, is the most sacred right of a free country.

The success or failure of government in the United States, and in every political division of the State, rests with the men and women who have the power of the vote.

One of the great dangers of a democracy is the carelessness and indifference of the voter. If a government “by the people” is to be a success, the people themselves must see to it that honest, responsible, and efficient officials are chosen.

Every Person in the State Is Either a Citizen or an Alien. Citizenship Is Conferred by the National Government and the State Has No Power to Confer or Withhold It.

A Citizen is defined in the Constitution of the United States: “All persons born or naturalized in the United States and subject to the jurisdiction thereof, are citizens of the United States and of the State in which they reside.” Native-born Indians who have had land allotted them and have given up their tribal life are citizens. All persons born out of the country of citizen parents are also citizens, except where the father has never resided in the United States.

Naturalization: Congress makes uniform laws of naturalization for all the States.

An Alien is a person born in a foreign country who lives here but is still a subject of some other country.

An Alien May Become a Citizen of the United States, and thus of New York State, after he has lived in the country five years continuously, and in the State one year. He must be able to write his own language, to read and speak English, and be of moral character. His first step is to go to a Federal court, or a court of record, and swear that it is his intention to become a citizen and renounce his allegiance to any foreign power. He is then given his “first papers.” Not less than two years, or more than seven years later, he must appear again with two witnesses to swear to his good character and loyalty, and file a petition. After ninety days his application is heard by the court and he is examined by the judge and renews his oath of allegiance. If the judge is satisfied he is given his certificate of naturalization which makes him a citizen. Fees amounting to five dollars are now charged.

Only White Persons and Negroes May Become Naturalized: Chinese, Japanese and East Indians cannot become citizens unless born in the United States. Polygamists are excluded.

An Unmarried Woman can take out papers of naturalization and become a citizen in the same way as does a man.

A Married Woman is only a citizen if her husband is a citizen. Under the present law, she cannot become naturalized by herself. Also, under a strict interpretation of the law, she has the residence of her husband and must vote from the same place.

A Woman Born in the **United States** who **marries** an **alien**, although she may never leave her own country, **ceases to be an American citizen** and becomes a subject of the country to which her husband belongs. Therefore, the wife of a man not a citizen of the United States cannot vote in this country.^[2] If a resident of the United States, she resumes her citizenship at the death of her husband, or if she is divorced. **A foreign-born woman who marries a citizen becomes a citizen.** Children under age become citizens with their parents.

An American-born man may live abroad many years and not lose his citizenship.

A naturalized citizen is considered as losing his citizenship if he returns to his native country and resides there two years.

A citizen has the right to withdraw from the United States, renounce his allegiance, and acquire citizenship in another country.

An alien enjoys the same protection of the law as does the citizen. The government extends its protection to the native-born and the naturalized citizen alike. A naturalized citizen is protected while abroad, even in his native country, by our government in exactly the same degree as a native-born citizen would be. A naturalized citizen may fill any office in the land with the exception of that of President.

A Citizen Is Not Always a Voter: Women were citizens of New York State before they were given the right to vote, if (1) they were born in the United States, (2) were married to citizens, or (3) if, unmarried, they had taken out their own naturalization papers.

The State Confers the Right to Vote and Fixes the Qualifications for Voters.

Who May Vote: “Every citizen of the age of twenty-one years who shall have been a citizen for ninety days, an inhabitant of the State for one year, and a resident of the county for four months, and a resident of the election district for thirty days, has a right to vote” (Act II, Sec. I, Constitution of New York State). Foreign-born women whose husbands are citizens must live in the country five years before they can vote. In time of war soldiers and sailors may vote wherever they are, and their ballots are counted in their home districts.

It is reasonable that a certain length of residence should be required before a person is permitted to vote, in order that he may have a chance to become familiar with the interests of a community, and acquainted with the qualifications of the candidates.

Who May Not Vote: A naturalized citizen who has not been naturalized for at least ninety days before election; a person whose name and address is not registered with election officials at least ten days before an election; a person convicted of bribery or an infamous crime; a deserter from the Army or Navy. A person who bets on an election is disqualified for voting at that election.

The Governor may restore citizenship to a person who has lost it.

The State Cannot Interfere with the Rights of Citizens: While the State prescribes the qualifications for suffrage for its own citizens, by the Fourteenth and Fifteenth Amendments to the National Constitution, the Federal government prohibits any State from abridging the privileges and immunities of citizens of the United States, and declares that the State in making the qualifications for the suffrage cannot discriminate because of *color* or *race*.

The Fourteenth Amendment further provides that when the right to vote is denied to any of the male citizens of a State, its basis of representation shall be reduced in proportion.

Several of the Southern States have restricted the suffrage by educational and property qualifications, but have excluded from these qualifications those who were voters in 1867 (before the negroes were enfranchised) and their descendants. This discrimination of the so-called “grandfather” clause was held unconstitutional by the Supreme Court of the United States in 1915, but the reduction in representation has never been enforced. Massachusetts has an educational qualification and Pennsylvania a tax qualification, which also exclude many male citizens; but the Fourteenth Amendment has never been seriously enforced in either case.

The National Amendment for Woman Suffrage: An amendment to the Federal Constitution is pending which provides that the *right to vote shall not be denied on account of sex*.

While New York State has given the vote to its women, this permission does not extend beyond its borders. New York women lose their vote if they go to Pennsylvania, New Jersey, or any adjoining State. Twelve States have given women full suffrage, and nineteen States have given them the right to vote for President. The Woman Suffrage Amendment, when passed by Congress and ratified by three-fourths of all the States, will secure the right to vote to all the women of the United States.

FOOTNOTES:

[2] A bill is now before Congress to change this law and make it possible for a married woman to choose her country for herself, as a man does, and to require that she be obliged to go through the same process of naturalization that a man does, including the oath of allegiance. It is only through a Federal law that this change can be made.

VIII

POLITICAL PARTIES

A political party is a group of voters organized for the purpose of putting certain policies into effect, to elect certain men to office, and to control the machinery of government. Under a popular government, where public officials are chosen by the people and political policies are formulated by them, political parties have seemed the most expedient device as yet discovered to accomplish these ends.

The political party was not originally a part of the government; but as the country developed and government needs and opportunities multiplied, party machinery grew more complex, and its powers increased to such a dangerous degree that for the sake of its own integrity, the State was forced to regulate it. Party conventions, primaries, and much of the party machinery are now controlled by law.

Two Parties: The United States has always had two principal parties. They have had different names, and under the same name they have advocated different principles. The first parties were the Federalists, who believed in a strong central government that should exercise all the powers that the Constitution could be interpreted to permit, and the Anti-Federalists, who believed in limiting the functions of the Federal government and reserving as much power as possible to the States.

The Republican and Democratic Parties: It is difficult to define the difference between the present principal parties. The Republican party is the successor of the Federalists. It was formed shortly before the Civil War to prevent the extension of slavery. In general it has believed in a liberal interpretation of the Federal Constitution, and has wished to see the powers of the National government extended. The Democratic party has advocated "States' rights," the right of the individual States to settle their own affairs. It has held to a strict interpretation of the Constitution, and has believed in limiting the power of the National government. Besides the doctrine of States' rights, the principal difference between the Republican and

Democratic parties has been the tariff. The Republican party has advocated a high tariff, and the Democratic party a tariff “for revenue only.” While these have been the two issues most discussed between the two parties, even on these questions the lines have often been confused. Democratic members of Congress have advocated measures which distinctly contradicted the principles of States’ rights, and the Republican party as often has adopted them for its own purposes. The Democratic party has not always stood on its low-tariff platform, and Republicans have often been against protection. Even before the present war old party lines had begun to fade. With the dangers threatening the country, which war has brought, these lines have been almost obliterated. What they will be when the war is over no one can predict with certainty.

The Republican party came into power in 1860, when it elected Abraham Lincoln President, and until 1913 it controlled the National government, except for two terms of four years each when Grover Cleveland was President.

In general the Southern States are Democratic, preserving a “solid South.” The Northern States are apt to be Republican.

The Progressive Party was organized in 1912 as the result of a split in the Republican ranks, by men who wanted more progressive measures than those advocated by either the Republican or Democratic party. It advocated public ownership of mines, forests, and water power; a larger measure of justice for the working-classes and suffrage for women. It has disintegrated, but it had a large effect in liberalizing both the older parties, and many of its policies have been adopted by them.

The Prohibition Party was organized in 1872 to bring about complete prohibition of alcoholic drinks. It has elected candidates to the Legislature and has secured an ever larger measure of local option and even State-wide prohibition.

The Socialist Party, organized in 1900, advocates government ownership of land, railroads, telegraph and telephones, mines, and all vital industries. It has become largely the party of the industrial workers.

Minor parties have come and gone, but they have usually left a lasting effect on the dominant parties.

In New York State, any organization is considered “a party” which polled at least 10,000 votes for Governor at the last election.

Party Organization: The individual voter, or group of voters, is helpless to change conditions or to elect a man. It is only through the organization of many men who want the same thing that they become effective. Political parties are organized for National, State, and local campaigns.

The great work of the political parties is the nomination and election of a President every four years. For this purpose there must be a national party organization.

The National Committee of each party is composed of one member from each State. It organizes the National Convention of the party, which is held early in the summer before the presidential election, and at which party policies are formulated, and candidates for President and Vice-President are nominated. In the spring the chairman of the National Committee calls a meeting of this committee to decide where and when the convention shall meet.

Besides nominating candidates for President and Vice-President, the convention adopts a “platform” in which is set forth the principles which the party holds and its attitude on important public questions. A new National Committee is appointed to carry on the campaign and to act until the next convention.

The platform adopted by the party at its National convention is an expression of the principles for which the party stands. A “plank” may be put in simply to catch votes; on some question the plank may not be explicit, but may “straddle” the issue. While in the main the National platform sets forth the principles to which the party is committed and its proposals for future action, the speech or letter of acceptance of the candidate for the presidency usually contains a more reliable statement of the policies which he would advocate if elected.

The State Committee is the party organization in control of the party in the State. It is composed of one man from each of the one hundred and fifty Assembly Districts in the State, who are elected by the enrolled members of the party in each district. The chairman is elected by the committee to serve for two years.

Party members are all those who at the last registration, or last general election, enrolled in the party.

State platforms count for little. They usually “point with pride” to things the party has done, and denounce the acts of the opposing party. Most voters pay little attention to them.

The County Committee consists of one man from every election district in the county; the *City Committee*, one from each ward or election district in the city. (New York County has its own organization, different from the others.) The chairman of each of these committees is elected at the party primaries. He is usually an experienced politician, and each committee is the party authority locally.

The Election District: The election district captain, or county committeeman, is the man who comes in direct personal touch with the voter. His business is to deliver the vote of his election district to his party. He must know every voter in his district, find out how each one is going to vote, and keep track of new voters, especially the first voter who has yet to choose his party. He is an inspector at elections; he selects poll clerks and watchers, and handles the money sent by his party to his district. The Assembly District leader or County Chairman distributes the patronage and the election district captain may recommend men to him. The more offices that can be filled, and the greater the number of “the faithful” who can be provided for, the stronger the party at the next election. The one quality necessary for the election district captain is complete loyalty to his chairman and party.

If ordinary party members pay no attention to the organization locally it is bound to fall into the hands of those who make their living out of politics.

Party Funds are contributed by members of the party, subscriptions from interested men, from party candidates and interests which expect to be benefited if a certain party comes into power.

It is a crime to levy on the salary of any public official for campaign expenses, but such contributions are often still expected.

If a party elects its candidate, he has many officials to appoint, and these offices are often unfortunately regarded as rewards for party loyalty and

work. The civil service was created to take offices away from party control and prevent the “spoils system.”

The Use and Abuse of Party: The political party has a very definite place in popular government. In the conduct of a campaign organization is indispensable. The danger lies in the difficulty of sufficiently safeguarding the interests of the public from the spoilsmen of either party. It is through the party that citizens must work for political measures, but it is also through the party machine that anti-social forces are able to successfully carry out their plans.

There is tremendous power for a party in its control of the government of a city or a State. A multitude of offices have to be filled, franchises to be granted, valuable contracts let, and there are a thousand opportunities for public plunder and private enrichment. The party in power nationally, has untold possibilities in the control of the fabulous resources of the country. In order that a party may come into power in the National government, it is necessary for it to be in control in the State, and to control the State it tries to hold minor political divisions. To gain control locally it partitions out the offices where they will do the most good; it gains support from every quarter through any means; it seeks to have men in positions of authority who can be so controlled that they will subordinate everything to the party welfare.

The average voter not infrequently supports his party at all elections, without regard for the merits of the candidates. He is often a Republican or a Democrat, without any clear idea of the different principles of the two parties. Or he may have become a Republican or a Democrat because he agreed with the party in regard to some National question. So he follows it blindly in State and city elections, which have nothing to do with National questions. It is seldom that important issues of party principles are involved in a local election; but the tradition of party support is strong and the temptation to hold party allegiance even at the expense of the public is almost irresistible.

The Independent Voter: Undoubtedly the number of independent voters is growing. Whenever for any reason a group of non-partisan voters abstain from party allegiance, are alert to the sincerity of party promises, and are watchful of the qualifications of candidates, both parties begin to clean

house and put up as candidates the best men available, in order to bid for the independent vote. Such a body of non-partisan voters may be the decisive factor in an election, especially if the two parties are about evenly divided.

The independent voter is not popular with the machine politician. The larger the number of non-partisan voters the more difficult it is for him to perform his duties, and to control and deliver the vote.

In city and village elections, party issues have no place, and there is a growing feeling that qualification for office should be the only consideration.

It all comes back to the voting citizen. Politics and political parties are what the people make them.

IX

HOW CANDIDATES ARE NOMINATED

While any man's name can be put in nomination for any office, he has little chance of being elected in most elections without being the candidate of a political party. For a long time parties were allowed to nominate candidates as they chose, and party bosses dictated nominations without regard for the wishes of the rest of the party or for the interests of the public. For some time past the State has regulated the methods of nominations.

Candidates for all offices are nominated in one of three ways: (1) At a party convention; (2) by direct primaries; (3) by petition.

Candidates for President and Vice-President are nominated at National conventions, which are the most spectacular events of our political life. Delegates to the National convention are elected at special party primaries held the first Tuesday in April of the presidential year. Every State is allowed double as many delegates as it has Senators and Representatives in Congress. The four men corresponding to the representation of the State in the Senate are delegates-at-large; the others are district delegates. The National convention is, therefore, composed of about one thousand delegates, and its meetings draw other thousands of spectators. There are few auditoriums in the country big enough to house the convention. There are usually several candidates, each one of whom is the choice of a group of men in the party. The name of each candidate is presented to the convention by a carefully selected orator, under circumstances planned to arouse enthusiasm, and, if possible, to stampede the convention.

A majority vote is sufficient to nominate the candidate in the Republican convention, but the Democratic party requires a two-thirds vote. Sometimes not one of the candidates presented is able to secure a majority. Days may be consumed in discussion and bargaining, and in the end an unexpected candidate, a "dark horse," may be nominated. The members of the National

Committee who are to serve during the next four years are elected in the convention, one member from each State.

How Candidates for Office in New York State Are Nominated: The direct primary is the method now used in New York State by which candidates for all offices except those in towns and villages are nominated, and the conduct of these “official primaries,” as they are called to distinguish them from the unofficial primaries of the party, is carefully prescribed by State law. A primary election is held thirty days before the general election, and is conducted on the same plan and in the same general way as the election. Candidates of each party for all the elected offices are nominated by the enrolled party members. At the same time leaders for the district of each political party are elected. The ballots for each party are printed by the State and differ in color. The candidates whose names are printed on the primary ballot are designated by party committees, and other persons may have their names added by petition.

Who May Vote at the Official Primaries—Enrolment of Voters: Only those who have enrolled themselves as members of the party are permitted to vote at the official primaries. At the time of the registration of voters in the cities, or at the last general election in the country, voters are given a party enrolment blank to fill out. These enrolments are placed in sealed envelopes and opened a week after the regular election, when enrolment lists of each party are made out. Such enrolment is not compulsory, but unless a voter enrolls he is not able to take part in the nomination of candidates. By enrolling he does not pledge himself to vote the party ticket at the election (except in the case of the Socialist party); but he is allowed to vote at the primary for candidates of the party in which he enrolls.

Objections to Direct Primaries are made that few voters take the trouble to vote at them, and that the choice of candidates is very limited and is still controlled by party leaders. They are also very expensive for a candidate, especially if he is not backed by these leaders. To stand any chance of nomination a candidate has to canvass the voters and make himself known to them. A poor man cannot afford to enter a contest in a direct primary unless funds are supplied him or unless he expects to recoup himself later at the public expense. Also, as that candidate wins the primary election who receives the largest number of votes, the successful candidate

may be one who has had the votes of only a small proportion of the party which is expected to support him later at the polls.

So far in New York State the primaries, even in city elections, are largely party affairs. The suggestion has been advanced that city primaries should be strictly non-partisan, and that party emblems should be eliminated from the primary ballots.

Nomination by a Convention is a method still used in some States, and until it was superseded by the direct primary it used to be the manner of nominating candidates in New York. An official party convention is made up of delegates elected by members of the party from the different parts of the State. Names of possible candidates are presented to the members in open convention, who express their choice by ballot.

Objections to the Convention System are based on the fact that the regular party convention is usually controlled by a few leaders who decide beforehand every detail of the business of the convention and make up the slate. They may trade with another group and concede part of the ticket to them in return for certain concessions which they may obtain for themselves. The delegates are often there simply to follow orders and to nominate the men agreed upon by the party bosses.

The “slate” is the list of candidates for the various offices to be filled. Nominations for these positions are usually influenced not so much by the qualifications of the men proposed for office, as by the ability of the proposed candidates to get out the vote and to add strength to the ticket, also by geographical considerations, that each part of the State or district may be represented on the ticket.

Unofficial State conventions are still held by the leading parties in New York. Their principal business is to frame a platform. This convention also appoints the central committee.

The Primary Is Important to Every Voter because it is there that policies are determined and party leaders elected, as well as candidates nominated for offices. Unless the members of the party take the trouble to vote at the primary, the choice of candidates is left to the few leaders who make a business of politics. This leaves the field clear for “the boss” to put up candidates whom he can control after election.

The vote at the primary election is always small. The proportion of voters who vote for the nomination of candidates is often as low as 18 or 20 per cent. of the vote cast at the election. The reason for this is not difficult to understand. The primary election comes at a time when little public interest has yet been aroused in the coming election. By election-time the voters have been circularized and canvassed and the newspapers have devoted much space to the subject. Also much more effort is made by the party to get out the vote at election-time than at the primary. Party leaders can count on the faithful coming to the primary election without urging, and they are the ones who often choose the candidates.

Nomination by Petition: Most candidates on the ballot are nominated by a party, but a man may also be nominated by a petition of independent voters. The petition must contain the title of the office to be filled, the name and address of the candidate, and be signed by a certain number of voters.

X

ELECTIONS

Laws concerning the holding of elections have grown much more stringent in the last few years. Every detail of the casting of a ballot is now prescribed by law and every precaution taken to insure honesty of elections. The precautions apply more to cities than to rural communities, with the result that more corruption may sometimes be found to-day in country elections than in those in cities.

Registration of Voters: In large places or densely populated districts it is impossible for the election officials to know every voter, therefore the law requires that in cities and villages of over five thousand inhabitants every voter shall appear every year before the board of registration and have his name put on the registration list. He is required to answer certain questions as to his age, his exact residence, his business, and where his last vote was cast, and to sign his own name for purposes of identification and to prevent fraud.

In smaller places and in rural districts, the signature is not required, and after a man's name is once registered it remains on the book as long as the voter remains in the district. In practice it remains on the book until some one takes it off; and the names of men who have died or moved away are frequently found in a rural registration book.

Time of Elections: The general elections take place in the fall, on the first Tuesday after the first Monday in November. National elections for President and Vice-President take place every four years, in the year that ends with the figure four or its multiple. Elections for representatives to Congress and State elections are held the same day every two years, in the even-numbered years. City elections are held the same day in the odd-numbered years. City elections are held separate from State elections in order to keep National and State issues from intruding in the election of municipal officers. Local elections usually take place the same day, with the exception of the spring village election and town meeting.

The Election District: For convenience every county or city is divided into election districts, each with one polling-place. The average number of voters to an election district in New York State is from two hundred and fifty to four hundred. When a district grows to five hundred voters it is usually divided. In Chicago, since women were given the vote, an election district contains from five to six hundred voters. It has been found that the women vote at the hours when men are busy, and that the same election officials can handle many more votes than is customary in New York.

Election Officers: Boards of elections, appointed by the county board of supervisors, are in general charge of the elections in the county, and there is a State Superintendent of Elections appointed by the Governor. At each polling-place on Election Day there is an election board consisting of four election inspectors, two ballot clerks, and two poll clerks. The law provides that election boards and boards of registration shall consist of equal representatives from the two political parties that cast the highest number of votes at the last election. This does not apply to town and village elections. Each party also is allowed two watchers. A railing shuts in the voting-booths and tables, and no one but the election board and the official watchers is allowed under the law to be inside this railing.

The polls are open from six o'clock in the morning until five o'clock in the afternoon. Before voting begins the ballot-boxes are opened and inspected to see that they are empty. The official watchers have a right to see everything that is done. Electioneering is forbidden within one hundred feet of the polls. The voting-booths are constructed so as to insure privacy while the voter is marking his ballot, and the ballot is folded so that no one but the voter himself knows how he has voted.

The Election: When the voter appears to cast his ballot, he gives his name and address, and the registration book is consulted to see that he is registered, the number of the ballot given to him is called out by the ballot clerk, and his name and the number of his ballot are entered in the poll-book.

Official ballots are provided for every polling-place, twice as many as there are registered voters in the district.

All the candidates for one office are grouped together on the ballot, each name with a blank square beside it. To vote for a candidate the voter must

make a cross with a lead-pencil (not ink) inside of the box beside the name of the candidate: ☒. If the cross extends beyond the box, or if the word “yes” is written, if the ballot is erased or in any way defaced, it will be thrown out at the count as void. If a voter spoils a ballot he should ask for another one. An illiterate person is allowed assistance in marking his ballot.

When the voter comes out of the booth, where he has marked his ballot in secret and folded it so it cannot be read, he gives the ballot to an election official, who announces the name of the voter and the number of his ballot, tears off the stub, and drops the ballot unopened into the box. A person’s vote may be challenged by an inspector or watcher, or at the written request of any voter. If, under oath, he is questioned and swears that he is eligible, his vote is recorded, but is marked challenged.

The Count: At five o’clock the polls are closed and the ballots are counted. They must not be handled by any one but the election officials, although the watchers may see every ballot and watch the count. The count for each office to be filled is made separately, and if there are many candidates it may take many hours to complete the count and know the result. Official tally sheets are provided. The result is filed with the County Clerk. The board of supervisors meet as a board of canvassers to canvass the result, and the returns are sent to the State board of canvassers.

The Australian Ballot is the only one used in New York State elections. It has on one ballot the names of all candidates of all parties for all the offices to be voted for. The names are grouped by offices, and the first name in each group is the candidate of the party that cast the largest vote at the last election. The only ballots shown before Election Day are sample ballots printed on pink paper, while the ballots used at the election are white. They are all numbered, and every one must be accounted for.

Until recently the ballot was printed with a column for each party, so that the easiest thing the voter could do was to put a cross within a circle at the head of the column, and thus vote for every candidate of that party—what is called a “straight ticket.” The ballot used at present requires a separate cross for every separate candidate, and so encourages independence and intelligence on the part of the voter. There are blank places so the voter may write in any name he wishes for any office.

Short Ballot: It is evident from the brief outline of the structure of government contained in the earlier chapters, that there are a great many officers to be elected. It is impossible for even the most intelligent and most interested voter to know the merits of as many candidates as often appear on one ballot. In some elections ballots are used which can be measured only in feet, and sometimes even in yards. To remedy this evil there is a strong movement toward a *short ballot*. This would mean cutting down the number of elective offices.

The tendency of government to-day is to concentrate the responsibility on one man or a few men, to let them make appointments, and to hold them accountable for results.

Corrupt Practices Act: The cost of campaigns and elections to the political parties and to many candidates is great. While there are many legitimate expenses connected with an election, the uncontrolled use of large funds leads to grave corruption and has brought about careful regulation by the State of money used at election-time. Contributions from corporations are prohibited.

A public statement of campaign funds must be made by every candidate and every organization taking part in a campaign, of all money received for campaign purposes and how it has been expended. This statement must be filed with the Secretary of State within twenty days after the election, and be open to public inspection. Even these precautions, while more severe than those found in most States, have not succeeded in putting an end to the corrupt use of money in elections.

It has been proposed recently that an addition to the Corrupt Practices Act should be made to require all candidates and campaign managers to file, five days *before* election, instead of twenty days *after*, a list of receipts and expenditures, so that voters might know before the election the sources of political contributions and the use to which the money is put.

A second proposal has been made in regard to the personnel of the election officers, that instead of these boards being party appointees they should be appointed from the civil service lists. It is argued that with civil service appointees handling the count of ballots there would be less likelihood of mistakes or deliberate fraud.

Oregon has adopted the plan of having a pamphlet printed by the State for both the primaries and the elections, in which is set forth the claims of candidates of all parties, and both sides of all public questions to be voted on. This pamphlet is sent at public expense to every voter in that State.

Voting-machines are expensive, but they do away with the necessity for voting-booths, and require fewer election officials. Perhaps that is one reason they have not been more popular. They register the number of votes cast for each candidate, and the result of the election is known as soon as the polls are closed, and does not have to await the long, tedious, and often incorrect count by hand.

The Use of School-houses and other public buildings for registration-and polling-places is growing more common. It not only saves the large rent usually charged for the use of other buildings for polling-places, but it also gives more room and more convenient surroundings than are afforded by the kind of place often rented for use on Election Day. Unless provision is made by a city charter or some special permission school-houses may be used in this way only by a vote of the people of the district.

The Cost of Elections in proportion to other expenses of government is small. In the budget for New York City it figures less than 1 per cent. of the total budget. At the same time it could undoubtedly be lowered by economy. High rent is paid for polling-places, double the number of ballots necessary and liberal supplies are given to each district. It was found in Chicago, when women became voters, that the cost of elections was increased very little. The supplies furnished, and the same number of election officials, were found to be able to care for a large increase in the number of voters.

XI

TAXATION

It is evident that to carry on the necessary business of a city, a county, the State, or the nation requires money. Also, since everybody shares in the benefits of government, every one should help pay the bill.

One of the most difficult problems of government is to devise a system of taxation that cannot be evaded, that will raise sufficient money for expenses, and that will treat every one with equal justice.

Taxation may be divided into two general classes, direct and indirect. *Direct taxes* are those imposed directly upon property or persons; such as taxes imposed upon land, personal property, or income. The term *indirect tax* is applied to taxes upon activities such as carrying on some business or upon buying, selling, manufacturing, or importing certain articles.

A direct tax, as a rule, cannot be evaded or shifted to some other person. Indirect taxes can be evaded by abstaining from the activity that is taxed. They can usually also be shifted to others, and are generally paid by the consumer, or user of the article that is taxed. In general, direct taxes are levied by the State and municipal governments, while the National government derives its revenue (with the exception of the income tax) mainly from indirect taxes.

Taxes for local purposes are levied largely on houses and land, on what is called *real property*. *Personal property*, which is movable property, such as mortgages, live stock, furniture, etc., is also subject to taxation, but it is assessed only upon the balance of its value in excess of the indebtedness of the person taxed. It is a more difficult tax to collect than the tax on real property, and is evaded to such a large extent that many economists believe that it should be abolished, and some tax substituted more possible to impose equally and to collect.

Village and school taxes are usually collected independently by village and school officials. ^[A] Town, county, State, and city taxes are assessed and

collected at the same time.

Tax Districts: The State is divided into tax districts which have usually the boundaries of the township or city, and there are three tax assessors in each tax district elected by the people in the town, and usually appointed in the city.

How Taxes Are Assessed: The State Legislature decides the amount needed for carrying on the government of the State. The largest part of these expenses are met by special indirect State taxes. The remainder of the amount to be raised is apportioned among the counties according to the value of taxable property in each (see State Board of Equalization).

The county board of supervisors decides how much is needed for county affairs. The town meetings, or the town boards and the voters through voting on propositions submitted by the town boards, decide how much money is needed for the business of the towns. This sum is added to the total amount of taxes necessary for the county government, and to the county's share of taxes for the State government, and the combined sum is the amount that must be levied on the property in that county. The amount needed to carry on the government of a city in the county is reported to the county board of supervisors and to this sum is added in the same way the proportion of county and State taxes which the city must pay.

Assessing the amount each taxpayer shall pay is the duty of the assessors. They make up an *Assessment roll* which must contain the name of every person in the district who owns property, and the assessed value of his property. The way the assessors do this work varies largely. The policy governing assessments in rural districts is to place as low a valuation on property as possible, in order that the total assessed valuation for the county shall be kept down, so that the apportionment given to the county for State taxes shall be low, and the larger burden of taxation shall fall on the cities. When the assessment roll is completed the assessors notify the public that it is open for inspection, and a time and place are fixed for a hearing, when any one who thinks he has been unfairly treated may complain. If such a person is not satisfied with the decision of the local assessors he may appear before the County Board of Equalization with his complaint.

The County Board of Equalization is the county board of supervisors. They have power to equalize the assessed value of the real property in any

tax district in the county. They apportion the amount of State and county tax due from each town or city, add the town or city tax, then ascertain the amount each person shall pay according to the assessed valuation of his property. This sum is noted on the assessment roll opposite each person's name and the roll then becomes the tax roll of the district.

A practical example: Suppose X owns a house and lot which the assessors value at \$5,000. The county board of equalization finds that the city where X lives must raise \$100,000 in taxes; \$90,000 is required for the city government; \$9,000 is the sum the city is required to contribute to the expenses of the county, and \$1,000 is the share the city has to pay toward the government of the State. The value of taxable property in the city is \$5,000,000. Every dollar of assessed property in the city must therefore pay two cents in taxes, and X's taxes will be \$100, of which \$90 will go to the city, \$9 to the county, and \$1 to the State. A mortgage on the property does not decrease the amount to be paid.

Collecting Taxes:^[3] If a person fails to pay his real-estate taxes the county treasurer is authorized to sell his property for the unpaid taxes. The property may be redeemed by the former owner on payment of back taxes with interest due and the cost and expenses of the tax sale.

Public buildings, religious and charitable institutions, are usually free from taxation; they are for the benefit of the entire community.

State Taxes: The ordinary expenses of the State government are met by revenues derived from special indirect State taxes, so that for years there was no direct State tax. State revenues are provided through taxes on stock transfers, mortgage taxes, inheritance taxes, excise, franchise, and corporation taxes. One-half the amount derived from the excise tax goes to the State and one-half to the community from which it comes.

Every stock company incorporated under any law of the State must pay a tax upon the amount of its capital stock and upon any subsequent increase. The earnings of corporations doing business in the State are also taxed.

An Inheritance Tax is a tax imposed on the transfer of property at death by will, or by operation of law in case of intestacy. The rate of this tax varies according to the value of the property or share of the recipient and his kinship to decedent. A higher rate is levied on a large bequest or share

than on a small one, and a larger percentage is levied when the bequest or share goes to distant kin or to a stranger than when it goes to a close relative.

The direct property tax is now used to pay off the interest and gradually the principal of the State debt.

The estimated resources and revenues, not including the direct tax, for the State for 1918 are:

Cash balance, July 1st	\$11,084,423
Stenographers' tax	431,607
Excise tax	5,750,000
Corporation tax	20,000,000
Incorporation tax	1,400,000
Inheritance tax	14,000,000
Stock transfer tax	6,100,000
Investment tax	2,500,000
Mortgage tax	1,180,000
Motor Vehicle tax	2,375,000
Canal maintenance receipts	150,000
Other revenues	4,554,150
Total	<u>\$69,525,180</u>

The Board of Equalization meets in Albany once a year to examine the reports from the different counties of the value of their taxable property, and to equalize the amount of their taxation. The State tax commissioners, who must personally visit the counties and examine the local rolls, and the land office commissioners form this board.

Federal Taxes: The United States government even before the war required an enormous amount of money with which to conduct its business. In the past its chief sources of revenue have been custom duties and internal-revenue taxes.

Custom Duties are taxes levied on the importation of articles into the United States from foreign countries. The tariff, which fixes the rates of the impost taxes, has been a constant subject for dispute between the major political parties. Whether the tariff should be imposed "for revenue only," or whether it should be "a protective tariff" to protect American industries and American labor from the cheap labor of other countries, has been the chief point of difference between Republicans and Democrats at National elections. Impost taxes are indirect taxes which eventually come out of the

pockets of the people in increased prices of the articles imported, and incidentally they raise the prices of similar articles of domestic manufacture.

Internal Revenue or Excise Taxes are taxes imposed on business or on the manufacture and sale of articles in the United States. The most important taxes of this character are those on the manufacture and sale of liquor and tobacco. The manufacture and sale of cosmetics, perfumes, oleomargarine, and playing-cards are also subject to internal-revenue taxes. In many cases these taxes are paid by the sale of stamps to the manufacturer, who has to affix them to the article before it is sold. As with many other kinds of taxation, the public, the ultimate consumer, pays this tax.

The Income Tax is a tax on the income of a person. Many who do not own land or other tangible property enjoy an income. As a farmer has to pay a tax on his farm, so a lawyer who has a lucrative practice, but does not own land or stocks, and the man who has an income from investments, are all required to pay their share of government expenses.

The income-tax law of 1916 taxes all incomes of married couples in excess of \$4,000, and all incomes of unmarried persons in excess of \$3,000. To provide further war revenue, an additional tax was imposed in 1917 on the income of every unmarried person in excess of \$1,000 a year, and of every married couple in excess of \$2,000 a year. The rate of these taxes increases with the size of the income. The combined income taxes may amount to as much as 67 per cent. in case of the largest incomes.

Public Debt; Bonds: If the government needs more money than it wishes to raise by taxation, it can borrow it by issuing bonds. A bond is a promise to pay a certain definite sum of money at a certain time with a fixed rate of interest. United States government bonds are the safest investment in the world. The State and municipalities may also issue bonds, although the amount a city may borrow may be limited by the value of its assessed property. The interest on bonds and the payment of the principal must be met by taxation.

Bonds should not be issued to pay for the running expenses of government, because that is putting on future generations the unjust burden of paying for something for which they receive no return. Their legitimate

use is to meet the cost of some improvement which will continue to benefit those who go on paying for it.

When bonds are issued provision should be made for the redemption of their principal. This is done in New York State by raising annually by direct taxation a fixed sum to be invested and kept as a separate fund called a “sinking fund,” to be used only for this purpose. A sinking fund for the payment of the interest and for the redemption of the debt of the State is required by the State constitution.

The Budget: Before undertaking an enterprise a wise man considers how much it is going to cost, and where the money is coming from. A budget is a summary of the estimated expenses for the following year of the different departments of the government. It is a business-like method of determining the amount of money which should be raised by a State or municipality to meet its necessary expenses. The budget for New York State is made by the Legislature from an estimate furnished by each of the administrative departments of the State. It includes in detail the amount of salaries, traveling expenses, and maintenance of each department.

The making of a budget for a city is of the greatest importance to the taxpayers. Public hearings are held on it, when taxpayers may be heard for or against the use of the money in the designated way, and when they may ask for additional appropriations for some city activity. Public servants in this, as in every other department of service, work best under supervision. The taxpayer owes it to himself to maintain adequate representation at these hearings. It is on the basis of the budget as finally adopted that taxes are adjusted for the following year. (See Chapter IV on Greater New York.)

The National government has not yet adopted the budget plan, and the President has not the power to veto any item of an appropriation bill unless he vetoes the entire measure.

This is a limitation which is greatly deplored, as it prevents him from cutting out any provision in the bill which he may think unwarranted or extravagant, or which has come out of the “pork-barrel.” This is a term applied to appropriations given by Congress to certain local communities for some Federal building or for the development of some local resource which is not of advantage to the National government, and which is given not because there is any need for it, but because the representative from that

district in Congress wants to make himself popular with his constituents by getting for them some public plunder.

Every Dollar That Is Spent in Any Department of Government Comes Out of the Pockets of the People: It is not easy for the public to realize this. The Congressman who gets an extra appropriation for a post-office or other public building that is not needed, in order to please his home people, may get more votes, but he is adding to the public burden. In return for a vote for his post-office he may have to give his vote to a fellow-Congressman for an unnecessary expenditure in another State. The chain so formed is practically endless, and its inevitable effect is to raise the cost of government unwarrantably. Every such expenditure, every unnecessary public salary, every dishonest public official, every tax-dodger, every incompetent piece of public work, adds to the burden of taxation which the people have to pay.

FOOTNOTES:

[3] In some counties local arrangements make it difficult for absent owners of property to know when and where taxes are due. Every tax-collector should be obliged to follow the usage of any good business house and mail a bill for taxes.

XII

PUBLIC HIGHWAYS

Road-making has been a function of government since the early ages. The old Roman roads still exist as evidence of the labor and care that were put into them.

Ease of communication, which permits people to journey from home and see what the rest of the world is doing, is a great factor in binding people together, and tends to promote progress.

Good roads are important to every citizen, not only because of the increased use of the automobile, but because they are a vital part of the business life of the country. The farmer needs them to move his crops to market. Without them he may be unable to sell his produce at the time it is most needed and when he could get the best prices for it. The merchant needs them to receive supplies and make deliveries; the manufacturer needs them for the moving of his raw material; the city-dweller needs them so that food may come into city markets. Public highways are the connecting arteries between city and country.

New York State has recognized the need of good roads, and has spent an immense amount of money to secure them. Some years ago a bond issue of \$50,000,000 was authorized in the belief that such a large sum of money would put the roads in a condition to meet all requirements for many years.

In 1907 the Legislature approved contracts for 8,300 miles of county highways, believing that the money available would be sufficient. The following year it approved contracts for 3,600 miles of State highways and another bond issue of \$50,000,000 was found necessary. Not only had the cost of labor and material greatly increased, but in addition the use of motor-trucks and motor-buses was beginning to put a strain on roads and road-beds which had not been anticipated.

Old roads began to go to pieces rapidly and needed constant repair and often replacing. Even the new roads, where the road-beds were of stone

only six inches deep, soon spread and disintegrated under trucks weighing from one to fifteen tons. This use of motor-trucks is increasing, and is necessary for the traffic requirements of the State, but highways are being subject to a strain hitherto unknown, and this strain will increase in both quantity and severity.

How to meet the requirements and maintain and repair roads built for light traffic which are giving way under the new demands, and how to build new roads strong enough to stand up under the strain, are problems the State finds it difficult to meet. New road-beds are now required of stone from nine to twelve inches deep.

Some roads are built by the State, some by the county, and some by the town. In many cases the cost of the work is divided between county and town, or between county and State. The State may help a town build a road, but it can only contribute the same amount or less than the town appropriates.

All material that is used in road-building must be tested in the laboratories maintained by the State Highway Department, and constant experiments are being made to test materials and specifications to find out what will stand the hardest wear.

All roads must be built and repaired under the direction of the State Highway Commissioner, but whether these instructions are carried out often depends on local officials. The public believes that there has been no part of government in New York State more honeycombed with fraud than the one of road-building and maintaining; that specifications have been skimmed or ignored, different materials have been substituted from those prescribed, cheaper construction of every kind passed by inspectors, and that the result has been that many roads of the State have cost vast sums of money for which the State is in debt and have not lasted even a few years.

In 1916 the State had a total of 4,027 miles of macadam roads and 5,836 miles of gravel town roads, and more than half of all the improved roads in the State had been constructed within five years. There were 728 patrolmen employed looking after repairs.

The entire cost of bridges is met by the towns with occasional aid from the county. If a State road goes through a village, the same amount is

allowed as for the rest of the construction, and if the village wants another kind of a paving or a wider road it must pay the difference in cost. The State Highway Department gives as averages of cost: for macadam roads \$10,000 a mile; first-class concrete, \$15,000 a mile; and brick paving, \$25,000 a mile.

The State highway law provides that all construction must be done by contract. Prison labor is not employed on State and county roads as in some States, but it has been used on roads built by towns.

In spite of the huge appropriations, the State roads are far from complete as planned. Nearly \$750,000 will be available in 1918 from the National government as part of New York State's share in the Federal appropriation for roads.

"Working out" a road tax was never a method which contributed to good roads. The earth roads on which the taxpayer puts his unskilled labor are usually impassable many months of the year.

City Streets: The local government decides where a road or street is needed, and with the consent of a sufficient proportion of the property-owners may purchase or condemn the necessary property. If the owner is not satisfied with the payment offered, appraisers must be appointed to decide the amount that should be paid.

City streets must be maintained by the city government. If a person is injured by the failure of the government to keep sidewalks in repair he has a right to sue the government for damages. The municipal government, on the other hand, may require property-owners to keep their sidewalks in good condition.

Street-cleaning: Since many thousands of children have no playground but the street, the condition in which city streets are kept is of great importance to their health and general welfare. Disease germs are heavy and are most numerous near the ground. If playgrounds could be arranged on the roofs of high buildings the children would be the gainers from the pure air. Unfortunately, the streets in which they play are not usually the ones which are cleaned most frequently by the street-cleaning department. Old and young are disorderly—newspapers, cigarette-butts, and fruit-skins

are thrown down anywhere. Streets littered with papers, with dust-laden pieces blowing back and forth, increase the dangers from disease.

Carelessness on the part of the public in throwing things into the streets adds many thousands of dollars to the cost of street-cleaning departments. Every time that a person throws a paper or any object into the street eventually some one else must be paid to pick it up.

Most municipalities have ordinances against littering the streets, but they are often dead letters.

The cleanliness and good order of city streets pay in dollars and cents, in public comfort and convenience, and in a lowered death-rate.

Parks: With the congestion of population that is not confined to New York City or any one part of the State, parks large and small have become a necessity not only for pleasure and beauty, but for the health of the community. In the country people can be out of doors as much as they please, but when families are obliged to live close together, “breathing-places” are of actual physical benefit, especially if they can be green with grass and trees. Communities often awaken to the need of parks too late, after all available places are occupied, when in order to provide the necessary oasis property has to be condemned and often enormous sums of money paid for it.

City Planning: Most of our cities have grown up haphazard without any definite plan of development. As new industries have come in they have brought in large numbers of employees, who have had to be provided with living-places, and a new section of the city has been started. Or a real-estate boom, fostered by some private enterprise, will develop another quarter without consideration for the welfare of the incoming population. As land values advance, in order to squeeze all the profit possible out of this increase, high crowded buildings spring up, planned to house as many people as possible in a restricted area. New York City and many other places are continuing to create new tenement districts in outlying quarters of the city where land is still plentiful.

It is not easy to change congested areas built up in the past, but it is a wrong to coming generations to continue to allow considerations of health and decency to be ignored in the future growth of cities. Haphazard growth

has cost the public dearly in actual money values. Unrestricted crowded living conditions have cost still more dearly in the moral and physical vitality of the people who have had to put up with them. These mistakes of the past cannot be remedied, but cities and villages are still growing, and the wise community is now developing a plan in advance for its future growth, which will safeguard public health and welfare, and the convenience as well as the beauty of the city.

The Value of Beauty: Streets and roads do not need to be bare and ugly. Some attention paid to appearance costs very little and is a distinct benefit to the public. Weeds are usually cut down along the roadside, but so, too often, are the trees. When one thinks of the many years it takes for a tree to attain a fine growth, one wonders at the carelessness with which they are sacrificed. A well-shaded road bordered by trees, or a shaded city street, testifies to the intelligence and thrift of the people responsible for them. Such care is apt to be repaid by increased property values.

XIII

COURTS

In the United States there are two classes of courts—State courts and United States or Federal courts. The State courts of each State derive their jurisdiction and powers from the constitution and laws of the State. The United States courts derive their jurisdiction and powers from the Constitution and laws of the United States.

The functions of the courts are to hear and decide criminal and civil cases.

Criminal Cases are prosecutions or proceedings by the State or Federal government to enforce the laws made for the preservation of peace, law, and order in the community, by the imposition of fines, or imprisonment, or the punishment of death, in case of their violation.

Civil Cases are suits or proceedings brought for the enforcement or protection of personal or property rights; as, for example, suits to recover compensation or damages for personal injuries, or the destruction of property, or for breaches of contract, or to recover property wrongfully taken, or to restrain by injunction threatened wrongful acts for which a suit for money damages would not be an adequate remedy.

At the trial of a criminal or civil case, the judge supervises and directs the proceedings, and decides any question of law which may arise. Questions of fact, arising in criminal cases, and in most civil cases, are decided by a jury of twelve qualified citizens drawn from a panel or list; but in certain classes of civil cases the judge decides questions of fact as well as questions of law.

Civil as well as criminal cases must be commenced and carried on in a manner prescribed by law or by rules of the courts. In New York the laws of procedure are commonly believed to be unnecessarily complicated and technical. Innumerable controversies have arisen as to their meaning and effect. They have been amended and supplemented by many statutes, and

there is a strong movement among lawyers to secure the adoption of a simpler and more workable system of procedure.

In New York State the courts are of the following classes: *Justices of the Peace, or Justices' Courts*, try petty criminal cases involving small thefts, drunkenness, disorderly conduct, and breach of the peace, and certain ordinary civil suits involving sums of not over \$200. A person accused of serious crime before a justice of the peace may be held to await action of a grand jury.

In New York City, and in various other cities of the State, the functions of the justices' courts are performed by courts called *Municipal Courts, City Courts, Magistrates or Police Courts*, the latter having jurisdiction only over petty criminal cases. The powers and duties, as well as the names of these lower courts, vary in the different cities.

It is most important that honest, sympathetic men should preside over these lower courts, for in them are tried the small offenses which may be due to ignorance of law, and a large number of people come in contact with government in no other way.

Most arrests are for minor offenses such as drunkenness, disorderly conduct, etc. They are tried here, and many of them bring first offenders into court, where the treatment received by the person accused may determine whether he will become a habitual offender or whether he will be set straight. Many foreigners come into these courts, and receive in them their first impression of justice as administered in this country. Oftentimes the offense is committed through ignorance or stupidity. A kind word or a helping hand may make all the difference between a future good citizen or a crook. In these courts, as in the justices courts of the town or village, there is great need of a careful choice of magistrates.

County Courts: In every county except New York there is a county court presided over by the elected county judge. In these county courts may be tried civil suits in which the sum involved is not over \$2,000 and all crimes except those punishable by death. They also hear appeals from the justices' courts. The county courts in Queens, Bronx, Richmond, Kings, Ulster, and Albany counties may try cases involving the death penalty.

Surrogates' Courts: In each county there is a surrogate court, held by a judge called "the Surrogate," who is elected by the voters of the county for a term of six years (except in the county of New York). In this court wills are probated, the estates of persons deceased are settled, and guardians for minors and executors or administrators for estates of decedents are appointed. It is evident that a county surrogate should be a man of strictest probity as well as good business sense.

Court of Claims: Any one who has a claim against the State may take it to the Court of Claims, which consists of three judges appointed by the governor with the approval of the Senate. Appeals from its decisions may be taken to the Appellate Division of the Supreme Court.

The Supreme Court: Above the county courts are the Supreme Courts, which, however, are not really supreme, as their decisions are subject to review, and may be reversed upon appeal by the Appellate Division or the Court of Appeals. The Supreme Courts may try any civil or criminal cases, including prosecutions for murder. There are more than one hundred Supreme Court justices in the State, elected by the voters of the various districts, and the entire State is divided into nine judicial districts, in which certain of these Supreme Court justices sit. In every county, at a certain time, a Supreme Court justice holds a *trial court*, where both civil and criminal cases are heard before a trial jury. He also holds a *special term*, where he hears and decides motions and civil cases in which no jury trial is required.

Appellate Divisions of the Supreme Court: As judges are human and may make mistakes, the law provides a right of appeal from the court in which a case is tried. The whole State is divided into four judicial departments, in each of which there is an Appellate Division of the Supreme Court. From the Supreme Court justices the governor chooses the justices for the Appellate Divisions. These Appellate Divisions hear appeals from decisions of the county courts and of the Supreme Courts, and they may sit wherever the public interest demands. They do not try cases originally, but only hear appeals.

The Court of Appeals is composed of a chief judge and nine associate judges, but only seven judges sit at one time. This court is the State court of last resort, and it may reverse a decision of an Appellate Division of the

Supreme Court. In most cases no appeal lies to the Court of Appeals from a decision of a question of fact by a lower court, but only questions of law can be reviewed; but in criminal cases where the sentence is death the entire case may be reviewed.

Courts of Record are those courts that have an official seal and keep an official record of all proceedings. The Surrogate's Court, the County Court, the Supreme Court and its appellate divisions, and the Court of Appeals are courts of record. Justices' Courts and Magistrates' Courts are not courts of record.

Federal Courts: The jurisdiction of the United States or Federal courts extends to all cases in law and equity arising under the Constitution and laws of the United States, to all cases affecting ambassadors and other public ministers and consuls, to admiralty and maritime cases, and to controversies between States or between citizens of different States. Federal courts are organized in a similar way to State courts.

The United States District Courts hear, in the first instance, all classes of cases over which the United States courts have jurisdiction, except the cases mentioned below. The entire country is divided into ninety judicial districts, and each State has at least one district.

The United States Court of Claims, which is located in Washington, has jurisdiction over claims against the United States government.

The Circuit Court of Appeals is an appellate court by which decisions of the United States district courts may be reviewed.

The United States Supreme Court is the highest tribunal in the land. In cases affecting ambassadors and consuls, and those to which the State is a party, the Supreme Court has original jurisdiction. Other cases can come before it only upon an appeal, or writ of error, to review a decision of a lower United States court or a decision of the highest State court involving a question of Federal law. There is a chief justice and eight associate justices of the Supreme Court, who are appointed for life. To be a justice of the Supreme Court of the United States is considered one of the highest honors in the land.

The judges of all the Federal courts are appointed by the President with the consent of the Senate.

Constitutionality of the Law: One important power which the courts have is to interpret the meaning of the Constitution and laws, but they have no power to do so except so far as necessary to the disposal of cases before them.

The constitution of the State is its fundamental law, as that of the United States (together with the laws made by Congress under it and treaties made by the United States) is the supreme law of the entire United States. A question may arise as to the precise meaning and scope of a constitutional provision. In this case the court may interpret its meaning, and may declare void a law because in violation of the constitution.

An Injunction is an order or decree issued by a court, restraining some person or persons or corporation from performing certain acts, on the ground that such acts would cause an injury or loss, for which a suit to recover money damages would not furnish adequate redress. A temporary injunction, or restraining order, may be issued upon affidavits, in advance of the final trial of a case, when it may either be dissolved or be made permanent. An injunction may also command the performance of some act. In such cases it is called a mandatory injunction. If an injunction is violated, the person disobeying can be arrested and sent to jail or fined “for contempt of court” without trial by jury. Many efforts have been made to limit this power of the courts. In Oklahoma, the law provides for jury trial in case of contempt of court for violation of an injunction.

Judges are elected for a longer term of years than are other public officials. County judges have a six-year term. Supreme Court justices and judges of the Court of Appeals are elected for a term of fourteen years. The reason for the longer term of service is that the increased experience is supposed to make a judge more valuable to the State; also, on account of the long term, he is supposed to be less affected by political considerations.

Whether *judges* should be *appointed or elected* has been a matter of considerable controversy. It is argued that if they are appointed, the appointment may be a reward for political service instead of because of fitness for the position. On the other hand, if judges are elected, it is objected that they must take part in political contests, and are apt to give decisions more with regard to popular favor than to actual justice. Many persons think that in practice better judges are obtained by appointment

than by popular election. State judges are usually elected, but the Federal judges are appointed.

The election of proper men for the position of judge is one of the most important duties of an electorate. Whether the process of the law insures justice and increases public security depends often more on the judge than on the letter of the law. Decisions involving the happiness, rights, and lives of countless people go through the courts of the State. These decisions should not be in the hands of men to whom the office has been given as a reward for party service, or who have been put in the position by prejudiced interests. A wise, intelligent, public-spirited judge has enormous opportunity to add to the sum of public welfare.

XIV

THE PUNISHMENT OF CRIME

A crime is an offense against the people of the State. Also every action that is brought before a court costs the State money and adds to the burden of taxation borne by the people.

A free government carefully guards the rights of an accused person. He must be told of the charges against him and be given every chance to answer them. He is presumed by the law to be innocent until he is proved guilty, and is not obliged to answer any questions that may incriminate himself. He may be examined at once by a magistrate, or, if he prefers, may be committed to jail to await a future examination. If held for any except the most serious crime he may be allowed his liberty by some one “giving bail”—that is, giving a pledge of money or property to insure his appearance in court at a certain date. If he “jumps his bail” the money is forfeited to the State, although that does not protect him if he can be found. If the charge of which he is accused is a serious one, it must come before a grand jury.

The Grand Jury is a body of men chosen from the taxpayers of a county to inquire into alleged crimes during a particular term of court. The supervisors or the commissioner of jurors makes out a list of three hundred names of men of integrity and sound judgment, from which the names of twenty-four men are drawn by lot. ^[B] From sixteen to twenty-three of these men sit in secret session, and hear the presentment of a case, and decide by a vote of at least twelve members whether the evidence is sufficient to warrant holding the accused for trial.

The necessity of a case coming before the grand jury often causes much delay in a trial, as the jury can only be called when court is in session, and there are often long periods of time between courts. On the other hand, the fact that the grand jury is made up of a man’s neighbors and friends, who would be disposed to give him fair treatment, is a safeguard to his interests.

If “a true bill” is found, the accused person comes before the court and the charge against him is read to him. If he pleads guilty the judge imposes a sentence. If he pleads “not guilty” the trial proceeds.

If the accused has no lawyer, the court must appoint one for him. While a man so appointed must defend the case, the best lawyers are not secured in this way. There has been considerable demand for the creation of the office of public defender for accused persons. The State employs public prosecutors, and it is argued that it should be as much interested in proving a man’s innocence as in proving his guilt.

Trial by Jury is a right guaranteed by the constitutions of both the State and the nation. A trial jury is composed of twelve men chosen from a list of qualified men in the county where the crime is committed, or is being tried. After the evidence in the case has been presented and the judge makes his charge as to the law applicable to the case, the jury retires to a secret session, where they are kept in confinement until they reach a unanimous verdict. In England it requires only a majority of the jury to render a verdict.

Jury Service is one of the important duties of a citizen. It is not required of certain classes of men—viz., clergymen, physicians, druggists, lawyers, and newspaper-men, among others—and judges have the power to excuse men on whom jury service would entail special hardship. Jurors are paid a small sum by the day, and to many men jury service means serious inconvenience and financial loss. But to leave the settlement of cases which involve the serious welfare of both individuals and the public, to professional jurors, the hangers-on of a court-room, is a great wrong to the community.

Women Jurors^[C] have not yet been permitted in New York State, although in some Western States they have served with much success. There are certain cases involving young girls and children where it would seem that only women should be allowed on the jury. Cases of murder committed by a woman might be treated with more impartial justice if women served on such juries. Sentimental considerations would not influence them as they do some men in such cases.

The Police: Much of the public welfare and safety of a city depends on its police force. A modern police is organized on a military basis. The men

hold their positions for life or during good behavior. Promotions are based on merit, and pensions are paid men who have served a certain term of years. This plan has improved conditions by taking the police out of politics to a large degree. The policy of the head of the department is of the greatest importance to the public. The temptations for graft and corruption in a police department are enormous, but the assurance of a square deal all up and down the line, strict orders to uphold the law, and a well-defined policy against graft of every description, will do wonders to keep a department honest and efficient.

In recent years the plan has been developed of making the police helpful in many ways in the life of the city. The uniformed officer has many opportunities to help and direct children, especially the boys on the streets, to prevent violations of the city's ordinances, the littering of the streets, and in many ways to prevent before the act, rather than to arrest after it has been committed.

This helpful spirit has been adopted by the police of New York City, to the great good of the city. It is exemplified in the Christmas trees in the station-houses for the poorer children of a neighborhood at Christmas-time.

Prison Reform: Modern government is learning not to avenge itself on a criminal, but to impose a sentence which will tend to reform him. Instead of sentencing a person to a definite term of imprisonment, an indeterminate sentence may be given him, the length of which will be determined by his behavior, and by the promise he may show of leading a better life if set free. If he is released he may be put on probation. This means that he is required to report at regular intervals to the court, or to a probation officer, to show that his conduct is law-abiding. If he goes wrong again, he is remanded to serve out his sentence.

Men and women, wherever confined, must be given employment. Idleness is bad for even an educated person. Imposed on one who has no resources within himself, it becomes a source of demoralization scarcely to be measured. The old custom was to hire prisoners out to contractors at low wages. This brought goods manufactured by prison labor into unfair competition with honest labor.

The modern idea is to teach the prisoner a useful occupation and to pay the wages to his family. It is not common-sense to support a man in prison

at the expense of the State, and to allow his family to suffer from having his support taken away from them.

Probation: First offenders, or persons committing minor offenses, are often put at once on probation, with the sentence suspended during good behavior. This has proved of great value in saving many from a criminal career. It is far less costly to the State than keeping them in prison, and often leads to the establishment of an honest life.^[4]

Jails and Prisons: Every community has some kind of jail for the detention of offenders. Those who come in contact with the law are often the poor and the friendless who cannot get bail. Even innocent persons may be held some time awaiting trial, or the action of the grand jury. Young girls are often detained, sometimes as witnesses, sometimes pending investigation of their own cases, sometimes as runaways from home. In such a case there is no place of detention but the local jail. These jails are often filthy and unsanitary, unfit for human habitation. Their surroundings, and the character of the sheriff or constable, and jail officials, must inevitably have an effect on the prisoners, especially on the younger women. It is most important to the community that a woman shall not be sent out from jail a more hardened criminal because of her confinement there. It is a wrong, the responsibility for which every woman in the neighborhood must share, that there is no better place of detention for young girls. Women matrons in all prisons where women are held and women probation officers are now recognized as essential.

It is unintelligent to allow a man to leave jail penniless far from his home and friends, to become a tramp or to be tempted to a new offense to get money. The modern ideal of criminology is that his stay in prison should teach a man an honest way of earning his living; also that he should be given some supervision after he has left the prison doors, to help him to lead an honest life.

City Farms for the detention of offenders are a great improvement on indoor prisons, and the open-air occupation both saves the State money and is beneficial to the prisoner.

The Prevention of Crime: If as much money and organized effort could be put on the prevention of crime as is given to its punishment, the need of jails and prisons would be greatly lessened. The chief causes of crime are

drunkenness, feeble-mindedness, overcrowded living conditions, low wages, and insufficient education and recreation. Drunkenness is now known to be a disease; feeble-minded persons should not be allowed freedom of action; the State may prevent congested living, it may establish a living wage, and it has the power to provide proper vocational training and sufficient facilities for healthful recreation. It tries to separate the young offenders from the older ones, and the first offenders from the hardened ones. It has not succeeded very well in preventing inequalities before the law. The rich man has the advantage of being able to employ the most skilful lawyers and to appeal his case to court after court and drag it out over a number of years. When a fine is imposed he can pay it and so sometimes escape punishment. The poor man may have to go to jail because he cannot pay his fine and he is often unable to fight a suit.

To lessen the hardships and secure equality of treatment for all alike should be the endeavor of the State.

FOOTNOTES:

[4] The last report of the New York State Probation Commission shows that on September 30, 1916, there were 13,433 persons on probation, and that the number of inmates of the penal and reformatory institutions in the State was decreasing. Probation officers had themselves collected \$139,000 for cases of non-support, and had caused to be paid another sum of \$206,000 for these cases. They had assisted men to pay, in instalments, fines amounting to \$30,000, which meant that these men were kept out of jail and at work, and had helped men who had stolen something or had done material damage to some one to repay those they had injured the sum of \$39,000. It is evident that there is a saving of hard cash to the State in this work as well as much of social value.

XV

WOMEN OFFENDERS AND THE LAW

The Constitution of the United States guarantees to a person accused of crime a trial by an impartial jury, or by a jury of one's peers. The handling of cases against women offenders has little regard for that guarantee. Discriminations against women who have come in contact with the law are the custom.

If any one is inclined to doubt this, let him imagine the case reversed and applied to himself. Suppose a man accused of an offense against the law should be accused by a woman, arrested by a woman, held in jail by a woman, tried in a court-room filled with women, before a jury composed only of women, and sentenced by a woman judge. Would such a man feel that he was getting impartial justice given him by his peers?

Also in the treatment of cases involving sex, the penalty of the law rests heavily on the woman and the man usually goes free. Sex immorality is a crime for a woman, but the man, the partner in the crime, is rarely touched by the law. Until recently in New York State, even pandering, or living off the earnings of a prostitute, was classed, as it still is in some other States, as disorderly conduct, in the same class of offenses as selling a street-car transfer. In some States adultery is still a misdemeanor. It did not become a criminal offense in New York until 1907, and it is still almost impossible to obtain a conviction unless there are some unusually revolting circumstances. Many cases have come into the courts of the State where women have been arrested in a raid on a disorderly house, and where the men found with them have been released, and the women held.

The large majority of the arrests of women are for the two offenses of intoxication, and prostitution or street-walking. The usual sentence for both of these offenses is commitment to the workhouse for from eleven to sixty days. Nearly half the cases of intoxication are of old offenders who are sentenced over and over again. Some years ago the Legislature passed a measure making provision for a State farm where these women could be

sent for care and treatment, and where they could have useful occupation; but it has not yet been established.

Prostitution: The same sentence to the workhouse for varying periods of from five to ninety days, or even six months, is the common one for prostitution. It is doubtful if a sentence of this kind has ever been of the slightest benefit to any woman so sentenced. The usual court procedure is a mill through which this class of unhappy beings goes, without either their reformation being accomplished, or their danger being lessened to the community. When it is realized also, that a considerable percentage of these women are feeble-minded or at least sub-normal, the necessity of facilities for examination and classification and proper segregation are apparent.

The entire process of dealing with the problem of public prostitution in New York City is one that is revolting from a woman's viewpoint. To rid the streets of street-walkers and to keep them "clean," a force of police in plain clothes patrols the streets. These police are usually the new men on the force selected for their youth and good looks. Promotion often rests on the number of arrests that they make. A smile or a nod, and a girl may respond. If she speaks, an arrest can and often does follow.

This kind of training for the young men of the police force is degrading to them. Also, the fact that arrests in nine cases out of ten are those of women of the street, does not preclude the possibility of the arrest of a silly, ignorant, but innocent girl. Brought into court, the presumption is that she is guilty.

There is always a first arrest for any offender against the law. The records of the magistrates' courts show that nearly one-third of the women's cases brought into court are first offenders. Called for the first time before a judge in an open court-room, incoherent with fright, the girl is often unable to say a word for herself. If she is fined, or sentenced to the workhouse, or held in detention pending investigation, and is kept in association with other women of degraded lives, the chances of her being reclaimed are practically gone.

The law holds an accused person innocent until proved guilty, but a woman accused of a crime against morality has to prove that she is innocent. Under the usual court procedure, a prostitute is outside the protection of the law and her word has no value in the court.

Night Courts have been established in order that offenders arrested at night, after the day courts have closed, may come immediately before a magistrate, without having to spend the night in jail awaiting trial. There are separate night courts for women in New York City, and all arrests for prostitution or loitering are tried in these courts.

The motive behind the establishment of the Women's Night Court is humanitarian, but it is there that one sees the discrimination against women as the fundamental of the proceedings.

Women are sentenced to terms in prison for offenses far less serious than those for which men are discharged. The discrimination against women, and in favor of men, even extends to the cadet, who pursues the most shameful business in the world, that of exploiting unfortunate women. Until a few years ago the maximum penalty for such a man was six months in the workhouse.

The law now permits a sentence of from two to twenty years, but convictions are rare. Nearly every prostitute is exploited by some man who takes her earnings, and on whom she relies to protect her from the police. If these cadets and procurers could be eliminated it would greatly diminish professional prostitution, but they are most difficult to reach. The women they exploit will often perjure themselves to save these men from the vengeance of the law. Also, the fact that no conviction can be had on the testimony of the woman unless supported by corroborative evidence, makes her afraid to testify against one of them.

The Penalty of Fines: Imposing a fine as a punishment for prostitution should be absolutely prohibited. It does not act as a restraint, and simply means that the woman must go out on the street to earn her fine, and it makes the State a partner to her crime. It has been abolished in practice by some judges; but it is still the custom in some courts in New York State, and is even imposed by some judges in New York City. A bill to abolish fines throughout the State was introduced in the Legislature of 1916, but failed to pass.

Young Girls: Girls between the ages of sixteen and eighteen are in the most dangerous period of life. Figures show that the great majority of girls who become prostitutes are ruined before they reach seventeen years of age.

A girl of sixteen in New York State is too old for the Children's Court. She may therefore be held in jail with the hardened street-walker and the habitual drinker. If she is without the protection of home or family, she may be left alone, for the State makes no provision for a guardian for her unless she has property, when the State is required to provide one for her.

Delinquency, thefts, and misdemeanors on the part of young girls are often the results of natural instincts gone wrong. Love of pleasure, a desire for pretty things, and a wish to be attractive is common to all girls. A false step, a yielding to temptation, followed by an arrest and a trial in an open court-room, often mean an ordeal which leaves an indelible mark on the girl's soul, and a disgrace which it is almost impossible for her to live down.

Girl Victims: The most pitiful cases are those of very young girls brought into court as the victims of crime. It is difficult to get conviction in these cases, as corroborative evidence is necessary. The shock to the sensibilities of such a girl at having to tell her story to men and having to answer questions in an open court-room can scarcely be exaggerated. The need of women in places of authority, to help in cases of such crimes, is great. Women probation officers are only the first step in the right direction, but there are too few of them, and whenever a movement is made toward economy, they are the first to be dismissed.

Houses of Detention: A great need of New York City, and a need shared by every city in the State, is a proper place of detention for women. As delinquent children are now separated from older offenders, so delinquent girls, first offenders and old offenders, and other classes of women who are held awaiting trial, or for investigation, or as witnesses, should not be obliged to associate indiscriminately with one another while awaiting the disposition of their cases.

The need of a building large enough to provide for the separate detention of the various classes of women who are in the care of the court has been recognized, but so far little provision has been made to meet it. In other places in the State, wherever there is a court, there is need of a place of detention for women where they will be safe from degrading influences, and where they will be under the care of other women.

Women Judges or Judges' Assistants: The system which has been instituted in Chicago since women were given the vote, of a quiet talk with a woman assistant in the Court of Special Sessions, in her own private office, instead of an open trial, has resulted in saving many a girl who otherwise would have become an outcast. In certain intimate matters it is a woman's task to question girls. Contrast the picture of an open court-room: the judge on the bench, the jury, if there is one, composed of men, the room filled with men of all descriptions, and the frightened, trembling child, with this private room with the young offender telling her story alone to an experienced woman. Which offers the best chance for saving the girl from a ruined life?

Frequently the girl comes from a family where crowded living conditions make decent living almost impossible. Instead of her first offense coming up for inevitable punishment, it is treated with the sole object of prevention and cure.

Judges in New York State cannot appoint women assistants without authority from the Legislature, and that authority the Legislature has always refused to give.

Policewomen, or Women Protective Officers, are now recognized as a necessary part of the correctional work of a city. The work of the woman protective officer is very different from that of the policeman. The policewoman protects and controls, rather than arrests. In protecting children, in caring for lost children, in acting as mother to the motherless, in watching over young girls, in getting evidence against cadets, she does an invaluable work. The disorderly saloon, the dance-hall, and the moving-picture theater are all hunting-grounds for the white-slaver. In getting evidence in this sort of crime she is more effective than the policeman. There are policewomen now in fifty cities of the United States.

That the whole subject of prostitution and the law is a most difficult one to deal with, there can be no question. It needs the combined intelligence of both men and women engaged not only in theorizing over the problem, but in actual efforts to grapple with it. Until public opinion supports the single

standard of morality, the courts will continue to discriminate against women.

Unfortunately, women of all ages, even very young girls, are arrested. Sometimes they are guilty, sometimes innocent, sometimes sinned against, sometimes only the victims of circumstances, but always unfortunate. Their misfortune and its results on their lives are more terrible than they need be, because they are usually deprived of the help of women in places of authority.

In the Chicago Court of Morals women are welcome, and there are women court officers, women police, and women probation officers who create an atmosphere entirely different from the usual court-room. There is also no division of sex; when it is a question of morality, the man and woman are both held. A physical examination is made by a woman physician. When a woman is found to be diseased she is sent to a hospital to be cured.

Some of the most progressive magistrates and judges are endeavoring to improve the methods of handling cases of women offenders, but it would seem that wherever the welfare and disposition of women are involved other women should be part of the machinery which deals with them. This is not so much because of sentimental considerations, for in some cases women would be less influenced by sentiment than men, but there are certain peculiarities, tendencies, and experiences common to each sex which only those of that sex can understand. In all cases of women offenders against the law other women must be concerned, and should be equally responsible with men for their handling and disposition.

XVI

PUBLIC EDUCATION

The best foundation for a democracy rests on free educational facilities for all the people. An ideal school system is one that reaches out to every child and prepares him for a useful occupation, that is also available for the further development of every member of the State, and that will give every individual the knowledge necessary for him to do his part in government. A self-governing people cannot afford a class too ignorant to vote.

In New York State, school attendance is compulsory for children between the ages of seven and sixteen years. An exception is made of children between fourteen and sixteen, who have completed the first six years of school, and have been to school 130 days since their fourteenth birthday. Such children may be employed if they have a duly signed work certificate. In cities of the first and second classes, boys between fourteen and sixteen who are employed during the day, who do not hold certain certificates, must attend night school sixteen weeks in the year. Truant officers must be appointed in every city, town, and village to enforce the law. Parents who fail to send their children to school are guilty of a misdemeanor.

The School District is the smallest division of the State, and must maintain a free common school at least thirty-six weeks in the year. In 1917, an amendment to the school law was passed which abolished the old school-district system, that dated from 1795, and which makes it possible for the children of the rural districts to have some of the facilities for modern education which have heretofore been confined to larger communities.

In place of the former school trustees for the separate school districts, there is now one board of education for each town, and this board has charge of all the schools in the town. There are 4,000 schools in the State which have less than ten pupils each. The value of taxable property in many of these school districts is very small. The school tax has been the only

State tax which has been assessed in such small units. The needs of each school district had to be met by the taxation of that one district. For all other State expenses the county is the unit of taxation and taxes are assessed equally all over the county, and the apportionment made according to the needs of each district. Under the present law, by treating the town as a unit for school taxes, all property in the town is assessed equally, and the money raised is used for the benefit of all the town.

In this way the rich and poor districts share more equally in school facilities.

The initial expenses of making the change have increased school taxes in some places for the first year, but the change will undoubtedly work to the great benefit of the children of the State, and is along the lines adopted some years ago by most of the other States. Villages of over 1,500 people are outside the provision of the new town law. If the people of two or more school districts wish to combine, they may vote to consolidate and establish a central school. [\[D\]](#)

The Town Board of Education consists of from three to five members who are elected for a term of three years each and who appoint their own clerk and treasurer.

They have larger power than was given to the former school trustee. They have charge of all school property; they determine the kind of schools that are needed; they may establish high schools, vocational, industrial, agricultural, and night schools; they determine the number of teachers to be employed, and their salaries; they may employ medical inspectors and nurses, and may provide transportation for children attending school.

The Annual School Meeting to elect the Board of Education is held the first Tuesday in May.

Qualifications for Voters: At this meeting any one living in the district can vote who is a citizen twenty-one years old, a resident in the district for thirty days, who owns or rents or has under contract of purchase taxable property in the district; or has had a child, either his own or residing with him, in school for at least eight weeks during the year preceding; or who owns personal property exceeding \$50 which was assessed on the last assessment roll.

Candidates for the board of education may be nominated on petition of twenty-five voters. Men and women who are duly qualified electors are eligible to the board.

Annual School Budget: The board of education must prepare an itemized budget of the amount necessary to be raised for school purposes, and must publish it in July for public consideration. Additional money may only be raised by a vote of the school district indorsed by the district superintendent. The building of a school, or repairs costing over \$5,000, must be submitted to a vote of the school electors.

A board of school directors is elected in each town, consisting of two men, each with a term of five years, but elected in different years.

The Supervisory District: Each county, except those in Greater New York, is divided into from one to eight supervisory districts. (Villages and cities of over 5,000 people are not included, as they make their own provisions. Each of these has a board of education.)

The District Superintendent is the director of a supervisory district. He is chosen by the board of school directors and is engaged for a term of five years and paid \$1,200 a year by the State, with an additional allowance of \$300 for traveling expenses. The supervisors of the towns in his district may vote to increase his salary, the increase to come out of the taxes raised in the towns in the district.

A man or a woman twenty-one years of age, and a citizen and resident of the State, is eligible for the office, provided he or she has a State teacher's certificate and can pass an examination in the teaching of agriculture.

The District Superintendent has the general supervision of the schools in his district. He is responsible for the instruction given in them and the discipline that is maintained. He examines candidates for teachers' positions, under the direction of the State Commissioner of Education.

Union Free School Districts have been permitted under State law for many years in cities and villages. Some years ago this law was extended to include rural districts, and during the past few years about 500 rural school districts have been discontinued and consolidated with adjoining districts. Many of the discontinued schools had only a handful of pupils, the buildings and equipment were primitive and inadequate, and the small

amount of money available made it impossible for the school to offer any advantages. The union of school districts has given better educational facilities to the rural districts. The children have been taken to school by wagons provided for their transportation, and have had the advantages of a larger school, a higher grade of teachers, and better facilities of all kinds for modern education. The new educational law provides still greater development in this direction.

Physical Training is compulsory in all schools, public and private, for children over eight years of age for at least twenty minutes a day. The State gives financial aid in the training.

Military training is compulsory for boys between the ages of sixteen and nineteen in public and private secondary schools and colleges. The name “military” is misleading, for the law provides that the development of “correct bearing, mental and physical alertness, disciplined initiative, sense of duty, self-control, and a spirit of co-operation under leadership” is to be given special attention.

School Money: For many years it has been recognized that sufficient educational facilities could not be provided for every part of the State through local taxation.

Besides the money raised by the school districts, the State contributes large sums of money for the support of public schools. Part of this money is the income from certain educational funds belonging to the State which cannot be used for any other purpose, and part is money appropriated by the State Legislature. This money is distributed by the State Commissioner of Education according to the needs of the school districts.

City schools are subject to the same general supervision of the State Commissioner of Education, but are under the direction of local boards of education, and local superintendents of schools.

Normal Schools for training teachers are maintained by the State out of school funds, and teachers’ meetings are held in the supervisory districts to help and improve teachers.

The University of the State of New York, which is at the head of the entire educational system of the State, is not a university in the ordinary sense of the word. It is a combination of all of the colleges and secondary

schools of the State. It is governed by a Board of Regents, twelve men elected by the State Legislature for twelve years each, but whose terms begin in different years, who have large powers of control over all the higher institutions in the State, universities, colleges, technical and professional schools. They have the management of the State Library and Museum. They prepare Regents' examinations and grant Regents' certificates, and supervise the granting of degrees.

The president of the University of the State of New York is elected by the Regents. He is also the *State Commissioner of Education*, and as such is the head of the State Department of Education which supervises the free public schools and normal schools of the State and apportions the State school funds.

The National Commissioner of Education is at the head of the National Bureau of Education in Washington. The work of this bureau is largely to collect and publish information about educational conditions and progress in the United States.

Agricultural Help: There are four free agricultural schools besides the State College of Agriculture in Ithaca. Much assistance is given by the government to the agricultural needs of the State. Special courses are provided at many colleges for the various departments of agricultural work. Short courses are arranged for those who can only attend a few weeks, and at times in the year when farm work is slack.

Farmers' Institutes are organized, at which experts discuss the best way of doing the varied work of the farm, especially how to increase production and to make the farm more profitable.

Vocational Training:^[5] If the public school is going to prepare young people for their work in the world, some guidance in the selection of an occupation, and some practical training in a trade or profession, must be included in their school work.

The great majority of children leave school at an early age to go to work. Without specialized training they have little chance for advancement, but fill the ranks of untrained labor, to the great loss of the world and their own disadvantage.

State Scholarships: Each of the 150 Assembly districts of the State has five free scholarships valued at \$400 each. The scholarships are awarded by the Commissioner of Education and the holder may attend any college in the State, and receive \$100 for each of the four years he or she attends.

Domestic Training: The majority of girls, even though they are wage-earners for a time, sooner or later marry, and have children and a household to take care of. In the olden days, when the home was a workshop, girls were taught cooking at home; they learned to care for babies through taking care of the little ones in the family. Now they often leave school to go to the factory, and only leave the factory when they marry. They have no knowledge of cooking, housekeeping, or the care of children. Unless domestic economy of the most practical kind is taught in the school-room, there is no way they can be prepared for the important business of housekeeper and mother. If every girl were taught to cook and were trained in the proper care of an infant, it would add immeasurably to the sum total of the comfort and health of family life. It would be an advantage to every boy, likewise, if he were taught to use his hands in carpentering or other manual work. Whatever comes in later life, hands that have been trained to be useful are a great asset to any man or woman.

Schools as Community Centers: Education does not stop at any age. Public free lectures, mothers' meetings, and the use of schools for community recreation are helping to make the school-house 100 per cent. efficient as an educational center. The school plant that is closed when school is not in session is an extravagance which no community can afford.

The demand for the use of the school-house for political meetings, and as polling-places at election-time, is growing. Outside of New York City school-buildings may only be so used by special permission of the voters. Since one of the purposes of education is to train people in citizenship, the use of the school-house as the center of everything that pertains to the people's part in government seems legitimate.

Health: Compulsory education is futile unless at the same time the health of children is maintained. It is as much the duty of government to watch over the proper development of the body as of the mind, yet more attention is often given to decoration of schoolrooms than to matters of health.

An appallingly large number of children have defective teeth, poor eyes, or obstructed breathing. Neglected teeth mean an undernourished body and are a common source of disease.

Periodic medical examinations are required by State law, and school nurses may be engaged as part of the regular school force. The value of the law depends on the way it is enforced by local school authorities, and this is often far from satisfactory. These provisions are found to repay their cost in the added strength and productive powers that they give to the community.

Co-operation: The greatest of all needs in connection with our schools is a lively interest in them on the part of women. The woman who cares about the future of her child must be interested in school meetings and the election of school-boards, who should be carefully chosen. Frequent visits to the school in city and country are a help and inspiration to both teachers and parents.

FOOTNOTES:

[5] Under a provision of a recent Federal law, a certain sum of money is available for use in any State for the teaching of home economics, industrial training, or for any vocational work, provided that the State appropriates an equal amount for the purpose, which New York State has done.

XVII

HEALTH AND RECREATION

The great majority of men and women, and even many children, have to work for a living. To keep healthy they need time and opportunity for wholesome recreation.

Recreation is as much a necessary part of normal life as food or drink; a fact that has been partially lost sight of in this economic age, but throughout the world's history there have been frequent examples of governments which made careful provision to supply necessary amusements for their citizens. In Greece great stadiums were erected for games and contests; in medieval times the knights held tournaments, even the churches celebrated their saints' days with gay street processions.

The need for recreation is particularly great to-day because the congestion of population of our cities has left few open spaces for leisure time, and crowded living and small, dark rooms where all the work of the household must be done, preclude any social life in the homes of many families. Many young girls who crave companionship and social intercourse with friends have to go outside their homes to find it.

Crowded tenements without light or air, dirty streets with no provision for wholesome recreation, are proofs of poor government and inefficient democracy, no matter how prosperous and contented a city may look in its richer quarters.

People who are obliged to live in the crowded districts have a lowered vitality and a lessened value to the world; and the same natural impulses which, rightly directed, lead to an orderly, useful, contented life, may be the causes of delinquency if stunted or misdirected. The slum is an economic crime, condoned by a public which pays the penalty in contamination and contagion thrust back upon itself.

Housing: Air and sunshine are the first requisites of healthy life. The government recognizes a certain responsibility in insuring these necessities,

and prescribes by law regulations for the construction and inspection of living accommodations. Many families cannot choose their homes, but are obliged to live in the kind of buildings that are to be found near their work. Inside rooms without windows, rooms into which a ray of sunshine has never penetrated, are common in every city in the State. The law prohibits, in cities of the first class, the building of new tenements with inside rooms without windows, but many old ones are in existence, and two-family houses may still be built with inside rooms. In other cities there are practically no restrictions, except by occasional ineffectual city ordinances. Sanitary arrangements, and the water-supply in many tenement-houses, are insufficient for health or even decency.

Tenement-house inspection is a part of city government in which women are particularly fitted to serve. In New York City, there are 103,688 tenement-houses and 193 inspectors. Only eight of these are women.

The war has greatly intensified the housing problem. With the tremendous increase in certain industries which has brought thousands of people to work in new factories, there is a corresponding demand for living accommodations near their work. These factories may not be permanent, and so private capital hesitates to build houses near them. The result is a terrible crowding of people in unsanitary and unfit buildings. The consequences of such overcrowding is seen in the increase of child delinquency, immorality and disease, an increased death-rate, and the inevitable unrest from such unhappiness which results in strikes and labor troubles.

Recreation: The modern city so far has made little provision for the natural irresistible desire of youth for play.

This is all the more dangerous because young men and women are being drawn in great numbers from the protection of the home, for work in factories and shops. They have a freedom from restraint such as they have never had before. They have money which they have earned; they are eager for amusement. When they come to the end of a day of exhausting work their love of pleasure will not be denied. If they are not given the right kind of amusement, they will take the wrong kind.

Instead of recognizing this natural instinct for play, and providing safe channels for its expression, all provisions for recreation are usually left to

commercial interests, to be used for their own gain, without supervision or control. Vice is often deliberately disguised as pleasure, and the most normal and healthy impulses of young men and women, that, properly directed, lead to happy married life, are frequently used as a means to their downfall.

Loneliness also plays a part. Many a young man or girl comes to the city to find work. Where can they find the social intercourse and companionship necessary to normal life? The homeless boy often stands around the edge of the dance-hall, vainly hoping to make the acquaintance of some “nice girl.” The lonely girl, living in a cheerless hall bedroom, turns to the dance-hall as a place to find companionship. Proper provision for public recreation, well supervised, would help to bring this boy and girl together in decent, wholesome surroundings.

The Dance: In young girls, the social instinct, the desire to meet and know other people, and especially those of the opposite sex, becomes a dominant factor between the ages of fifteen and twenty.

The most natural expression of youthful spirits is the dance. To allow it to become a snare to spoil the lives of young people is one of the great deficiencies of city life. In every city dance-halls, ranging from the back room of a saloon to the casino or “gin-palace,” hold out temptations to young people.

In New York City there are over five hundred licensed dance-halls. This means, at a moderate estimate, one-quarter of a million young people every night in these public dance-halls, most of which are run in connection with the liquor trade.

The obligation to regulate places of public amusement, and to provide good amusement in place of bad, rests with the community.

The minute you begin to regulate the dance-hall you are interfering with many kinds of business; first and foremost the liquor trade and all the interests it involves; then, with the business of those whose livelihood depends upon the vile trade that is stimulated by the usual dance-hall; and behind these groups, an unknown number of perfectly respectable businesses whose trade is increased by the conditions which characterize a “wide open” town. All these manifold interests are rooted deep in the fabric

of the government of most of our American cities, and, because their connections are in so many instances seemingly innocent, are all the more difficult to defeat and dislodge.

Playgrounds: The need of organized recreation facilities for children has become pressing, as congestion of population has left no place, not even the streets, in which they can play.

There are many blocks in New York City where the population is greater than in any other place of like area in the world. Where can the great throng of children go to find innocent amusement? Where shall they go out of school hours?

In 1915 it was estimated that there were 734,000 children between five and fourteen years of age who had to play away from home. To provide for them, the city furnished school and park playgrounds for from 100,000 to 185,000, leaving at least half a million children with no provision of any kind for play, except the already crowded city streets.

Vacation Schools: Keeping the schools and playgrounds open during the summer months takes the children away from the hot, crowded streets, at least part of the time. Like public playgrounds, the number of vacation schools is always dependent on appropriations. The makers of the city budget find a greater pressure exerted from the multitude of business interests that want consideration, than they do in support of appropriations for public health and comfort. It will be necessary for women to be as alive in supporting such measures, as men are in demanding that their interests shall be considered. Also facts must be given to prove that the cost of such appropriations is saved in the increased productive powers of a healthier people. It has been stated that a healthy laborer increases the wealth of the country by some \$30,000 during a normal lifetime. If this is true, it should be merely intelligent business on the part of the commonwealth to expend a reasonable pro rata of this sum, when necessary, to insure that a child when full grown is healthy.

Recreation Centers have been established in some of the Western cities. Chicago has a series of small parks in various parts of the city, with outdoor playgrounds, and in each one a large building where there is a gymnasium, swimming-pool, and assembly-rooms, large and small. On a Saturday or Sunday afternoon, these places show many happy pictures of thousands of

families, with both the old and young spending their leisure in a way that increases their own happiness, and their value to the world.

Municipal Dance-halls have also been tried. In the recreation centers of Chicago there are dance-halls under careful supervision. But whether the city provides municipal dance-halls or not, public dance-halls should be divorced from the liquor business, and there should be careful policing and supervision of private halls, and for this work women police officials are necessary.

Municipal Bathing Beaches are also possible for any community with a water-front. They are one of the great attractions of Chicago, where a large part of the lakefront draws hundreds of thousands of men, women, and children, who may easily reach these public beaches from any part of the city. The New York State law makes the construction of free baths obligatory in cities of 50,000 or more population.

The “Movies”: Millions of children attend moving-picture theaters every day of the year. In New York City alone, the daily attendance of children is estimated at 200,000. The pictures impress the minds of children like scenes in real life. For good or for evil, moving pictures are the great teachers of the youth of to-day.

Many of the lessons taught on the screen are not suitable for children. They give intimate views of the underworld, of assault and infidelity, and barroom brawls. They show fair heroines and gallant heroes committing crimes, and being pardoned and living happily ever after. They show picture after picture that tends to destroy moral standards that home and school have tried to teach.

Causes for Juvenile Crime: The natural craving for excitement and love of adventure, with no provision for its legitimate expression, is responsible for much of the crime of our cities. Some years ago, it was estimated that of the 15,000 young people under twenty years of age who were arrested in Chicago during a year, most of them had broken the law in their blundering efforts to find adventure. It is said that the machinery of the grand juries and criminal courts is maintained, in a large measure, for the benefit of youths between the ages of thirteen and twenty-five. The so-called “gangs” of our cities are an expression of the recklessness and bravado, common to boys,

which, well-directed, is of great service to the world, and, misdirected, is responsible for much misery.

The Use of School-buildings as Social Centers meets a very real problem. Halls for dancing and for entertainments, lectures and debates, rooms for games, even gymnasiums, could easily be brought within the reach of most of the people. Grown-ups, as well as young people, would find them of value. This use of the schools, outside of the regular school hours, has greatly increased in the West, and the school plant has become an increased factor for good in the life of the community.

Rural Needs: Some of our indifference in regard to proper provisions for recreation may be due to the fact that we were so long a rural nation. The boy who lived on a farm or in a village, who had the swimming-hole in summer, the farm with its hay-loft, and in winter sledding and skating, was able to satisfy his love of adventure. To-day, even rural conditions have changed, and there is as much need of decent and wholesome recreation in the country and small villages as in cities. Churches are open only on Sunday, schools are closed two days in the week, the only meeting-place is the corner store, or the saloons, and the streets. The use of the school-building and grounds when school is not in session and on Saturdays and Sundays, would take many boys off the streets.

XVIII

THE CARE OF DEPENDENT AND DELINQUENT CHILDREN

The State of New York has the largest actual number of dependent children, and the largest number in proportion to population, of any State in the Union.

In the early days it was the women who cared for the neglected children of a neighborhood, and children left homeless were usually taken into some one's home. This care has gradually gone into the hands of the town, the county, or the State, and has become a department of government.

There are two ways of caring for homeless children: one is to place them in institutions, the other is to place them in private families. In both cases the State usually has to pay for their support. If the right kind of a home can be found for a child it seems to have a much better chance for a healthy, happy childhood, and for a useful future when placed with a family, than when placed in an institution. The custom in New York State has been to place children in institutions.

It is the business of each local official, town overseer of the poor, county superintendent of the poor, and city commissioner of charities, to provide for destitute children. In the early days he used to provide for them by giving what was called "outdoor relief" to the parent, if either parent was living; if the child was homeless it was sent to the almshouse. For many years past, children between the ages of three and sixteen have not been allowed in almshouses, but have been committed to institutions.

Besides this public care, private charitable agencies began to establish orphan asylums, and homes for friendless children. These institutions often developed from small beginnings into large establishments, and began to

draw on the public funds for at least a part of the maintenance of their inmates, and sometimes for their entire support. It was argued that if the State did not pay for the support of the children in the orphan asylum it would have to take care of them elsewhere.

No Definite Authority: For many years the authority between State and local governing boards has been divided. As a consequence, inspection of children's institutions has amounted to very little, or has been, at least, ineffectual.

This inadequate inspection, in addition to divided authority, encouraged neglect and abuse. The report of conditions in private institutions in New York City, made in 1916 as the result of an official investigation, showed that dirt, insufficient food, vermin, disease, and lack of common sanitary precautions were common. Education was so much below the standard of the public school, with little or no vocational training, that children were discharged with no preparation for earning a living. There was not only an utter absence of home atmosphere, but methods and restrictions were used like a prison or reformatory. So little care was given when the children left the institution, that they often went out entirely friendless, with no one to call upon for council or advice, and utterly unprepared for independent life.

These conditions were allowed to exist, partly because of the divided authority and responsibility, largely because those in authority were not deeply interested. As the report said, "the committing authorities have not looked upon the problem as of sufficient moment to make it any part of their business to formulate and promulgate any competent standard to govern the service maintained in children's institutions."

New York City has tried the experiment of "boarding out" all dependent children between two and seven years of age, taking care to place Catholic children in Catholic homes, Jewish children in Jewish homes, and so forth. In some respects, this is a better method than committing children to institutions, but it is only successful if the child is carefully placed, and its welfare watched by appointed visitors.

In New York State, 1900-1913, the average infant mortality-rate of children under two years of age was 86.4 per 1,000, while the death-rate in eleven large infant asylums was 422.5 per 1,000. That is, under the care of

the mother, even including the ignorant mother, only one-fifth as many babies died as when the children were cared for by the State.

Experience shows that children are not only safer and healthier with their own mothers than in institutions, but that they have a better chance with foster mothers than in asylums. In 1914, the New York City Health Department, as an experiment, placed seventy-five infants to board with foster mothers, with the result that the infant death-rate dropped forty-eight per cent.

Boards of Child Welfare: In 1915, the Legislature authorized the appointment of boards of child welfare in each county. These boards were to investigate needy cases and had the power to grant an allowance to a destitute mother for the care of her children.^[6] This work is dependent on the appropriations granted by the county. County authorities are slow to act in matters that require appropriations. At the end of the first year, fifty-seven counties had organized boards, but only thirty-four had made appropriations; 6,014 children had been kept from asylums and 1,969 homes had been saved from being broken up. In New York City, the number of children in institutions has decreased 3,000 since the Child Welfare Board began its work. In 1917 New York City appropriated \$1,250,000 for widowed mothers. The *average monthly allowance*, the first year of the Welfare Board's work, for each child under sixteen, was \$7.99, which is \$3 less than it would have cost to keep the child in an institution.

It is now admitted that everything possible should be done to prevent a home from being broken up by poverty; that if the mother is living, and is a fit person to bring up her children, it should be made possible for her to keep them. That the mother is usually a fit person to bring up her child, is proved by the experience of the Board of Child Welfare of New York City, which examined four thousand cases of mothers who applied for pensions, and found only in fourteen cases that the mother was not to be so trusted.

In many of the Western States the widowed mothers' compensation, or pension laws, have been extended to cover children of delinquent, injured, or crippled fathers, and sometimes even of fathers imprisoned in penal institutions.

Some States also have other provisions which reduce the number of dependent children. In Washington a man who deserts his family is put to

work and his wages are paid to his wife and children. This seems more sensible than the law which imprisons the man, and lets the State support him, while his wife has to support herself and children. In Kansas, the wages of a prisoner are given to his family. In California and Illinois, the father must help support the illegitimate child.

The care of dependent children is work for which women are especially fitted by both training and inclination. In Colorado, the State Home for Dependent Children must have two women on its board of five members. In the State Industrial Home for Girls, three of the five members of the board must be women.

The Problem of the Delinquent Child is one that needs the greatest care and expert attention. If the dependent child is an appealing figure, the delinquent child is an indictment of a community. He is usually the product of neglect, of overcrowding, of bad living conditions, and of defects in the educational system.

To treat the child offender as if he were grown up and responsible, and to punish him in the same way as an adult, is to make a criminal of him. The manner in which his first offense against the law is handled, often determines the future of such a child.

Children's Courts: It used to be common for children of all ages to be detained with older, hardened criminals indiscriminately, exposed to contamination and disease, and to try them in an open court-room with all other cases. The modern policy is to try all cases against children, with the exception of murder, in special courts.

The entire policy of a children's court is based on prevention instead of punishment, to make friends with a delinquent child, to show him the danger ahead of him, to watch over him like an older, wiser friend, and to help him to keep straight. The terror and disgrace of an open court-room are replaced by a quiet, friendly talk in the judge's room.

A large number of all children who are arrested are ungovernable or disorderly, children who have run away from home, or who are associating with dissolute or vicious persons. Another large class comes into the courts because of improper guardianship; neglected children, or those exposed to

physical or moral danger. These cases are not classed technically as delinquents, but are tried by what are known as special proceedings.

The total number of children arraigned in the children's courts of New York City in 1916 for delinquency was: boys, 5,929; girls, 150; in special proceedings, boys, 3,893; girls, 2,972, a total of 12,944. The largest percentage of cases for any offense for boys was petty larceny, and for girls was sex offenses and incorrigibility.

In 1916 the Police Department of New York City made in its report an analysis of juvenile arrests, showing the nature of the offense, the age, sex, nativity, occupation, and employment of the child. The largest number of arrests were for offenses against property. Practically half of all the delinquents were native-born children of foreign-born parents.

The attitude of the police force of New York City during the last few years has been helpful in handling the problem of juvenile delinquency. The police are now instructed to try to prevent small infringements of the law by children, and many trivial offenses are adjusted out of court.

A considerable proportion of the children who come repeatedly into the children's courts are feeble-minded. During 1917, the children's court of New York City, for the first time, had a clinic attached to the court, where children suspected of being mentally deficient could be examined. There is still, however, no place where they can be committed temporarily for observation, and there is great need of a graded institution that will provide for the treatment and care of the different classes of mentally deficient children.

The system of probation for child offenders is of the greatest possible assistance in reclaiming the child; it also decreases the number of children who are committed to institutions, thus saving the State money. To make probation effective, children must be visited frequently in their homes, and be kept on probation long enough to make probable a complete reformation. Women, and not men, should be appointed as probation officers for delinquent girls, but, as the appointments are often political, men are given the preference, and are even put in charge of girls.

The present Children's Court in Greater New York dates from 1915, and under the presiding justice of the court has been brought to a high state of

intelligent and sympathetic handling. The city of Buffalo also makes special provision for delinquent children. In most of the cities of the State, the judges of the court of special sessions set certain days for children's cases.

Among the improvements needed in the New York State law is a provision to give the children's court jurisdiction over children of sixteen and seventeen years of age. This is especially needed in cases of wayward girls. In Colorado the juvenile court handles cases of offenders under eighteen. Also, it is a criminal offense in Colorado to contribute to the delinquency of a child, and the children's court has jurisdiction over adults contributing to such delinquency. This is a provision needed in the New York State law. Colorado also has a law prohibiting the publication of the name or picture of a girl under eighteen in a case of delinquency. This is important, as procurers and other men who have been the cause of a girl's delinquency often go free, because the girl and her family wish to avoid publicity.

The children's courts in New York State should also have the power to appoint legal guardians for children in case of need.

To be a judge of a juvenile court requires exceptional qualifications: quick sympathy, and intelligent understanding of the many causes which contribute to child delinquency.

A large part of the problem comes back to the environment of the child, to crowded living conditions, deficient education, lack of vocational training, and absence of opportunities for recreation. The pitiful striving of children for pleasure and play, and the inadequate provisions of our cities to meet this need, are often responsible for the first delinquent step. Many improvements in this direction, as well as improvements in the law, are needed to bring the protection that New York State gives its children up to the level of the best found in other States.

FOOTNOTES:

[6] Unfortunately, the law expressly excludes in its provisions for relief families with alien fathers.

XIX

CHILD WAGE-EARNERS

Children are the most important assets of a nation.

While every one, individually, would admit this statement, it is not easy to persuade the government that the protection and development of child life cannot be left safely to private initiative, any more than can animal or plant life; that, in addition to the protection of the individual family, children need the fostering care of the organized government. For many years, the government, both State and National, has dealt generously with the agricultural interests of the country. When disease has broken out among either animals or plants, it has had its experts ready to send out at a moment's notice to any part of the country. It has spent vast sums of money to investigate and eradicate boll-weevil in cotton, and hoof-and-mouth disease among cattle, and to develop a better strain in many animals and plants, but it is only very recently that it has been willing to investigate the needs of the children of the nation.

The appropriations of the Federal government for animal life, in 1915, were over \$5,000,000; for child life, \$164,000. In 1917, an additional appropriation of \$150,000 was made for the enforcement of the Federal Child Labor Law.

Federal Child Labor Law: For fourteen years, the National Child Labor Committee has tried to get laws passed which would limit the hours of work for children, the kind of work they might do, and the age at which they might be put to work. Discouraged by the State by State method, the committee inaugurated a campaign for a Federal child labor law, and after three years of effort succeeded in getting it passed.

Men have an eight-hour day in many States. Women have an eight-hour day in a few States. Until the Federal bill was passed, children of tender years in a number of States could be employed almost unlimited hours and all night.

At the time the bill was passed three States permitted children under fourteen to work ten and eleven hours a day, and two States permitted them to work at night. Nineteen mining States permitted children under sixteen to work in mines.

Nine States permitted children under sixteen to do night work. In three Southern States, one-fifth of all the cotton-mill workers, in 1913, were children less than sixteen years of age.

The Federal Child Labor Bill, which went into effect September 1, 1917, was declared unconstitutional by a United States District Court in North Carolina, and is now before the Supreme Court of the United States. This law prohibits the interstate commerce of articles which children have helped to make. It does not control the labor of children in local occupations. Street trades, messenger service, agricultural work, and housework are not touched by it. This law is a great step in advance for the protection of children, but there are still 1,859,000 children, from ten to sixteen years old, at work in the United States whom the Federal law does not touch.

New York State Laws: For many years New York State has been building up a code of protection for the children of the State. Children under sixteen years of age are not permitted to work unless they have a special permit, and they must have completed the sixth grade in school. A physical examination of the child is required to see that he is able to stand the strain of the industry in which he is about to engage, and proof of age is required. To sell newspapers, boys from twelve to fourteen must have a permit and a badge. Boys of fourteen and fifteen are required to have badges if they have a prescribed route for the delivery of newspapers, but not if they are selling for themselves. Children under sixteen are not allowed to work more than eight hours a day. To enforce these laws adequately, many inspectors are needed and unceasing vigilance on the part of the public. While the provisions of the law concerning newsboys are very clear, and are generally obeyed in New York City, they are seldom enforced elsewhere in the State.

To allow children to enter the industrial world at an early age, without preparation, and with no guidance as to the sort of work for which they are best fitted, is unfair to them. The boy or girl who gets a job at fourteen,

without any vocational training, is apt to remain an unskilled worker all his or her life. The range of occupations open to such children is small. The largest number of boys who go to work at an early age become delivery boys, errand or wagon boys, or newsboys. There is little chance among these employments for real training or for any future advancement.

A careful study, by the National Child Labor Committee, of certain cases brought into the Children's Court, has established the fact that a large proportion of the boys and girls who come into the court come from the ranks of child workers. This investigation has also proved the need of adequate vocational guidance. The present school course gives little help in this direction to children who are leaving school at fourteen or fifteen, and parents are often as ignorant of industrial conditions as the children. After a few years in an occupation that offers no opportunity for development, the boy or girl who went to work so young is often left stranded, not only untrained, but demoralized.

There is need also of making parents understand that better opportunities are open to children who have had education beyond the elementary grades.

Street Trades of all kinds are regarded by social experts as unsafe for children. Some authorities recommend the absolute prohibition of all street trading for boys under seventeen. These trades, including selling newspapers, appeal to boys because they like the excitement of street life, and the spending-money which they give them.

A judge of the Detroit Juvenile Court says, "At least fifty per cent. of the boys brought into the juvenile court are newsboys." An old newsboy, when asked what night work on the streets had done for him, said: "When I was a kid, it wasn't like it is now. They didn't have no midnight edition—I always had to be home by eight o'clock. When I got to selling at night I started in high school, but when it came time for the first examination, I said, 'Oh, I'll just quit. I'd rather be out on the streets, anyway.'" In Baltimore it is estimated that 45 per cent. of all the children in the near-by reform school have been street workers.

Investigations have proved the theory is false that a child is usually put to work "to support a widowed mother." More often the child in a street trade is found to come from a home where there is no need of his work, and in these trades the earnings of children are very small. In a recent

investigation, in Seattle, the earnings of newsboys were found in 46 per cent. of the cases of the elementary school paper-sellers to be less than \$5 a month.

The night messenger service is known to be a demoralizing occupation, unfit for any small boy, and in New York it is prohibited to all boys under twenty-one. The same protection of the law is now needed for girls.

Many parents do not realize the serious results of letting their children go to work too young, or the bad effects of over-work on them. The tendency of over-fatigue is to break down the moral resistance. The release from supervision which is brought about by their wage-earning, and the danger of their having money of their own to spend, added to the interruption of their education, cannot help but have a demoralizing effect on them.

Rural Child Workers are quite as common as city workers, but they are not so often wage-earners. Their labor is usually taken by parents as a matter of course, and they are not paid. Farming and housework are two occupations which engage many children, and there is almost a complete absence of laws regulating them.

A distinction should be made between the farmer lad who does "chores" night and morning, and the boy who is kept out of school most of the year to be a farm-hand; and between the girl who helps her mother out of school hours, and the girl who is kept at work in a canning-factory, and goes from one to another as fruits and vegetables ripen; but neither the chores nor the housework should be allowed to interfere with the regularity of school attendance. The boy who is kept at farm labor, without education, and the girl who is kept at work in the canning industry at the expense of her schooling, are as much in the ranks of child laborers as the cotton-mill workers, and they suffer in the same way from lack of training for a useful future.

Experiments have been made in combining the work that the boy does night and morning on the farm, with the school work. Under proper guidance, the chores that the boy has to do at home can be made a means of education. For example: a pupil who assists at home in the milking might be required to keep a daily record of each cow, with the fluctuations in the yield of milk, due to weather and food. This combining of the necessary home work with the instruction of the school has been made a success in

some of the Western States, where county superintendents supervise the home-school work and make it of the greatest possible educational value.

Rural school terms are usually shorter than city terms, and irregular attendance is more frequent. Only 68 per cent. of the pupils enrolled in rural schools attend daily, while in cities the percentage is 80. The absences of girls are caused largely by housework.

The results of child labor in the country are seen in the high percentage of rejections from military service on account of physical defects in men from rural districts, and the larger percentage of illiteracy in country communities compared with that in cities. Better and more adequate education for the thousands of children on the farms of the State is one of our immediate needs.

It is the right of every child to be given enough education to give him a good start in life. The child-labor problem is largely a school problem. Keep the children in school, and there will be no child labor.

War and Children: The war has brought a new demand for the labor of children, and new evidence of the serious consequences of using this labor. In England and France, juvenile delinquency due to the breaking down of educational facilities, and the exploitation of children in shops and factories, has increased to a point where both nations are aroused by a new national danger. To meet the sudden great need for munitions, and the speeding up of all industry, children of all ages, and women of all classes, went into the factories. In England, it is estimated that 200,000 children from eleven to thirteen years of age left school to go to work. Abnormally high wages were paid them. With fathers at the front and mothers away from home in munition factories, these children roamed the streets after their work was done, with pockets filled with money to spend, and no one to exercise a restraining hand.

Streets are unlighted, the police force has been decreased, churches, schools, and settlement work are interrupted. Is it any wonder that since the war began juvenile delinquency has increased 46 per cent. in Edinburgh, 56 per cent. in Manchester, and thefts 50 per cent.?

The same demand for child labor has begun to be manifest in this country. The United States is being called on to feed the world, and to make

supplies of all kinds for our allies, besides the tremendous need of supplies for our own armies. Millions of men are being drawn from the ranks of producers, and have become consumers. The world is consuming and destroying on a scale never known before in history. The demand for more and more labor is becoming ever more insistent.

In spite of the warnings which have come to us from England and France, of the necessity of guarding against the exploitation of our children during the war, New York State was one of the first to try to break down the restrictions built up during many years of the past with such infinite labor.

The Brown bills, which passed the Legislature last winter, were a frank attempt to utilize the labor of children. They made it possible, at the discretion of the State Labor Commission, to abrogate every law that has been passed in New York State to safeguard its children. One bill would have made it possible to utilize the labor of children unlimited hours, seven days in the week, including night labor. This was vetoed by the Governor. The other, which makes possible the suspension of the compulsory education law, in order that children may work on the farms, has become a law. Other attempts will undoubtedly be made to exploit children.

It will require unceasing vigilance on the part of the people of the State to see that measures detrimental to children shall not be successful. Attempts are being made to remove the limit of hours, and to abolish the requirement that children between fourteen and sixteen shall have working papers. Such measures mean that the physical examination now required would not be made, and that the necessity of furnishing proof of the age of the applicant would be eliminated. The first would permit weak, sickly children to go to work in the factories, and the second would encourage the employment of children under fourteen.

The need for increased labor is a real one, and as long as the war lasts it will continue to grow. But the nation that exploits its children while at war is bleeding at both ends. It is the province of women to watch over and guard all children. Now that they have the vote, the responsibility has been put directly on them, and they have the power to meet it.

Because of the tremendous cost of war in human life itself, it becomes doubly important to safeguard human life at its source, and that is our job.

NOTE.—The material used in this chapter is largely taken from publications of the National Child Labor Committee.

XX

PUBLIC CHARITIES

The public institutions of the State are grouped under three heads: the State Commission in Lunacy, the Prison Commission, and the State Board of Charities.

The State Board of Charities, which has general supervision of the charitable institutions of the State, consists of twelve members, of whom nine must be appointed as commissioners from the nine judicial districts of the State, and three from New York City. The law prescribes otherwise no qualifications for membership on this board. (A recent innovation has been made in the appointment of a woman on the board.) The commissioners serve without salary, but each one is paid his expenses and \$10 for each day's attendance at meetings, not to exceed \$500 a year.

Partly State, Partly Private: Some charitable institutions in the State are wholly controlled by the State or one of its subdivisions; others are controlled by private corporations, but are maintained either wholly, or in part, by State funds. There are over six hundred and forty charitable institutions which receive money from the State. There are still other institutions which are entirely supported by private funds. The State Board of Charities has not the authority at present to inspect organized charities which do not receive public money, so there are many institutions which are without the protection of State inspection, and the total amount of dependency in the State is not known officially.

Duties of the Board: Besides its duties of inspection and general supervision of charitable institutions, the board has the control of the incorporation of charitable institutions, and must approve of an application for a certificate of incorporation before it can be granted. It also issues licenses for medical dispensaries, and makes rules and regulations under which they must work.

The Powers of the Board Are Limited, as the carrying out of its recommendations often depends on action by the State Legislature, and especially on the amount of the appropriations granted for the work. The powers originally given the board have also been greatly impaired by the action of the Legislature from time to time in creating other agencies, which have resulted in a duplication of work and an overlapping of authority. There is much complaint of institutions being overrun by official visitors, and inspectors with conflicting authority, who are said to interfere with the work of the institutions without accomplishing adequate results.

The powers of the board have been especially curtailed since the office of *Fiscal Supervisor of State Charities* was created in 1902. When decisions are to be made concerning appropriations for State charities, in making up the legislative budget, the Fiscal Supervisor is consulted to the exclusion of the State Board. In reality the Fiscal Supervisor has far greater powers than the State Board of Charities, as no appropriations can be made unless approved by him. His effort is to keep down appropriations wherever possible, and he does not come in direct personal touch with the needs of the work.

The power to fix salaries and establish positions has been given to the *Salary Classification Commission*, and to locate new buildings to the *Commission on Sites, Grounds, and Buildings*.

The general dissatisfaction with the confused and conflicting authority, which had come with different legislative enactments, led to the appointment in 1916, of a commissioner to investigate State charities and to report to the Governor, with recommendations of changes he deemed advisable.

Among the changes recommended were:

(1) That instead of an unpaid board of twelve members, appointed from the judicial districts, there should be a board of nine, of whom one should be a woman; three members should be paid and should give all their time to the work, one of the three to be president of the board, one the chairman of a bureau for mental deficiency, and the third, chairman of a bureau for dependent children; the six unpaid members were to be specialists in the special classes of work which is supervised by the board.

The present State Board of Charities objects to this change on the ground that a board so organized would become political. They also feel that the appointments should continue to be made from the judicial districts, in order that every part of the State should have a resident member of the State Board.

The report further recommended: (2) Prompt provision for defective delinquents; (3) a careful revision of the State charities and poor law; (4) that power should be given the State Board to inspect private charitable institutions; (5) the creation of a new bureau for dependent children; (6) the abolition of the office of Fiscal Supervisor of Charities, in order that recommendations for appropriations should come directly from the State Board of Charities; (7) the abolition of other conflicting authorities, and restoring the authority of the State Board.

None of these recommendations have been acted upon as yet.

The State institutions that are under the State are the following: State Agricultural and Industrial School, Industry; Syracuse State Institution for Feeble-minded Children, Syracuse; New York State School for the Blind, Batavia; Thomas Indian School, Iroquois; State Custodial Asylum for Feeble-minded Women, Newark; New York State Soldiers' and Sailors' Home, Bath; New York State Training School for Girls, Hudson; Western House of Refuge for Women, Albion; New York State Reformatory for Women, Bedford Hills; Rome Custodial State Asylum, Rome; Craig Colony for Epileptics, Sonyea; New York State Woman's Relief Corps Home, Oxford; New York State Hospital for the Care of Crippled and Deformed Children, West Haverstraw; New York State Hospital for the Treatment of Incipient Pulmonary Tuberculosis, Raybrook; New York State Training School for Boys, established by law in 1904, not yet ready to receive inmates; Letchworth Village for Feeble-minded, Rockland County; and authorized in 1911-12, but not yet open: The State Industrial Farm Colony, Green Haven; and the State Reformatory for Misdemeanants.

Private institutions supported mainly by State appropriations are: New York Institution for the Instruction of Deaf and Dumb; New York Society for the Reformation of Juvenile Delinquents in the City of New York; New York Institute for the Education of the Blind; Institutions for Deaf Mutes in

New York City, Buffalo, Westchester, Rome, Rochester; Malone and Albany Home Schools for the Oral Instruction of the Deaf.

County and City Institutions: County and city almshouses are under the supervision of the State Board of Charities, and also the recently established county sanatoria for tuberculosis, of which there are about thirty. The small number of patients in these county hospitals for tuberculosis makes it impossible for some of them to give as expert and efficient care as a larger and better equipped hospital might offer.^[7]

The Department of State and Alien Poor, of the State Board of Charities, has the supervision of the State poor, and of alien and Indian dependents. It also has the power to transfer aliens, or non-residents, who have become public charges, to their home county or State, or, in co-operation with the United States Immigration authorities, to return them to their home countries. This department has saved the State large sums of money.

In 1916, 810 persons were returned to their homes in other States or countries, by this department, of whom 250 were alien poor.

Local Boards of Managers: Each State charitable and reformatory institution is administered and controlled by a board of local managers, appointed by the Governor and confirmed by the Senate. These boards usually consist of seven persons who serve without pay, for their expenses only. There are some women on these local boards, but not nearly as many as there might be, considering the number of institutions which have women in their charge.

The superintendents of State institutions are all carefully selected from the civil service lists.

The employees of these institutions form a difficult problem. The old conception of an attendant for a public institution was exceedingly low; the standard is still far from good. The salaries paid are insufficient to attract intelligent service.

The Department of Inspection: There are over six hundred institutions in the State which come under the Department of Inspection. To handle them there are eight inspectors, and one superintendent of inspection.

Almshouses are inspected and graded in three classes. Of the counties that were reported in 1917 as first class in both administration and plant are: Allegany, Chautauqua, Genesee, Jefferson, Lewis, Monroe, Niagara, Saratoga, Schenectady, and Wayne counties. Those second class in both administration and plant were: Dutchess, Herkimer, Madison, Rockland, Schoharie, and Ulster counties. The only one third class in both plant and administration was in Sullivan County.

Provision for the Feeble-minded is the greatest present need of the charities of the State. Mental defectives are at large all over the State, and they are found in all institutions. They are a source of trouble in the public schools, and are a constant danger to the State.

It is estimated that there are not less than 30,000 of these unfortunates. The State institutions have room for about 5,700, but they are actually caring for 6,700. For years efforts have been made to get the Legislature to make adequate provision for their segregation. The report of one institution for feeble-minded women says, "nine of the women admitted were married and had given birth to thirty-seven children; twenty-six of those admitted had borne forty-three illegitimate children; making a total of eighty children born to those unfortunate women."

Letchworth Village, in Rockland County, a plot of 2,000 acres, was planned to provide for 2,500 to 3,000 feeble-minded. It was established in 1907, and in 1916 still had a capacity of only 330.

The failure of the State to complete a project it had undertaken is shown also in the New York State Training School for Boys at Yorktown Heights. This was planned to be a reformatory of the modern cottage type to take the place of the very old one on Randall's Island, and was greatly needed for delinquent boys. After twelve years of delay, and after \$800,000 had been appropriated by the State and most of it expended, this project has been abandoned. The reason given for the final decision to abandon the site, was the possible contamination of the Croton water supply by the institution. With modern methods of sewage disposal it seems as if it would have been possible to guard against this danger. It would have been easier to insure proper treatment of the sewage from such an institution than from the towns and villages which exist in the Croton watershed. The State Board of

Charities recommends now an appropriation of \$150,000 for a new site and plans.

Recommendations of the State Board: Intelligent handling of the problem of dependency must deal with causes. Probably the major part could be done away with if the State would adopt adequate preventive measures. The board recommends as an aid to this end: (1) Industrial insurance; (2) better housing, including the destruction of the worst congested areas in cities, and the prevention of further congestion; (3) vocational training for children; (4) improved labor laws, restricting the hours of labor, and compensation for accidents to employees; (5) adequate pensions to widowed mothers.

They also recommend: That further provision be made for tuberculosis, which the records of the State Health Department show is increasing; that the office of County Superintendent of the Poor should be appointive and be included in the Civil Service. The frequent changing of poor-law officials, and their lack of knowledge of the subject, are drawbacks in the discharge of their duties.

The State Commission in Lunacy has charge of the hospitals for the insane. All the insane come under the direct charge of the State. This is a salaried commission consisting of three members. There are local boards of managers for these insane asylums as for the other charitable institutions, and a majority of the members of these local boards are required to visit the hospitals at least once a month for inspection. [\[8\]](#)

The State Prison Commission, like the State Board of Charities, is an unpaid board, but the Superintendent of Prisons is a State official with a salary.

There has been for years a provision of the State law which gives one scale of salaries for men employed in these institutions and a lower one for women.

Pay of Stenographers (male)	\$70-80	a month
” ” (female)	50-68	”
Chief Supervisors (male)	55-68	”
” ” (female)	50-62	”

Since women have been given the vote, it is probable that this law will be changed and equal pay given for equal work.

FOOTNOTES:

[7] It is hoped that when the Boards of Managers for these county tuberculosis hospitals are appointed, local women will be placed on them.

[8] The number of insane in the State is increasing far more rapidly than the provision which is being made for them. The last report of the State Hospital Commission shows that in hospitals for the insane, planned to accommodate 27,890 patients, there were in June, 1916, 33,873 patients, an overcrowding of 21.5 per cent. The State Hospital Commission urgently requests a bond issue to provide immediately for the construction of new buildings.

XXI

THE PROTECTION OF WORKING-WOMEN

The war has brought a revolution in woman's work.

Because of the increased demand for labor, trades and all kinds of employment that have been considered exclusively the province of men, have been opened to women. The universal verdict is that they have everywhere made good. Work that demands the greatest exactness and care, specialized technical operations that have been supposed to require a man's brain, have been done by them quite as well as by men. But their employment in many of the new industries has brought new industrial problems, and they have gone into many new occupations which are not included in the protection extended by existing labor laws.

Even before the war New York State was the greatest industrial State in the Union. More women were at work here than in any other State, and more women were at work in New York City than in any entire State except Pennsylvania.

There were 248 separate manufacturing industries in this State, and women worked in all trades in which over 1,000 workers were employed, except in the manufacture of bricks, tiles, fertilizers, and ice.

They were doing everything, from making cores in foundries, sausages in packing-houses, pickles and candies, to working in human hair, chemicals, and rags.

Women have always done their share of the world's work, but in the past their labor was in the home. During the early years of our nation there were very few women who did not work or supervise work, but they did this in their homes for their homes, and they were not paid in money.

When the cotton-gin was invented and the use of steam was discovered, it was the dream of the inventors that their machines should be really labor-saving, and that people would have leisure for the development of the wider

and deeper things of life. This became true for some people, and to-day there are many women of comparative leisure who can do as they please with their time. But on the other hand, undreamed-of evils and dangers have come to women who toil, and necessity compels women by the millions to seek work in the industrial world. In spite of the fact that the wages of women have been appallingly low, the woman who must earn money in order to live has had to find work outside of her own home.

Number of Women Wage-earners: In 1910, according to the census, there were in New York State 3,291,714 women over fifteen years of age; only 1,793,558 were married, and 1,498,156 were unmarried or widowed; 983,686 of these had to work in order to live, or to support some members of their families. This number did not include the great mass of women who work in their homes.

Clothing Manufacturers: Before the United States entered the war, 184,691 women were working in New York State making every conceivable garment for people to wear. The work is subdivided so that one worker does one thing all day long. There are sixty-five operations in the making of trousers. Twenty to sixty different operations take place in the making of men's shirts. Women tuck or hem materials for women's wear hour by hour, driven by the juggernaut electric machine which knows no fatigue and needs no rest.

Laundries: Ten thousand women worked in laundries in this State, where the washing and ironing are done usually by machines. They stand and push down a treadle of the ironing-machine with their feet, making as many as sixty-three to eighty-one foot pressures a minute. In this action a bad twist of the body is necessary, which may result in permanent injury. Clouds of steam rise from the mangles, and when no exhaust hoods are used, the room is filled with steam. Tuberculosis is a common disease among laundry workers. Unprotected machinery is a constant danger.

Restaurant Workers: There were fifteen thousand restaurant workers, waitresses, cooks, kitchen girls, and pantry hands. Until 1917, they were without any protection by law. They worked any number of hours, and seven days a week. They now come under the fifty-four-hour law, in first and second class cities, but the law is difficult to enforce. They often walk

five miles a day carrying heavy trays; and varicose veins, flat feet, and pelvic disorders are common.

Textile Operators: In New York State 35,168 women worked in textile-mills making silks, woolens, cottons, carpets, knit underwear, etc. The din of machinery is deafening in many of these factories, and often the machinery is so closely placed that there is difficulty in passing without danger of skirts catching.

The whole development of machinery in industry has been worked out for the purpose of extending trade and output, without consideration of the human factor involved. Machines have been watched so they did not wear out or break, and they have been carefully repaired. Girls and women, the human factor, have been discarded if they wore out; they are of less worth to the employer and can be easily replaced without cost to him. But the cost to the State has been heavy in the toll of hospitals, insane asylums, and homes for destitutes and delinquents.

There is hardly a trade which has not some elements of danger or unhealthfulness in it. Women working in meat-packing plants in sausage-making rooms stand all day at their work on water- and slime-soaked floors. Women work in industries where industrial poisons are used or where they are generated in the process of manufacturing. The pressure of piece-work, the monotony of one single operation, are nerve-racking and nerve-exhausting.

The health of women who spend hours a day in factories depends largely upon factory laws and sanitary codes. Light, air, sanitation, overcrowding in factories, mills, and shops, all vitally affect the health of the workers. No one can measure the cost of industry in the life of women. The strength and vitality taken from them will show in the lowered vitality of their children. A low birth-rate, a high death-rate, and an impaired second generation are the inevitable results. Infant mortality where the mothers work in factories is notoriously high.^[9]

War and Woman's Work: With the insistent demand for increased production occasioned by the war, women have been brought into many new positions formerly held only by men. They have gone into the steel-mills; they are employed in large numbers in the munition-factories; they are working on the railroads, in railroad yards, and inspecting tracks, as

well as in the ticket-offices and baggage-rooms. The Pennsylvania Railroad has 2,300 women employed as car-cleaners, track-walkers, upholsterers, locomotive despatchers, and machine-hands. Some are operating trains. They are engaged as conductors on street-cars and subways, and as elevator operators.

These new industries are not included in the provisions for women of the State labor laws.

New York State has a nine-hour day for women working in factories and mercantile occupations, and night work is prohibited in these industries; but this protection does not extend into other occupations.

An eight-hour working-day has been given to men in many States and in many occupations, but in only a few of the Western States has it been given to women. After three or four years in most industries, young women begin to wear out, the speeding up and the strain put on their youth begin to tell, their capacity lessens, and their output diminishes. Although the effect of long hours and monotonous occupation is harder on them than it is on men, the protection of the law has been extended to them to a far less extent. In these new industries there is none. Women may work in them twelve hours a day and all night. The demand of some of the street railways is for a twelve-hour night for women conductors (with two hours off for supper). Elevator operators work twelve hours a day, in day and night shifts, and girls employed all night are subject to insult if not actual danger.

Since boys have been difficult to get, girls, including some under sixteen, have been delivering letters and packages in messenger service. The State law prohibits boys under twenty-one being employed as messengers at night, because of the dangers of contamination from the night life of a city. Under present conditions a girl employed as messenger has no protection, and may even be sent to houses of doubtful character.

The new industries for women also include manual work that has heretofore been considered too heavy for them. The high wages paid them, while lower than would have to be paid now to men for the same work, are still high enough to attract women from other occupations where wages have not had the same advance.

While there is an increasing demand that women shall be paid the same wages as a man would be paid for exactly the same work, the idea still prevails that it is only fair to pay men more than women because they have families to support, while women support only themselves. **This is not true.** On the backs of many women rests the sole support of aged parents, or of younger brothers and sisters. A large proportion of them give up all their earnings to the family needs.

It is no longer a question of the ability of women to do many kinds of work formerly held to be the exclusive province of men; but of the effect of her so doing on the future health and welfare of the race.

Women, like men, must work in order to live, but society and the State owe it to themselves, as a vital matter of self-protection, to safeguard that work, so that future generations shall not suffer from its effects.

The whirl of machinery, the noise, the constant standing or the close bending over work, the meager wages, have been the conditions woman has had to meet for years in her struggle for a livelihood; to them are now added the dangers and excessive hours of these new occupations, with their further call on her strength and endurance.

These new industries for women should be included in the laws regulating the hours and condition of women's work. Public messenger service is too dangerous for young girls to be employed in it.

If the eight-hour working-day is right for men, it is even more needed by women. Laws regulating factory conditions are of little value unless there is sufficient inspection to enforce them, and the number of inspectors employed is always inadequate. Women inspectors are needed for factories in which women are employed; but there are only four women factory inspectors in the entire State.

Several years ago the New York State Factory Investigating Commission made an exhaustive investigation of women's wages, and found that women and girls were so underpaid as to endanger their health and productiveness. Since then the cost of living has advanced prodigiously, with no corresponding increase in wages, especially among young unorganized women.

A minimum wage bill, similar to the one in force in Oregon, which has been declared constitutional by the United States Supreme Court, is now before the Legislature, drawn on the recommendation of the State Factory Investigating Commission.

If the war continues, the demand, not for more protection, but for the suspension of existing labor laws, will become more insistent. The needs of the country for increased production will be irresistible and will not be satisfied for many years.

The test which the government should insist shall be applied to every occupation in which women engage is this: What effect will it have on the one business in life which is especially theirs, the production and conservation of human life? How can it be safeguarded so it shall not exact too great a toll from their health and vitality?

Every consideration that individuals and the State can give must be engaged in the study of this question. With the vote in her hands, the woman in industry will be able to protect herself better than before, but the responsibility for her welfare rests not on herself alone, but on other women, especially on those who are free from the grinding struggle themselves, and can do as they choose with their time. It is part of their responsibility to see that the most conscientious and careful consideration be given to this question.

FOOTNOTES:

[\[9\]](#) Thanks are due Miss Mary Dreier, a member of the recent New York State Factory Investigating Commission, for this picture of the work which women are doing.

XXII

AMERICANIZATION

The United States is still a medley of foreign nationalities, representing all the races of the world, with their social characteristics, customs, prejudices, and even language unchanged. No one need be disconcerted by this fact, for the people who came over in the *Mayflower* were foreign-born, the founders of the city of New York were of foreign birth, and so were the first families of Virginia.

In New York State only 35 per cent. of the population is of native birth and descent. Almost one-third is foreign-born; one-third of the children born here have one or both parents of foreign birth. Even with all the resources at our command it would have been a giant task to have assimilated such huge numbers of such divergent races.

The United States was established as a nation where justice, freedom, and opportunity were to be assured to all the people. For over a century it has been a refuge for men and women of foreign lands, who have been oppressed and have longed for freedom, and who have sought wider opportunity for themselves and their children.

Native-born Americans have accepted their privileges as a matter of course, and without feeling the obligations they imply. They have demanded justice and opportunity for themselves, but they have not felt the responsibility of seeing that it was extended in equal measure to those who come to our shores. They have not realized that it is the obligation of every one enjoying the privileges and benefits of a democracy to see that these are shared and safeguarded by all the people.

The war has brought home to the nation the stern necessity of a united country. For the safety of the nation our ideals of freedom, justice, and opportunity must be put into practice for all the people of the nation. The "square deal" that we stand for must be given at home, the opportunity for better living and the development of character must not be denied any of

our people. Only in this way shall we have loyal American citizens who value their allegiance and who feel the obligation to uphold our national ideals.

The Immigrant Is a Great National Asset: The country has been built up largely by his work. The railroads, the mines, the great buildings, the subways, waterworks, steel-mills, sugar-refining, clothes, cigars, furniture, most of the products of our factories, are made by immigrants. The great industries of the country would stop without the millions of hands that they supply.

The immigrant often comes here with high hopes of improving his condition, and he finds himself looked down on with contempt by the native American, exploited at every turn, and every advantage taken of his ignorance. After an alien is once admitted, there has been relatively little attempt made to protect him, to see that he is helped to settle where his skill can best be utilized, or even to aid him in learning our language and customs.

Many foreigners were skilled farmers before they came to this country, but although there is great need for such labor on the farms here, little provision is made to use their skill in that way. The immigrant often has to pay to get a chance to earn his living. When he gets a job his labor is exploited; he has to accept lower wages than an American would take; the living-quarters provided for him may not be fit for human habitation.

Here is a recent picture of a suburb of New York City, a community of 16,000 foreign-born workers: The married workman pays from fifteen to twenty dollars a month rent for a three- or four-room flat, the rooms about ten feet square, with no light but kerosene-lamps. The average family has four children, and each family takes from two to six boarders to help pay the rent. The only running water is on the first floor, and there is one out-of-door toilet. Is it any wonder that the children, the younger generation, are both sickly and lawless?

The factory buildings are large and well lighted, but in many communities of foreign-born unskilled workmen the housing provisions allow for no privacy and are a detriment to family life and morality. Such conditions are particularly bad for the immigrant woman whose work confines her indoors.

It is natural that the foreigner should settle with others of his own nationality, so almost every city and village in the State has a colony "across the track." In the native section there will be police protection, paved streets, running water, sewage and garbage disposal, but this protection often does not extend "across the track." There, disorder and filth abound and the death-rate is much higher.

Every injustice to the immigrant reacts on us as a people. He must be given a square deal before he can be made into a loyal American.

A common language is the first essential of a united nation. There are solid blocks in New York and other cities where not a word of English is spoken or understood. It is hopeless to try to make Americans of persons who do not understand our language. Speaking English is the first step in citizenship, and the public schools are the logical centers in which to make loyal Americans of our alien population.

Night Schools are sometimes provided, but there are many localities still without them; and, after all, it is difficult for a man who has been at manual labor all day to study at night. They are most successful when they are made interesting with stories and games. Experiments have been made with classes held from five to seven o'clock in the afternoon in the factory buildings, and employers often welcome them.

Neighborhood Classes for Women are being held in the afternoon in some localities. In this case the babies must be included. Provision is made for them in a separate room with a nurse or kindergartner to take charge of them. The best lessons for the mothers are not found in books, but are based on the interests connected with their daily lives and their domestic duties. Paper patterns and a lesson in how to make garments for her baby will chain her attention, and the English names of articles used will be learned unconsciously. "Playing store" with the articles she depends on to feed her family will fascinate her and teach her more practical English.

The immigrant woman is often keen to learn American ways and customs. She is eager to know how to take better care of her family. When the public schools of New York City give away pamphlets about economical cooking, the call for them from the mothers of the pupils is so great that the supply is soon exhausted.

The need for some special help for the foreign woman was never as great as it is to-day. There are about four hundred thousand of them in New York State who have become citizens because their husbands are citizens. They are going to vote. Many of them cannot speak English. In the course of time the law providing that a woman shall take the citizenship of her husband without qualifying for it herself, may be changed, but meanwhile these women are voters. They need help and education, and for the protection of the State the community must give it to them.

Home Teaching of women in the tenements as part of the regular school system is being tried in California. Teachers are sent into the homes to show by practical demonstration economical cooking, how to improve sanitary conditions, and to teach the mother how to care for her children.

Naturalization would do more to arouse a sense of responsibility in the alien if it were conferred with a ceremony which would appeal to the imagination. Many of the people who come to our shores come from countries where beauty and ceremonial are part of the national life. The process of naturalization, as conducted in many courts, is usually perfunctory and often sordid. If the courts are crowded, an applicant may have to come six or eight times with his witnesses, losing not only time, but being in danger of losing his job. He is often ignorant of the whole subject of government; he may know nothing of the questions involved in an election, but there is rarely an effort made to teach him anything of American ideals. The political club that wants his vote is the only thing connected with government that pays any attention to him, or offers him help. Often he finds that his vote has a market value. So the ballot, the symbol of freedom and self-government, becomes to him only a bit of graft. Definite standards of citizenship that apply to all alike, better tests of their knowledge of English and of our government, would help to impress on aliens the meaning of the oath of allegiance.

Uniform Naturalization Laws: In New York State an alien has to wait five years to become a citizen with a vote. In Nebraska, a Turk or a Greek or an Armenian who landed six months before, if he has taken out his citizenship papers, is permitted to vote, although he may have no educational qualifications of any kind, and know no English nor anything about our government. In seven other States a man can vote simply by declaring his intention of becoming a citizen.

Ignorance of Laws: Besides the lack of provision for learning the duties of citizenship, there is little opportunity for the immigrant either to become familiar with our laws or to learn respect for the law. He gets his knowledge of the vote from the ward boss, and he learns contempt for the law when he sees the curtains of the saloons pulled down in front, and the back door open. As he sees the constant disregard for law all around him, liberty becomes license in his mind. Then as he prospers and grows well-to-do, building laws, factory inspection, fire protection, and other attempts at government regulations, often seem to him restrictions which are to be evaded as much as possible.

Sweatshops and the padrone system are to his mind part of the American system for getting rich. In taking advantage of them for his own profit he feels that he is only following the custom of the country. A contempt for law and opposition to any attempt of the law to interfere with what he considers his rights are the natural results.

The study of civics^[10] in the public schools should begin not in the high schools and colleges, but in the lower grades. A majority of children leave school before they reach the grammar school. A practical course in government may be made simple and interesting even for them.

The idea has been seriously advanced that the oath of allegiance, accompanied by a dignified and beautiful ceremony, might be administered to groups of boys and girls as they reach twenty-one years of age, in a manner to impress on the public mind the value of citizenship. The “citizen receptions” which have been given monthly in Cleveland and Los Angeles, to the new citizens of that period, have done this. After a patriotic program, with the judge of the court presiding, each successful applicant is very proud when he receives his naturalization papers like a diploma, awarded before his family and friends. Such a ceremonial cannot fail to carry home the conviction of the value of the citizenship so conferred, and the importance of living up to the responsibility imposed by it.

FOOTNOTES:

[10] The study of citizenship in the public schools may be made a vigorous aid to Americanization. Many foreign parents depend on their children for their knowledge of the customs of the new country. What the children learn in the public schools has its influence on the life of the family at home. If the children are taught orderliness, consideration for others, and respect for authority, they carry those qualities home. If they are undisciplined, they take home disregard for parental authority, and a lack of consideration for the rights of others, that will stand in the way of their comprehending the first principles of good citizenship.

XXIII

PATRIOTISM AND CITIZENSHIP

From the beginning of history there have always been individuals who have chosen death rather than slavery. As intelligence has grown and has displaced ignorance, their number has increased, but it is only within the last century and a half that people have demanded liberty in sufficient numbers to make it the fundamental principle in the forming of great nations.

We, in the United States, are the inheritors of the most courageous and forward thinking of the men and women of all nations who cared enough for human liberty to break all ties of home and country in order that they might “establish justice, insure domestic tranquillity, provide for the common defense, and secure the blessings of liberty” for themselves and for us.

These phrases from the Constitution of the United States have usually been only words to us. We have been safe, our homes have been secure, our loved ones have been protected. Most of us have not personally been conscious of any overwhelming injustices, and those that we have heard of have been far enough away not to be disturbing. We have come and gone as we chose; we have thought and spoken as we pleased; we have worshiped as we would; our property has been safe; we have damned the government or any man in any public office without thought of danger to ourselves; we have feared no man. Why should we have talked about liberty or human freedom—it has been secure enough. So the call to defend liberty to some has fallen on dull ears, and the demand for an awakened patriotism in some places has gone unheeded. As a people, we have forgotten about the long centuries of fighting for freedom, the tremendous cost that has been paid, and the blood that has been shed.

Think what those words, “safety, defense, tranquillity, justice,” must have meant throughout the centuries when no man’s life was safe, when not only his welfare, but that of his family, was subject to the whim of the

government, when he could be thrown into prison without knowing the reason why, when the honor of his wife or daughter could be taken without his being able to protest. Read your history again, of the middle ages, of England in the seventeenth century, of France before the Revolution, of Germany in the eighteenth century. Then read of the early struggles in America. It was nature and the Indians that man was fighting then. For personal safety he fought to make war and raiding unprofitable; he had to meet brute force with brute force, to prove his mastery over nature and savagery, and to gain peace and safety for himself and his home.

It is the untold sacrifices of countless men and women that have made liberty possible. That it shall be maintained, and that the world shall not be allowed to slip back, is a debt that every man and woman owes to the past.

Those who inherit the fruits of this age-long struggle must be ready to pay their part, for themselves and for the sake of those they love, for the sake of those who won it for them, and for those who shall come after them. The duty which rests on them is as great as the duty that was on the men of the Revolution, and on those who won the Magna Charta. If they do not, they are weakening the forces of civilization.

For liberty is not yet complete. There may be as great a struggle ahead of the world as lies in the past. Before the tremendous upheaval of the war, we took it for granted that the liberties we possess were common, more or less, in most of the civilized world. Since then the horrors, the unbelievable human suffering, the suspension of all human rights, in the region of the great struggle, we have laid to the war, and have not realized that in many parts of civilized Europe, before the war, human freedom as we know it did not exist, and that the denial of certain rights which we claim as fundamental, was common.

At the foundation of our national existence has been that belief in the principles of liberty, justice, and opportunity which the Constitution expresses. The rights given us by the founders of our nation have been the ideals which other democratic governments have sought to follow. They have been sufficiently elastic to meet the growth of the world's belief in democracy, and to provide for all new developments in the ideals of human liberty. If these ideals have been denied to any of our people, it has been the fault of us as citizens. The degree in which they are maintained depends on

us. Instead of denying the liberties that we actually enjoy, would we not do better to advance them and add to them? In place of tearing down the great structure already erected, is it not wiser to help to correct its imperfections and to continue to build on it?

There is an intelligent part of the public that desires good government and will help to maintain our ideals of justice, but they are in the minority. There is also a part that sees in government only their own selfish profit, but they are also a minority. The great mass of people are indifferent until something arouses them. They would rather be left alone by bad government than be bothered by good government. That is the great problem of democracy—to arouse all the people to a realization of the necessity of their active interest in and support of that democracy, to increase their sense of individual responsibility; and that is the reason for universal suffrage—to put yeast into a people and to ferment their dormant interest. Democracy is not static. It exists only as it is upheld.

We hear about the denials of justice and the failures of democracy more than we do about its blessings. Our sense of perspective is often wrong. We talk about an act of lawlessness in the United States, even if it is being prosecuted with energy by the government, and class it with a deliberate attempt by a government to crush a people. We make no distinction between a State with deficient labor laws and a country where the laboring classes have no right to make themselves heard. We see no difference between a suppression of disloyal utterances in time of war and a people that is never allowed to speak freely, or a censoring of papers in war-time and a press that never prints anything but what it is told to print.

We are apt to magnify the evils of democracy at home, and to forget the magnificent heritage of liberty that belongs to us.

What are the special privileges which we enjoy?

First.—Personal Security, the right to live our daily lives without fear of personal danger, the right of being secure from unwarrantable seizure of person. This right has been ours so long that we do not know how precious a right it is. It is difficult even to conjure up in imagination an idea of what it would mean to be in daily fear of one's safety.

Second.—Personal Liberty: Freedom of Thought and Speech. Life would be unthinkable to us without this liberty. To stifle one's thought, to be afraid to let a suspicion of it leak out would mean to make life unbearable. *Freedom of the Press* is a right that we enjoy more than any other nation. *Freedom of Worship* has so long been unquestioned that we forget that it has been little more than a short century since it was established. *Freedom of Assembly* is a right which we accept without question.

The Right of Petition was won by a bitter struggle. We can scarcely imagine that there was ever a time when it was denied.

Third.—Equality before the Law is a right that is guaranteed by the Constitution of the United States, the right to a fair trial by jury, of habeas corpus, and due process of the law.

Fourth.—Security of Property is guaranteed by our Constitution. Private property may not be taken even by the government without a fair price being paid for it.

Fifth.—Political Rights are guaranteed to our people, universal suffrage, complete political liberty. This is the most valuable of all rights, because it is the right that secures all other rights. [\[11\]](#)

These rights are not absolute; they are dependent on public opinion as well as on the law. They are imperfectly administered. To the extent that they are denied, we must each one of us accept part of the blame, because liberty of action is ours. In time of war public safety may demand their suspension, and the people may give permission that this may be done temporarily.

The privilege of citizenship brings with it the obligation to defend the government of which that citizenship is a part. The right to vote is a right which might well be dependent on the loyalty of the citizen, and on his willingness to defend and maintain his country.

Men say even to-day that the vote has no value, that they do not care about it. Let them live for a time in a country where they would not be allowed to vote, where the people are governed by an autocratic power, and how long before they would be willing to sacrifice anything, even life itself, for political liberty?

The citizen of a democracy has not only the duty to defend his country, but is bound to transmit to future generations something better than he inherited from the past. As it is his part in time of war to defend the liberties that he enjoys, so it is his duty in time of peace to do his best to develop and strengthen liberty and justice.

That is a task even more difficult than to fight in time of war. The discouragements, the disappointments, are many.

Women are bound to meet these disappointments. The vote for which they have worked so hard and so long will not accomplish what they wish. Often it will seem to accomplish very little. The machinery of democracy is cumbersome and very imperfect. It is often heartbreaking to try to move it. It does not easily register the popular will. But in spite of the imperfections, and the discouragements, and the downright corruption, the foundation on which it is built is the best that the world has yet found. There are many labor-saving devices still to be invented for the bettering of the machinery of government—protective measures to be found against political corruption and to safeguard the interests of the people.

Side by side with the improvement in the mechanism of government must come a quickening of the public conscience. The yeast of universal suffrage is already working toward that end. The golden rule as the standard of action in government will make few mistakes. The prospect for an improved democracy in New York State is bright. The war has swept away many prejudices and has clarified many problems. Men and women are working together as never before, whole-heartedly, for the benefit of the State. To adapt the words of President Wilson, “the climax of the culminating and final war for human liberty has come, and we must be ready to put our own strength, our own highest purpose, our own integrity and devotion to the test,” and we must do this not only now in time of war, but also after peace has come, in the dedication of ourselves to the service of justice, freedom, and opportunity for all in our nation.

FOOTNOTES:

[\[11\]](#) Universal suffrage has meant in the past only manhood suffrage. With the ratification of the woman suffrage amendment to the National Constitution, universal suffrage will become for the first time a fact.

APPENDIX

SOME DEFINITIONS

Habeas Corpus: Both the Federal and State constitutions guarantee to the people the right to the writ of habeas corpus, “unless where in cases of rebellion or invasion, public safety may require its suspension.” This is an order that may be obtained from a certain judge commanding that a prisoner shall be brought into court without delay. This writ secures to any person imprisoned for any cause the right to be heard immediately, in order that the purpose of his detention may be made known, the facts be examined, and the prisoner either released or remanded for trial. This is one of our most highly prized rights, and is based on a promise contained in the Magna Charta.

The Initiative and Referendum give to the voters the power to initiate legislation, and the right to compel a referendum on any legislative act.

The Initiative enables the people to enact some measure that they may desire, when it has been ignored, or defeated, or amended out of shape by the Legislature. The initiative may be used to pass a new law, or to amend or repeal existing laws. If a group of citizens can get a certain percentage of the voters to sign the requisite petition to a measure, it then goes to the Legislature, and if it is not adopted by that body, the measure must be given to the people for their decision by popular vote. If a majority of the voters indorse the measure it becomes a law without waiting for action by the Legislature. In Oregon, initiative measures go directly to the people without being submitted to the Legislature.

The Referendum provides that a certain percentage of voters may demand that any statute passed by the Legislature must be submitted to the voters, and approved by them before it becomes a law.

The existence of a provision for the initiative and referendum is said to reduce the need of interference with the work of the Legislature, and the actual number of measures coming to a popular vote is very small.

The Recall provides that the voters who put an official into office may vote to remove him before his term of office is over. If people are dissatisfied with the conduct of a public official, on petition of a certain number of voters, he may be compelled to submit to a new election so that the voters may pass judgment on his conduct of his office.

The Red-light Injunction and Abatement Act is recognized as the most effective way yet found of minimizing the social evil. The usual method of handling such offenses is to arrest the woman and fine her. The injunction and abatement act puts the responsibility on the owner of the property used for this business. If it can be proved that it is used for immoral purposes, the house is closed, and the owner fined and put under heavy bond to insure its not being used again in this way. Property used for this purpose brings much higher rent than when used for legitimate business, so that this procedure strikes at one root of the evil. New York State has an abatement act, but it is not well enforced. It is not easy in many cases to find the owner of a piece of property.

The Tin Plate Ordinance puts the name of the owner of a building on a plate outside the building, and thus prevents the concealment of his or her identity. It was first put into operation in Portland, Oregon.

Prohibition, High License, Local Option, and the **Guttenburg System** are all ways of dealing with the liquor traffic.

Prohibition has been of many different degrees in various places in the United States. A complete National prohibition measure has now been passed by Congress, and is before the States for ratification.

High License is intended to decrease the number of places where liquor is sold by placing a tax on them so large that it will be impossible for many of them to pay it.

Local Option, which allows communities of various sizes to decide for themselves whether the sale of liquor shall be licensed or not, has been fought step by step by the liquor trade.

The Scandinavian or Guttenburg System of controlling the liquor business, in general, provides for eliminating all private profit from the business, but there are many variations of details in different places in carrying out the system. The Scandinavian idea is that if the money profit is

done away with the business will take care of itself. A few licenses are given for short periods to companies formed for manufacturing wines and liquors, and 5 per cent. interest is allowed on the capital invested. All remaining profits go to the State. The government has the right to withdraw the license without compensation. Retail shops are open only from eight in the morning until seven-thirty in the evening; they are closed on holidays, and from one on Saturday until eight A.M. on Monday. Bartenders are under the civil service and are given bonuses for selling soft drinks.

The Single Tax is a proposal to place the entire burden of taxation on land alone, without regard for the value of its improvements. Land which is not improved, and is entirely non-productive, often increases in value with the growth of population and the improvements made on neighboring property, without any effort on the part of the owner, or any service rendered by him in return. Improvements on property increase the taxes on that property, while the owner of the unimproved property escapes the same increase as long as his land remains unimproved. In other words, the improvements which add to public prosperity are made to pay an increase which the stagnant property escapes. The proposal of the single-taxers is that the “unearned increment” on such land should go into the public treasury.

The House of Governors originated when President Roosevelt, in 1908, invited the Governors of all the States to meet in Washington to confer over important matters. Several times since then this “House of Governors” has met together to discuss questions of mutual interest which are important to the welfare of the several States.

Proportional Representation would give representation in Congress to each party, in proportion to its membership in the State. At present the representation of each party is based on its comparative strength in each congressional district. The division of the State into congressional districts is made by the State Legislature. The political party in control of the Legislature may divide the State in such a way that it may be able to elect an unfair number of representatives. It may put counties, or assembly districts which have a large majority of voters belonging to the opposite party, in one congressional district, and economize its own voting strength by spreading it over as many congressional districts as possible, where it can be sure of electing its candidates by small majorities. This is known as

“gerrymandering.” In New York State, instead of the division of the State into congressional districts being based fairly on population, districts have been created by the party in control of the Legislature which contain more than twice as many voters as some other districts.^[12] It is said that proportional representation would also tend to make Congressmen so elected work for the service of the State as a whole instead of for one local district.

Workmen’s Compensation Laws are designed to provide for the compensation of employees when they are injured at their work. More working-men are injured in the industries of the United States, in proportion to the number employed, than in any other country in the world. To let the working-man and his family alone bear the burden of injury or death is recognized as an injustice. For such an injured person, or his family, to be obliged to sue through the courts is usually a long and expensive process. Years may be consumed in such litigation, and meanwhile the family may be without the support of the breadwinner. Compensation laws require employers, regardless of fault, to pay injured workmen certain amounts for injuries resulting from accidents, without the workmen being obliged to go to court and sue for damages.

The State Federation of Labor is working to have all compensation insurance placed in the State fund, to eliminate direct settlement of damages between the workers and the employer, and to have all occupational diseases included in the provision of the law.

ADDITIONAL NOTES

Page [109](#): School taxes under the new Township law are collected by Town authorities.

Page [142](#): In New York County the Grand Jury is composed of thirty-six men.

Page [144](#): A bill to make women eligible for jury service is before the Legislature of New York State.

Page [163](#): Efforts are being made to repeal the Township school law and to go back to the School District system of 1795.

FOOTNOTES:

[\[12\]](#) Also under our present system a large minority of voters may be without representation. A third party in the State may have a considerable membership, but its numbers may not be large enough in any one district to elect a representative over either of the other parties.

CHART OF OFFICIALS FOR WHOM YOU CAN VOTE

ELECTIONS	WHEN HELD	TERM	SALARY
School Elections.	School-meeting annually first Tuesday in May.		
Board of Education, 3-5 in each town.	" "	3 years.	
School directors, 2 in each town.	" "	5 "	
Village Elections.	Annually, usually in the spring, the third Tuesday in March.		
President.	" "	1 "	
Trustees (2 to 8).	" "	2 "	
Clerk (sometimes appointed).		1 year.	varies.
Treasurer.	" "	1 "	"
Assessors.	" "	1 "	"
Collector.	" "	1 "	percentage.
Police justice.	" "	4 years.	varies.
Special elections may be called to decide special questions.			
Town Elections.	Biennially, either in the spring or at the general election in November.		
Supervisor.	" "	2 years.	by the day or salary.
Town clerk.	" "	2 "	fees.
Assessors.	" "	2 "	by the day.
Collector.	" "	2 "	percentage.
Overseer of the Poor.	" "	2 "	by the day.
Supt. of Highways.	" "	2 "	" "
Constables.	" "	2 "	fees.
Just. of the Peace.	" "	4 "	"
County Elections.	At the general election in November.		
Sheriff.	" "	3 "	fees or sal'y.
County clerk.	" "	3 "	" "
Treasurer.	" "	3 "	fixed by b'rd of supervisors.
District attorney.	At the general election in November.	3 years.	sal'y varies.
Supt. of the poor.	" "	3 "	by the day or salary.
County judge.	" "	6 "	sal'y varies.
Surrogate.	" "	6 "	" "

Coroners.	" "	3 "	fees or sal'y.
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City Elections.

Cities of the first and second class and usually those of the third class hold elections biennially, in the odd-numbered years.

New York City.

Mayor.	Elected every four years at the general election in November. Next mayor elected in 1921.	4 years.	\$15,000
Comptroller.	" "	4 "	15,000
Borough presidents.	Elected by the people of each borough.	4 "	7,500 to 5,000
Aldermen.	In odd-numbered years.	2 "	2,000
Judges, City Courts.	At any general election. 10	10 "	12,000
Judges, Muni. Courts.	" "	10 "	7,000 to 8,000

New York County.

	At the general election.		
Sheriff.		4 "	12,000
District attorney.		4 "	15,000
County clerk.		4 "	15,000
Register.		2 "	12,000
Judges of the Court of General Sessions.		14 "	17,500
Surrogates (2).		14 "	15,000

Bronx County.

	At the general election.		
Sheriff.		4 "	10,000
District attorney.		4 "	10,000
County clerk.		4 "	10,000
Register.		4 "	10,000
County judge.		6 "	10,000
Surrogate.		6 "	10,000

Kings County.

	At the general election.		
Sheriff.		2 "	15,000
District attorney.		3 "	10,000
County clerk.		4 "	12,000
Register.		2 "	12,000
County judges (5).		6 "	12,500
Surrogate.		6 "	15,000

Queens County.

	At the general election.		
Sheriff.		3 "	10,000
District attorney.		3 "	8,000
County clerk.		3 "	8,000
County judge.		6 "	12,500
Surrogate.		6 "	10,000

Richmond County.

	At the general election.		
Sheriff.		3 years.	6,000
District attorney.		3 "	5,000
County clerk.		3 "	5,000
County judge and surrogate.		6 "	10,000

State Elections.	Biennially, at the general election in even-numbered years.		
Governor.	2	”	10,000
Lieutenant-Governor.	2	”	5,000
Secretary of State.	2	”	6,000
Comptroller.	2	”	8,000
Treasurer.	2	”	6,000
Attorney-General.	2	”	10,000
State Engineer.	2	”	8,000
State Senators.	2	”	1,500
Assemblymen.	1 year.		1,500
Judges of the Court of Appeals.	14 years.		13,700 to 14,200
Judges of the Supreme Court.	14	”	10,000 to 17,500
National Elections.	At the general election.		
President.	Elected by presidential electors who are elected by the people every four years.		
	4	”	75,000
Vice-President.	” ”		
	4	”	12,000
U. S. Senators.	At different general elec.		
	6	”	7,500
Representatives in Congress.	Biennially, in even-numbered years.		
	2	”	7,500

THE END

Transcriber's Notes

- pg 204 Added space between: acanning-factory in: who is kept at work in acanning-factory,
- pg 259 Removed repeated word to from: workmen being obliged to to go to court
- pg 259 Changed A bill to make women elegible to: eligible
- pg 262 Added period after: fees or sal'y - for Coroners line
- pg 262 Added period after: City Elections
- pg 262 Added period after: in the odd-numbered years
- pg 262 Added period after: At any general election (2 locations)
- Many hyphenated and non-hyphenated word combinations left as written.

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